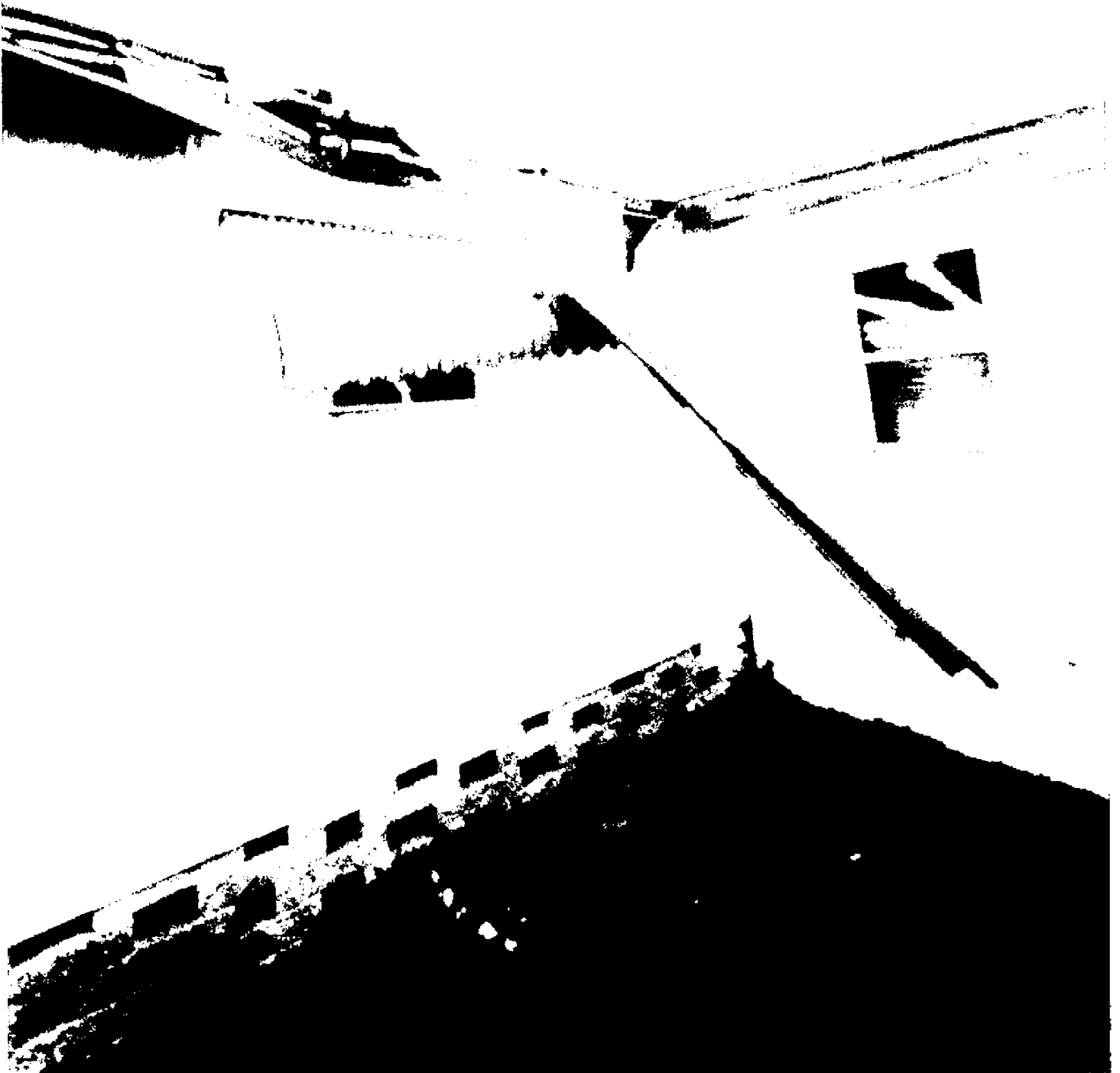




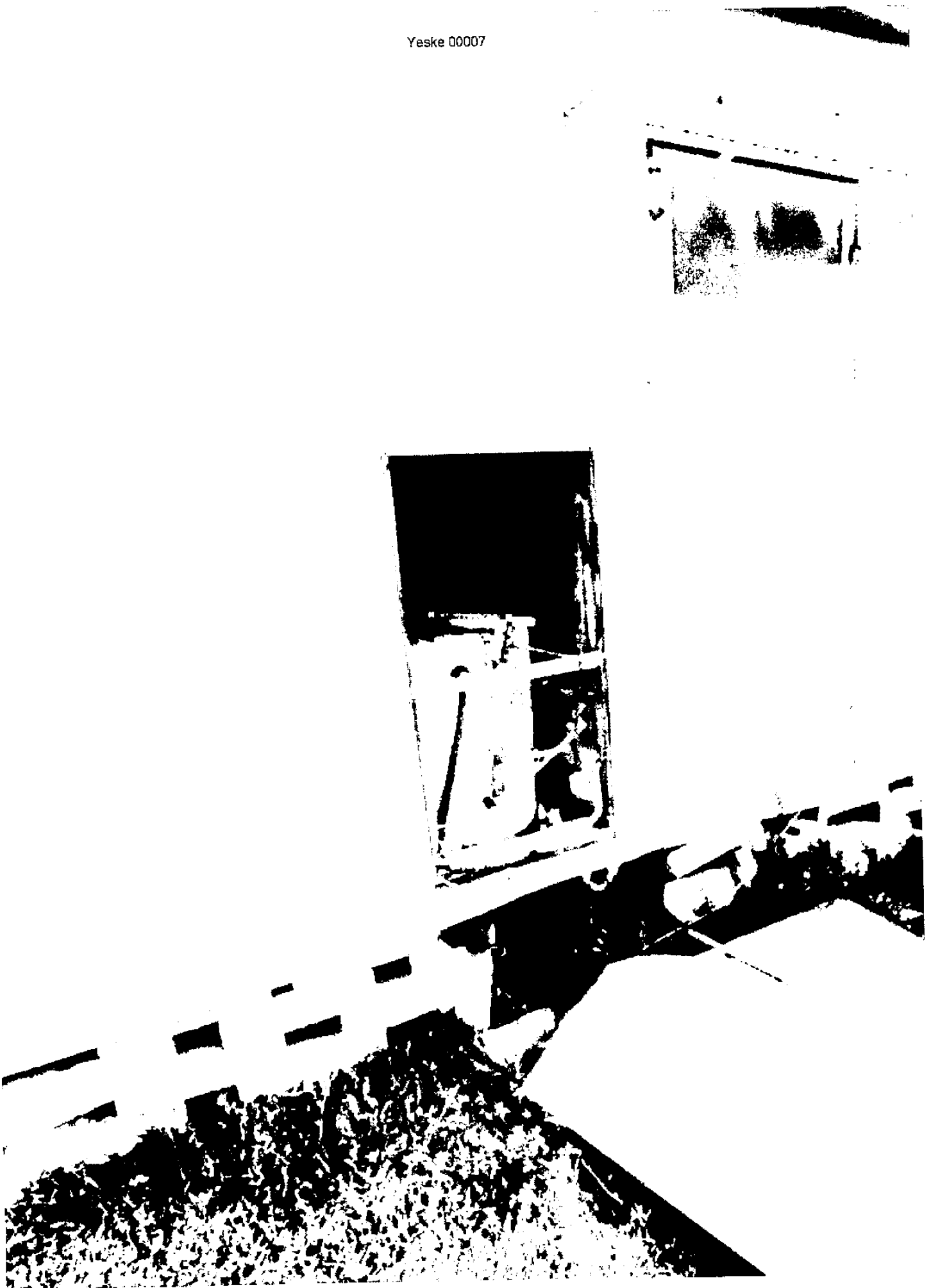












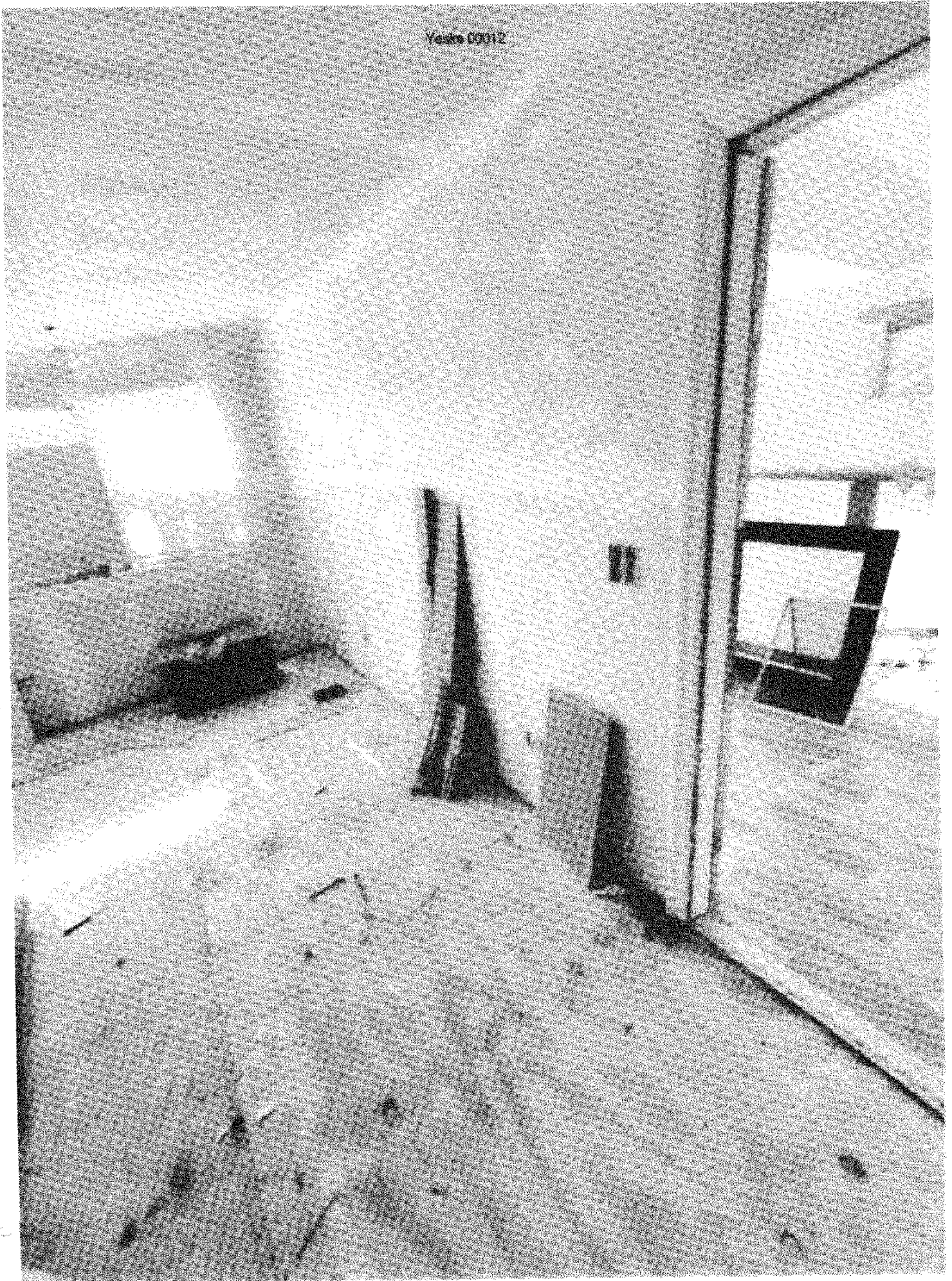




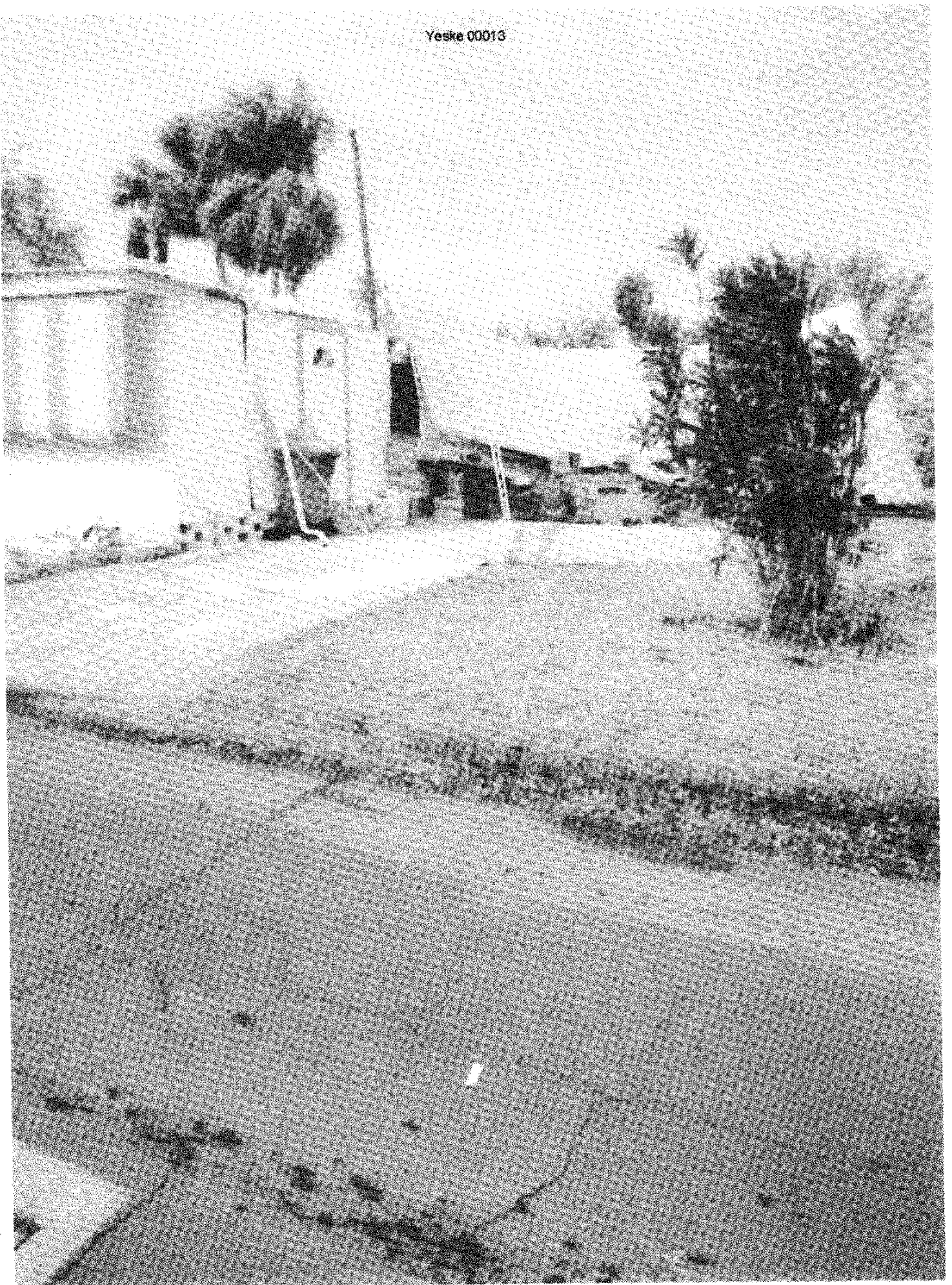


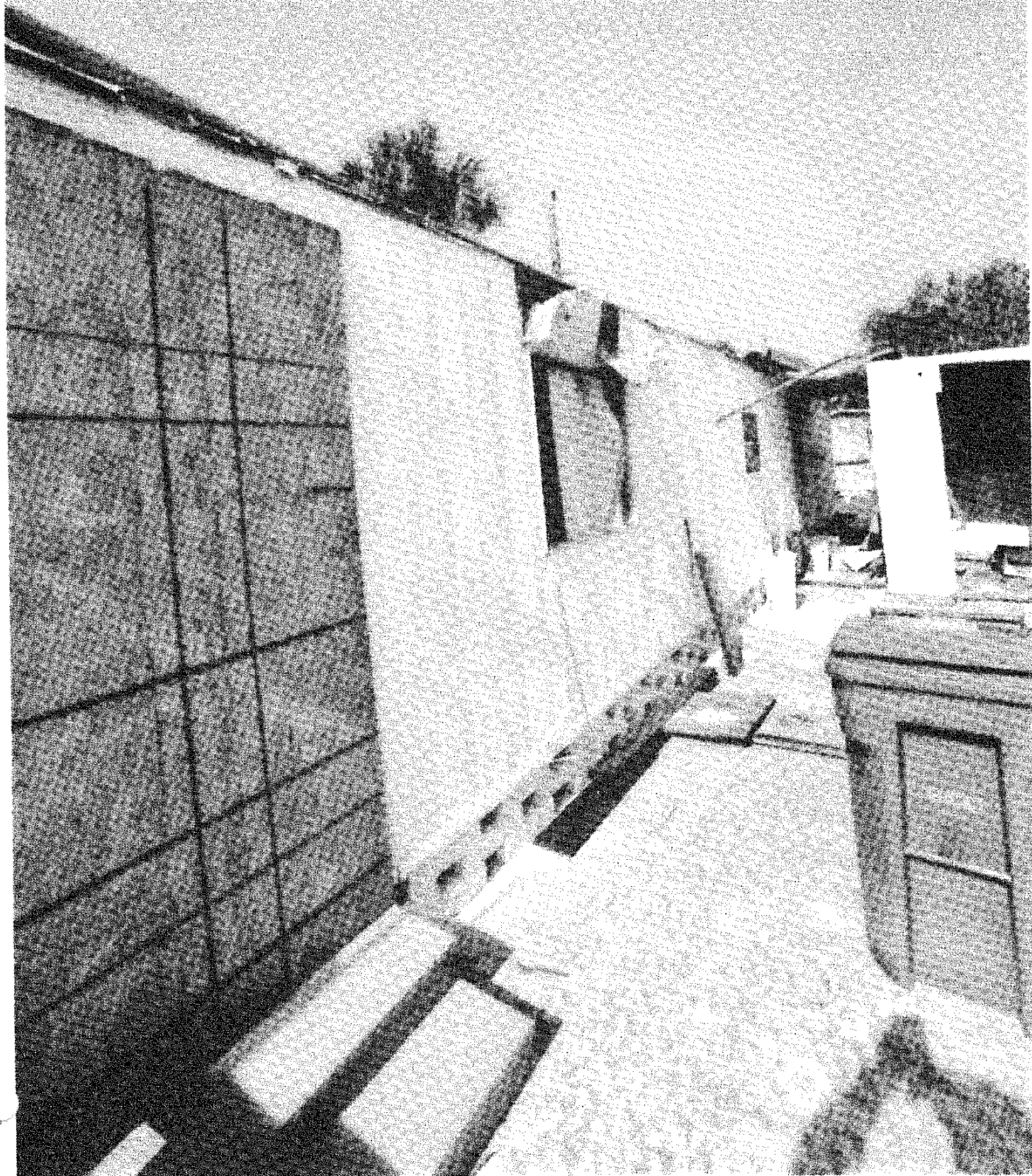


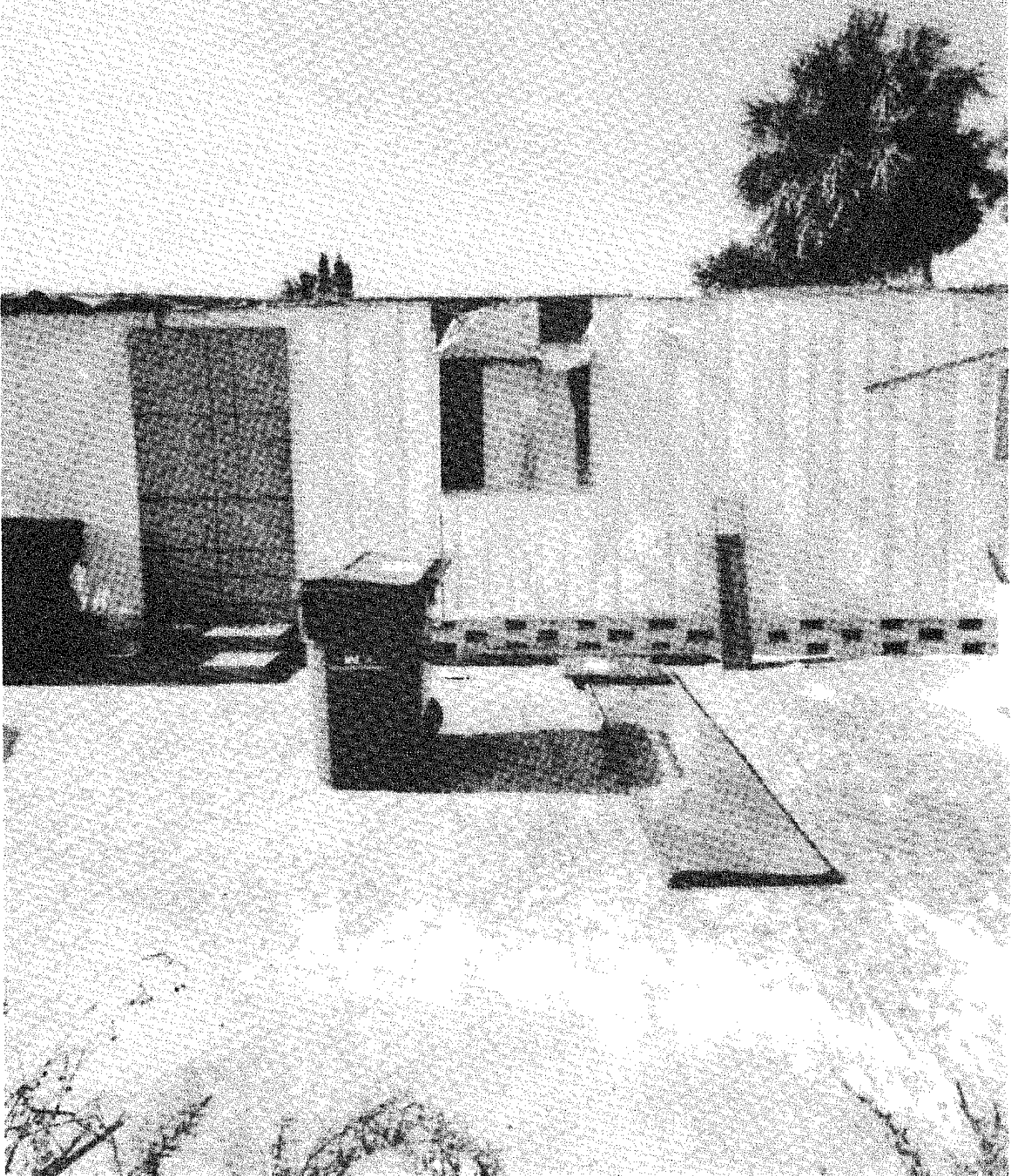
Yeste 00012

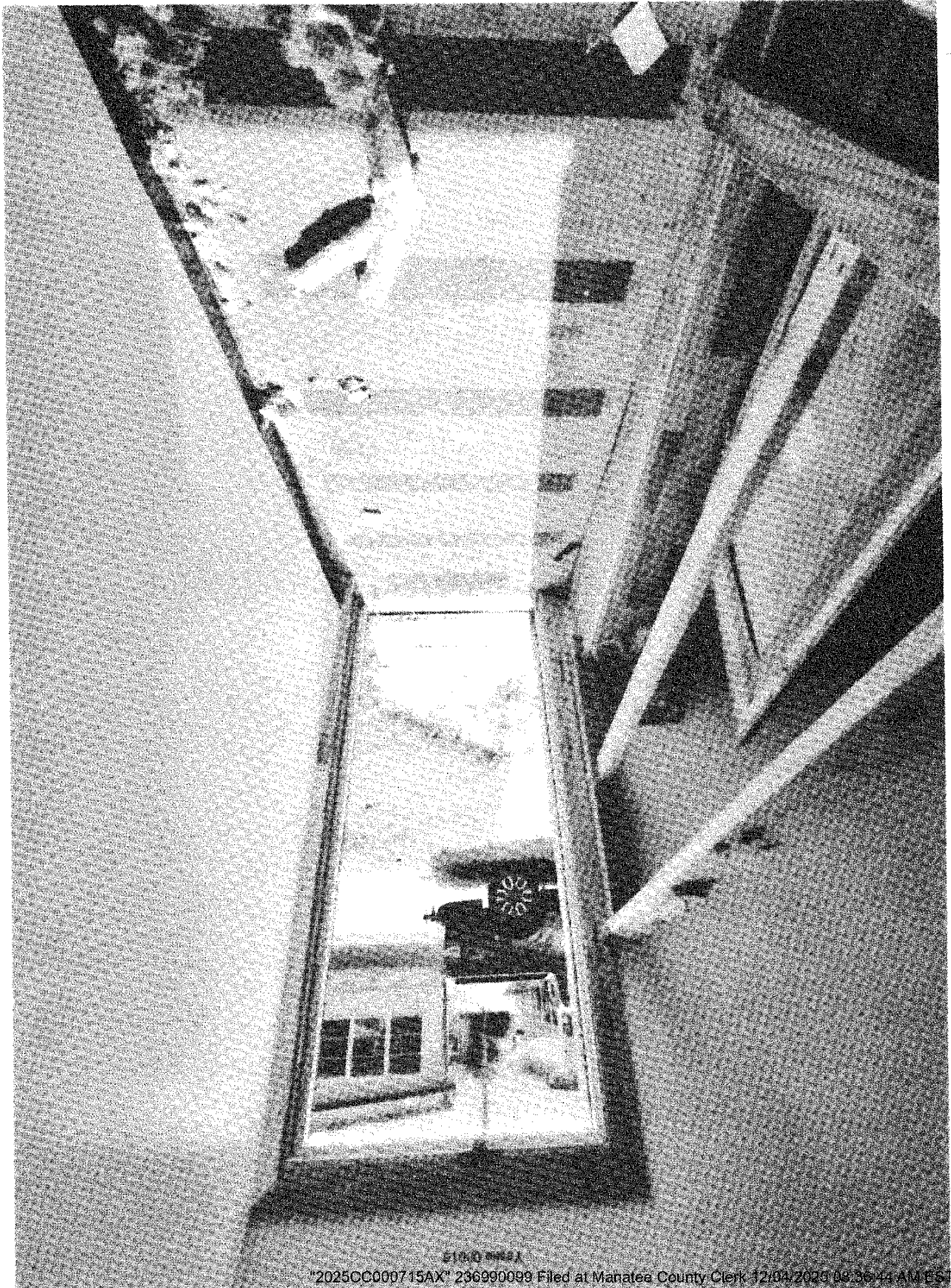


Yeske 00013

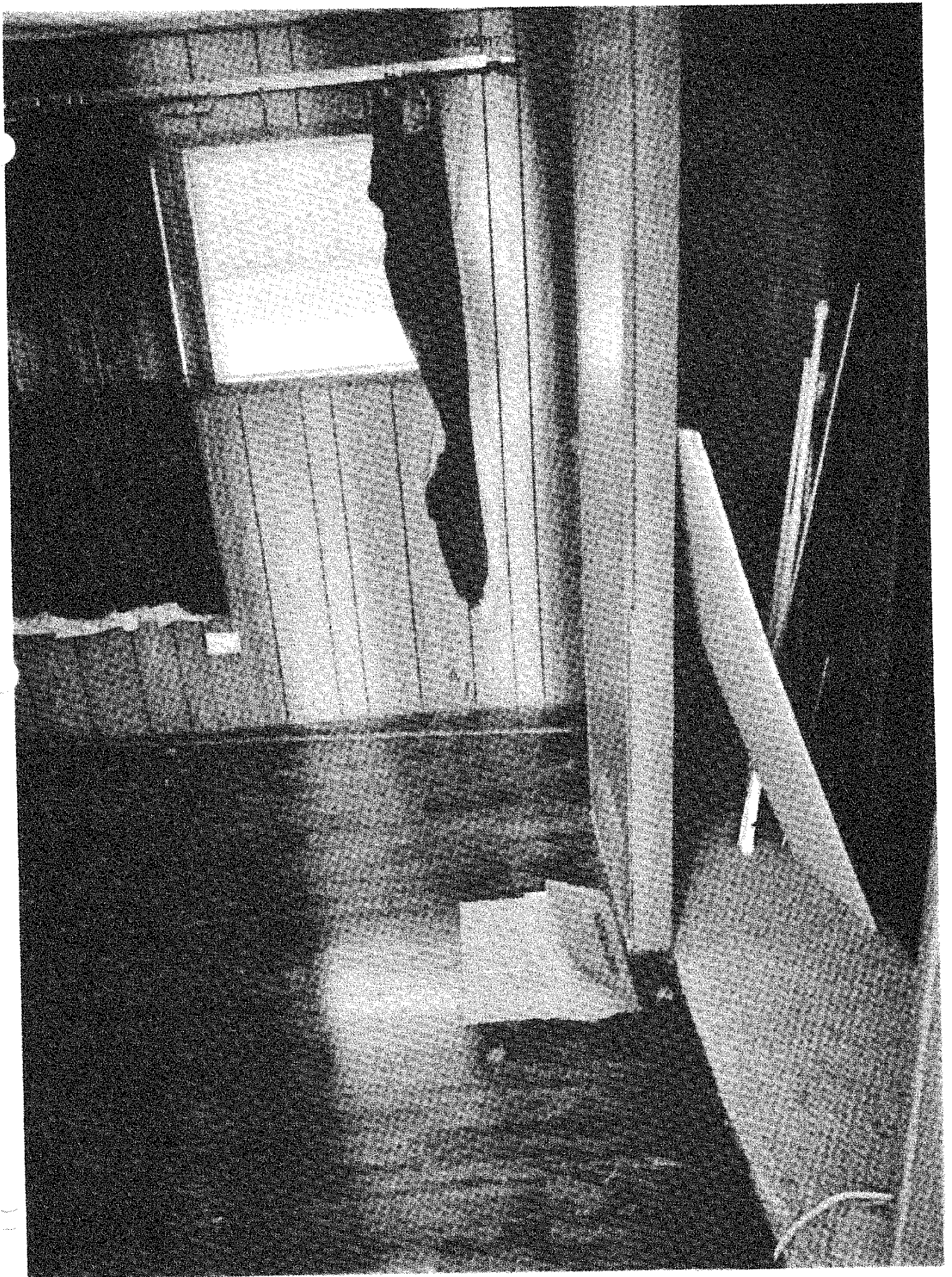








2120 00001



Attention Residents

Just a friendly reminder Lot Rent is due on the 1st of the month. It is a courtesy we extend a grace period to the 5th. It is the responsibility of the homeowner to make sure payment is made in a timely matter and within the workings of this office.

Working hours are posted outside of the office

You have been given plenty of notice that we will no longer take checks or money orders in this office for rent, and you should already have made your choice of either Auto Draft via Zego (paylease) or obtained a Cash Pay Card from the office to pay at Walmart or Amスコット. (You must know the exact amount due to use cash pay card) and there are no partial payments excepted. Regardless of if the 5th falls on a Holiday or Weekend there should be NO REASON to be LATE. You will be assessed a late fee of \$45 on the 6th of the month automatically if not paid before midnight on the 5th and payment will not be accepted without the late fee added to the monthly rate at that point.

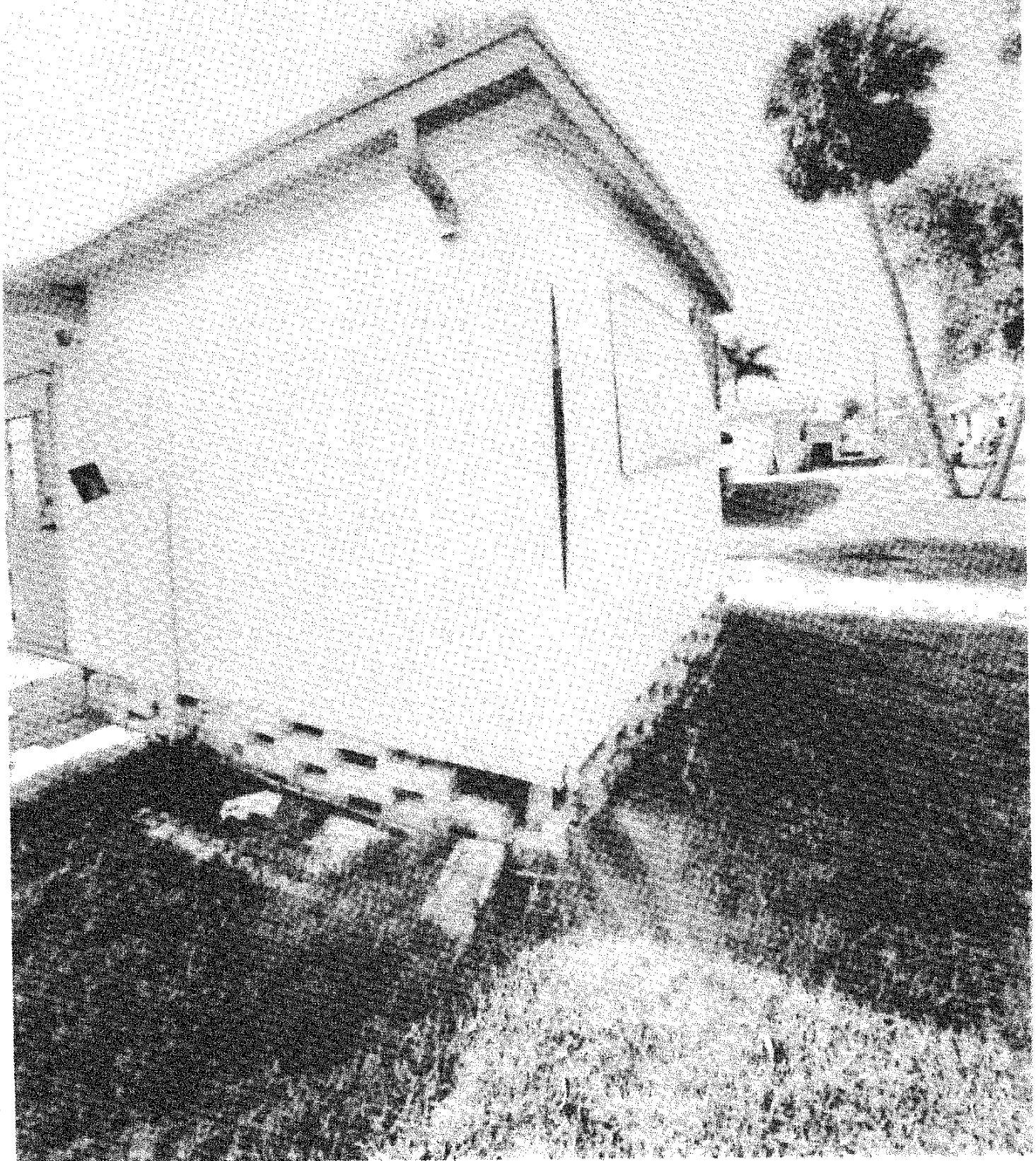
Late fees will no longer be waved, if you are late, you are late period! NO EXCEPTIONS

We will continue to take O&E payments in the office ONLY if it means your payment will not reach Jacksonville, FL in a timely manner and checks or money orders must be written out to Colonial Manor

Govern yourself accordingly!

Thank you - Management





MANATEE COUNTY CLERK
FOR COUNTY OF MANATEE, FLORIDA

Date: December 10, 2024

TO: [Name] [Address] [City, State, Zip]
and All Unknown/Unauthorized Occupants
[Address] [City, State, Zip]
Certified Mail # [Number]
[Address] [City, State, Zip]
and All Unknown/Unauthorized Occupants
[Address] [City, State, Zip]
Certified Mail # [Number]

VIA POSTING/HAND DELIVERY, REGULAR AND CERTIFIED MAIL. Receipt Requested

You are notified that you are in default in the payment of the lot rental amount for your manufactured home lot. Base lot rental amount is payable to the Landlord at the rate of \$[Amount] per month.

You have failed to pay all the past due lot rental amounts for the months of [Month] through [Month], 2024 in the amount of \$[Amount], as shown in the table below. As shown in the table below, the total lot rental amount due as of the date of this demand is \$[Amount], payable to the address above.

• Rent on Dec 1, 2024 to Dec 31, 2024 in the amount of \$[Amount]
• Late Fee on Dec 1, 2024 to Dec 31, 2024 in the amount of \$[Amount]
• Total month balance in the amount of \$[Amount]

DEMAND IS HEREBY MADE that you pay the total lot rental amount now due, or deliver possession of the premises to the undersigned within five (5) days from the date of delivery of this notice (allowing five (5) days from the postmark date excluding Saturdays, Sundays and legal holidays.) If the total lot rental amount now due is not paid on or before Dec 19, 2024, your rental agreement will be terminated, and you must immediately vacate the premises.

If you do not pay the total lot rental amount now due within five (5) days from the delivery of this notice (excluding Saturdays, Sundays, and legal holidays), an action for eviction pursuant to Chapter 723.061, Florida Statutes, will be commenced against you. If such action is commenced for eviction, you may also be held liable for court costs and reasonable attorney's fees incurred by the community in order to prosecute such an eviction action. If you have any questions concerning this notice, please contact the community office at the telephone number listed above.

PLEASE GOVERN YOURSELF ACCORDINGLY.

00022

CERTIFIED MAIL: #
CERTIFIED MAIL: #
CERTIFIED MAIL: #

MAILED ON: December 15, 2024

BY: C. P. Pank
(Employee Signature)

COPY POSTED ON PREMISES (REG 9th Ave E Lot 1) _____

POSTED ON: Dec 16 2024 @ 12:30pm
(date/time)

POSTED BY: C. P. Pank
(Employee Signature)

Colonist Manor MHC Holdings, LLC

vs.

Tommy Dyer / Matthew Dyer

**KEN BURTON, JR., TAX COLLECTOR
MANATEE COUNTY, FLORIDA**

NOTICE OF IMPENDING COURT SUMMONS

MOBILE HOME WARRANT # 1816

During a recent audit to verify the renewal of your 2024 mobile home decal(s) it was determined your unit is not in compliance and the registration **expired** December 31st.

Delinquent fees have already been assessed, per Chapter 320 of Florida Statute. Additionally, if the decal(s) is not purchased and properly displayed within 15 days from receipt of this summons, a possible field check at the mobile home location will follow.

Decal(s) **MUST** be visible at all times and not to be covered by awnings, shutters, foliage, etc. Please refer to the back of the colored decal for placement instructions.

Reminder the number (#) of decals required is based on size of your mobile home:

Single Wide - 1 Decal

Double Wide - 2 Decals

Triple Wide - 3 Decals

If you are the new owner of this unit and have not transferred the title into your name, you must transfer title immediately per Florida Statute 319.22. **If you are making payments a lienholder must be recorded.** Please bring this document, the title of your Mobile home and proper identification to one of our three (3) locations to complete a title transfer. Appointments are required.

Owner: DYCE, TAMMY JEAN
Address: 4802 51ST ST W UNIT 504
BRADENTON, FL. 34210

Date: 3/7/2025

FSC FSC FSC

Title#: 3914341
Decal#: 20265980
Expiration: 12/31/2024

Title#: 3914339
Decal#: 20265978
Expiration: 12/31/2024

Title#:
Decal#:
Expiration:

If you need further assistance please email Fielddeputies@taxcollector.com. Make sure to include your name, a valid phone number, lot number and the Mobile Home Warrant number, listed above.

For additional information, you may visit our website at taxcollector.com.

**** Form must be retained and submitted to Field Services & Collections after processing. ****

CNTY# AGYS SUB# RPT#
15 7 127 5570
AUDIT #



00024
STATE OF FLORIDA
APPLICATION FOR VEHICLE/VESSEL
CERTIFICATE OF TITLE

LP 3049
TP 2100955229
SP 2928
SN 111898493

TITLE NUMBER	VEHICLE/VESSEL IDENTIFICATION #	YR. MAKE	MAKE BY MANUFACTURER	BODY TYPE	VEHICLE COLOR	WT/LENGTH	PRINCPL OPERAT	GVW/LOC		
3914341	FT23524SL1442B	1970	PKWA	HS	UNK	31'				
DATE OF ISSUE MO. DAY YEAR	TRANS CODE	VEHICLE USE	HULL MATERIAL	PROPULSION	ENGINE DRIVE	FUEL	VESSEL TYPE	WATER	FL NUMBER	AUTH DESTRUCTION
03 20 25	CAT	PRIVATE								

Applicant/Owner's Name & Address
TAMMY JEAN DYCE OR MATTHEW SPENCER DYCE
4802 51ST ST W UNIT 504
BRADENTON, FL 34210

BIRTHDATE
SEX MO. DAY YEAR Y N ALIEN RES.#
F 10 30 58 X 15

1st OWNER FL/DL# OR FEID# D336151220000
2nd OWNER FL/DL# OR UNIT# D200557794010

VOLUNTARY CONTRIBUTIONS

AGENCY FEE	TITLE FEE	SALES TAX	GRAND TOTAL
	0.00	0.00	0.00

Action Requested: CANCEL TITLE - JUNKED

Brands:

PREV. STATE	DATE ACQUIRED	NEW	USED	ODOMETER / VESSEL MANUFACTURER
FL	05/31/2021		XX	

ODOMETER
DECLARATION
CERTIFICATION
☐

LIEN INFORMATION

DATE OF LIEN	RECEIVED DATE	FEID # OR FL / DL AND SEX AND DATE OF BIRTH	DMV ACCOUNT #
--------------	---------------	---	---------------

NAME OF FIRST LIENHOLDER:

ADDRESS

SALVAGE TYPE

SELLER INFORMATION

NAME OF SELLER, FLORIDA DEALER, OR OTHER PREVIOUS OWNER
THE MOBILE HOME DEALER, LLC

ADDRESS
339 6TH AVE W STE 11
BRADENTON, FL 34205-8820

DEALER LICENSE NO.
BH11296421

CONSUMER OR SALES TAX EXEMPTION #

SALES TAX AND USE REPORT

TRANSFER OF TITLE ☐ PURCHASER HOLDS VALID
IS EXEMPT FROM EXEMPTION CERTIFICATE
FLORIDA SALES OR ☐ VEHICLE / VESSEL WILL BE
USE TAX FOR THE USED EXCLUSIVELY FOR RENTAL
REASON(S) CHECKED ☐ OTHER

INDICATE TOTAL PURCHASE PRICE, INCLUDING ANY
UNPAID BALANCE DUE SELLER, BANK OR OTHERS

INDICATE SALES OR USE TAX DUE AS PROVIDED BY CHAPTER 212, FLORIDA STATUTES \$ 0.00

☐ SELLING PRICE VERIFIED

APPLICANT CERTIFICATION

I HEREBY CERTIFY THAT THE VEHICLE/VESSEL TO BE TITLED WILL NOT BE OPERATED UPON THE PUBLIC HIGHWAYS/WATERWAYS OF THIS STATE.

I CERTIFY THAT THE CERTIFICATE OF TITLE IS LOST OR DESTROYED.

I CERTIFY THAT THIS MOTOR VEHICLE/VESSEL WAS REPOSSESSED UPON DEFAULT OF THE LIEN INSTRUMENT AND IS NOW IN MY POSSESSION.

I HEREBY CERTIFY THAT I AM LAWFULLY OWN THE ABOVE DESCRIBED VEHICLE/VESSEL, AND MAKE APPLICATION FOR TITLE. IF LIEN IS BEING RECORDED NOTICE IS HEREBY GIVEN THAT THERE IS AN EXISTING WRITTEN LIEN INSTRUMENT INVOLVING THE VEHICLE/VESSEL DESCRIBED ABOVE AND HELD BY LIENHOLDER SHOWN ABOVE. I AM FURTHER AGREE TO DEFEND THE TITLE AGAINST ALL CLAIMS.

UNDER PENALTIES OF PERJURY, I DECLARE THAT I HAVE READ THE FOREGOING DOCUMENT AND THAT THE FACTS STATED IN IT ARE TRUE.

Signature of Applicant/Owner

HSMV 82041 REVISED 02/08

SCAN CODE

MVT

Signature of Applicant/Co-Owner

15 7 127 5570

AUDIT#

STATE OF FLORIDA
APPLICATION FOR VEHICLE/VESSEL
CERTIFICATE OF TITLELP 3048
TP 2100952897
EP 2927
SP 111898359

TITLE NUMBER	VEHICLE/VESSEL IDENTIFICATION #	YR. MAKE	MAKE or MANUFACTURER	BODY TYPE	VEHICLE COLOR	WT/LENGTH	PRINCPL OPERAT	GVWA/OC
3914339	FT23524SL1442A	1970	PKWA	HS	UNK	31'		

DATE OF ISSUE MO DAY YEAR	TRANS CODE	VEHICLE USE	HULL MATERIAL	PROPULSION	ENGINE DRIVE	FUEL	VESSEL TYPE	WATER	FL NUMBER	AUTH DESTRUCTION
03 20 25	CAT	PRIVATE								

Applicant/Owner's Name & Address

TAMMY JEAN DYCE OR MATTHEW SPENCER DYCE
4802 51ST ST W UNIT 504
BRADENTON, FL 34210

BIRTHDATE SEX MO DAY YEAR	RESIDENT Y N ALIEN	CNTY RES.#
F 10 30 58	X	15

1st OWNER FLD# OR
F.E.I.D.#2nd OWNER FLD# OR
UNIT #

D336151220000

D200557794010

VOLUNTARY CONTRIBUTIONS

AGENCY
FEE

TITLE FEE

SALES TAX

GRAND TOTAL

0.00

0.00

0.00

Action Requested: CANCEL TITLE - JUNKED

Brands:

PREV. STATE	DATE ACQUIRED	NEW	USED	ODOMETER / VESSEL MANUFACTURER	ODOMETER DECLARATION CERTIFICATION
FL	05/31/2021		XX		

LIEN INFORMATION

DATE OF LIEN

RECEIVED DATE

FEID # OR FL / DL AND SEX AND DATE OF BIRTH

DMV ACCOUNT #

NAME OF FIRST LIENHOLDER:

ADDRESS

SALVAGE TYPE

SELLER INFORMATION

NAME OF SELLER, FLORIDA DEALER, OR OTHER PREVIOUS OWNER

THE MOBILE HOME DEALER, LLC

ADDRESS

339 6TH AVE W STE 11

BRADENTON, FL 34205-8820

DEALER LICENSE NO.

BH11296421

CONSUMER OR SALES TAX EXEMPTION #

SALES TAX AND USE REPORT

TRANSFER OF TITLE ☐ PURCHASER HOLDS VALID
IS EXEMPT FROM EXEMPTION CERTIFICATE
FLORIDA SALES OR ☐ VEHICLE / VESSEL WILL BE
USE TAX FOR THE USED EXCLUSIVELY FOR RENTAL
REASON(S) CHECKED ☐ OTHER

INDICATE TOTAL PURCHASE PRICE, INCLUDING ANY
UNPAID BALANCE DUE SELLER, BANK OR OTHERS \$

INDICATE SALES OR USE TAX DUE AS PROVIDED BY CHAPTER 212, FLORIDA STATUTES \$ 0.00

☐ SELLING PRICE VERIFIED

APPLICANT CERTIFICATION

I HEREBY CERTIFY THAT THE VEHICLE/VESSEL TO BE TITLED WILL NOT BE OPERATED UPON THE PUBLIC HIGHWAYS/WATERWAYS OF THIS STATE.

I CERTIFY THAT THE CERTIFICATE OF TITLE IS LOST OR DESTROYED.

I CERTIFY THAT THIS MOTOR VEHICLE/VESSEL WAS REPOSSESSED UPON DEFAULT OF THE LIEN INSTRUMENT AND IS NOW IN MY POSSESSION.

I HEREBY CERTIFY THAT I AM LAWFULLY OWN THE ABOVE DESCRIBED VEHICLE/VESSEL, AND MAKE APPLICATION FOR TITLE. IF LIEN IS BEING RECORDED NOTICE IS HEREBY GIVEN THAT THERE IS AN EXISTING WRITTEN LIEN INSTRUMENT INVOLVING THE VEHICLE/VESSEL DESCRIBED ABOVE AND HELD BY LIENHOLDER SHOWN ABOVE. I AM FURTHER AGREE TO DEFEND THE TITLE AGAINST ALL CLAIMS.

UNDER PENALTIES OF PERJURY, I DECLARE THAT I HAVE READ THE FOREGOING DOCUMENT AND THAT THE FACTS STATED IN IT ARE TRUE.

Signature of Applicant/Owner

Signature of Applicant/Ce-Owner

HSMV 82041 REVISED 03/06

SCAN CODE

MVT

I UNDERSTAND THAT MY DRIVER LICENSE AND REGISTRATIONS WILL BE SUSPENDED IMMEDIATELY IF THE INSURER DENIES
THE INSURANCE INFORMATION SUBMITTED FOR THIS REGISTRATION.

MYFL8021Y

00026

Tammy Dyce
900 9th AV E
Lot 1
Palmetto FL 34221

November 12, 2024

CERTIFIED MAIL

Rolf Hanson
Kingsley Management Corporation
4956 N 300 W
Provo UT 84604

Re: FEMA Laws

Dear Mr. Hanson:

As you are aware my home was destroyed by Hurricane Milton. The lease for Lot 1 Colonial Manor should become null and void, terminated as of Novemer 1, 2024 as the home is not habitable due to damage from the storm. Per FEMA with Florida Statue 83.63 you are being notified of this in writing. Your park staff as well as yourself have seen the home and are away of this.

Your office staff are showing me as late for rent with a late as well as incorrect written information on the notice left on my door about a water bill. My water bill has been paid monthly and is not late. Documentation can be provided from my Oates Engery account,

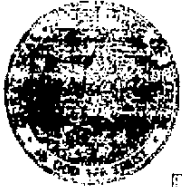
Lastly there has not been any power at this resident since Milton went thru and the power line is currently laying between lots 1 and 2. This letter is

being sent to FEMA, Governor Ron DeSantis and Congressman Marco Rubio.

Respectfully,

Tammy Dyce

Cc: Marco Rubio, Congressman
Governor Ron DeSantis
FEMA



Ron DeSantis, Governor

Melanie S. Griffin, Secretary



STATE OF FLORIDA
DEPARTMENT OF BUSINESS AND PROFESSIONAL REGULATION

CONSTRUCTION INDUSTRY LICENSING BOARD

THE BUILDING CONTRACTOR HEREIN IS CERTIFIED UNDER THE
PROVISIONS OF CHAPTER 489, FLORIDA STATUTES

PARKS, GARY DUANE

G & S CONSTRUCTION SERVICES INC
11315 CARTER ROAD
PALMETTO FL 34221

LICENSE NUMBER: CBC1257623

EXPIRATION DATE: AUGUST 31, 2026

Always verify licenses online at MyFloridaLicense.com

ISSUED: 06/04/2024

Do not alter this document in any form.

This is your license. It is unlawful for anyone other than the licensee to use this document.





00029

City of Palmetto
Development Services
Building Department
663 17th Street West
Palmetto, FL 34221
941-723-1580

Dec. 3rd 2024

Notice of Condemnation - Action Required

This letter serves as official notification that the mobile home located at 900 9th Ave East, unit 1, Palmetto FL, has been deemed structurally unsafe and is hereby condemned by the City of Palmetto Building department due to severe structural damage identified during our recent inspection.

Please feel free to contact our office if you have any further questions.

A handwritten signature in black ink, appearing to read "Steve Spangler".

Steve Spangler
Building Official
City of Palmetto

00030

U-HAUL® Equipment Contract**One-Way Rental (Out)**Contract No: 19234155
Tuesday, 12/24/2024 11:49 AMEquipment:
TT 1674M
(732) 468-3954
(510) 314-1663
DL 00002958 MS 1232
george.yeske
@gmail.comDispatched From: 330066
Safe-Protection: (NG)

Roadside Assistance:

Customer Name:
GEORGE YESKE
14362 Oneal Rd
Gulfport, MS 39503Renting Location:
U-HAUL MOVING & STORAGE OF
BRADENTON - (833)0066
3602 14TH ST W
BRADENTON, FL 34205
(941) 747-3744

U-Haul App

Authorized Driver(s): GEORGE YESKE

Towing Vehicle: U-Haul Truck

I understand that I must not exceed the recommended allowed cargo weight of 2400 pounds, which is considered a FULL load.
I agree that only the "Towing Vehicle" listed on the contract will be used to tow U-Haul Equipment.

Drop Off Equipment At:
U-HAUL STORAGE OF GULFPORT
Call (228) 864-6672 when you arrive in GULFPORT.
MSDrop Off Address:
1132 PASS RD
GULFPORT, MS 39501
(228) 864-6672

Due Date/Time: 12/29/2024 11:43 AM

Days Allowed: 4

Extra Days Allowed: 1

MI Allowed: 709

Extra Miles: 100

If you return after store hours please verify your equipment return on your mobile device using the U-Haul App. Or you can choose to have a U-Haul Representative verify it for you the next business day. There is a \$20.00 convenience fee for this option.

Destination:
GULFPORT, MS

Extra day rate for the TT 940.00 per day.

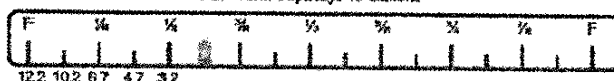
\$1.88 Per MI

Equipment	MI Out	Coverage	Rental Charge	Total Charges:
TT1674M AL89724-42	29162.7	-	\$1,165.00	\$1,165.00
Picking Up RV on 12/26/2024 at 9:45 AM on contract 19267465				

Part Code	Description	Item Cost	Quantity	Line Cost
MGLOVE	Wrist Coated Work Gloves - Medium	\$3.95	100 ea.	\$3.95

REGULAR CHECK-IN - EMAIL ON FILE

Fuel Tank Capacity: 40 Gallons



Estimated Gallons needed to return to dispatched level of 5/16

Sales Subtotal: \$3.95
Tax: \$0.28
Total Sales: \$4.23Vehicle License Recovery Fee - FL HW Truck: \$1.20
Environmental Fee: \$5.08
Estimated Rental Subtotal: \$1,191.20
Rental Tax: \$53.38
Estimated Rental Charges: \$1,274.58

Card Type: Account: Type: Ref No.: Approved:
VISA CREDIT XXXX-XXXX-XXXX-1208 Payment: 435914625907 024521
Application Label: VISA Merchant ID: 4449001625453 Term ID: 006
CREDIT
AID: A0000000031010 TVR: 5000000000 TSI: 6590

Prepaid Trailer/Towing Rental: \$0.01
Estimated Trailer/Towing Charges: \$0.01
Estimated Total Charges (Including Deposit): \$1,275.51
Credit Card Payments: \$1,275.52
Net Paid Today: \$1,275.52

- Customer agrees to verify U-Haul Vehicle's fuel level before leaving the premises and return it with the same amount of fuel. Customer agrees to pay a \$4.25 per gallon convenience fee for the estimated fuel not replaced and an additional \$30.00 service fee if returned with less than 1/4 tank. Company does not reimburse if U-Haul Vehicle is returned with more fuel than the amount at dispatch. Company does reimburse for motor oil (save receipts).
- SafeMove Declined for Equipment TT1674M
- Vehicle License Recovery Fee—a rental company may impose a fee separately stated in the rental agreement for the purpose of covering the costs of titling and registering a rental motor vehicle.
- Failure to return rental property or equipment upon expiration of the rental period and failure to pay all amounts due, including costs for damage to the property or equipment are prima facie evidence of intent to defraud, punishable in accordance with section 812.155, Florida Statutes.
- U-Haul provides the Customer with minimum limits of protection required by that state or province where arises any claim, suit or cause of action. The valid and collectible liability insurance and personal injury protection insurance of any authorized rental or leasing driver is primary of the limits of liability and personal injury protection coverage required by ss. 324.02(1)(7) and 627.736, Florida Statutes.
- I agree to indemnify, defend and hold harmless U-Haul from and against all claims, damages and expenses resulting from the use of this equipment, including any fraudulent use.
- Customer understands Equipment must be returned to the drop-off location listed above, or if none listed, Customer must call the drop-off number above.
- Customer understands Equipment is water resistant and not waterproof.
- Customer agrees they have received and are responsible for fully reading, understanding, and complying with applicable U-Haul User Instructions before and while operating Equipment.
- CUSTOMER ACKNOWLEDGES AND AGREES THAT THIS U-HAUL EQUIPMENT CONTRACT IS SUBJECT TO THE U-HAUL ARBITRATION AGREEMENT HEREBY INCORPORATED BY REFERENCE AND AVAILABLE AT UHAUL.COM/LEGAL/ARBITRATION OR FROM THEIR LOCAL U-HAUL REPRESENTATIVE THAT GOVERNS ANY DISPUTES BETWEEN THEM AND U-HAUL. THIS ARBITRATION AGREEMENT WILL: 1) ELIMINATE CUSTOMER'S RIGHT TO A JURY TRIAL, AND 2) SUBSTANTIALLY AFFECT CUSTOMER'S RIGHTS, INCLUDING PREVENTING CUSTOMER FROM BRINGING, JOINING, OR PARTICIPATING IN CLASS ACTION OR CONSOLIDATED PROCEEDINGS. CUSTOMER ACKNOWLEDGES THE APPLICABLE U-HAUL ARBITRATION AGREEMENT IS THAT WHICH IS IN EFFECT AS OF THE DATE OF THIS TRANSACTION.
- Customer acknowledges they have received, understand, and agree to all terms and conditions of this U-Haul Equipment Contract and the Rental Contract Addendum.
- The failure to timely return Equipment as stated herein shall be a material breach and shall constitute theft, conversion, or another crime subject to applicable law. If Company is required to recover Equipment, Company will provide Customer notice at their provided contact information. Upon service of notice, Customer shall contact Company within 72 hours to remove any Cargo. If Customer does not contact Company within that time, Customer agrees Company will dispose of all Cargo at Company's sole discretion and cost.
- "AUTHORIZED DRIVER"—Any driver listed on the U-Haul Equipment Contract as authorized by Company to operate Equipment. "UNAUTHORIZED DRIVER"—Anyone NOT listed on the U-Haul Equipment Contract as an "Authorized Driver."
- Customer acknowledges they received a text/email at their provided contact information, which provides Customer the opportunity to acknowledge Equipment's condition, cleanliness, mileage, license plate, and fuel at the time of the rental. If Customer does not respond, Customer hereby accepts Equipment as represented in the text/email. Customer agrees they are responsible for any and all damage, cleaning, mileage, and fuel charges as determined by Company upon return of Equipment.
- Equipment in Customer's possession may be equipped with a U-Haul Location Tracking Device and/or OEM devices (such as OnStar®). Location information may be accessed for the reasons set forth in the U-Haul Privacy Policy available at uhaul.com/Legal/PrivacyNotice.

montreese d

X

GEORGE YESKE

U-Haul Signature - (montreese d)

Questions or need help? Call me.

(941) 747-3744

20241127/14/12/27

U-HAUL® Receipt

00031



One-Way Return (In)

Contract No: 19024156
Sunday, 12/29/2024 11:45 AM

U-HAUL STORAGE OF GULFPORT
740266

1122 PASS RD
GULFPORT MS 39501

(228) 864-9872

Customer Name:
GEORGE YESKE
14382 Onstar rd
Gulfport, MS 39503

Cell Ph - Email:
(727) 466-3954
george.yeske
@gmail.com

Authorized Driver(s): GEORGE YESKE

Rental Date/Time: 12/24/2024 11:45 AM

Return Date/Time: 12/29/2024 11:45 AM Dispatching Location: 830966

Days Allowed: 5

MI Allowed: 709.0



Truck Details:	Amount
Truck: TT167461	
Mileage: OUT = 29169.7 IN = 29817.5	
Total Truck Charges	\$0.00

Total Equipment Charges:	Amount
Subtotal:	\$0.00
Rental Tax:	\$0.00
Grand Total:	\$0.00

Net Paid Today: \$0.00

- Failure to return rental property or equipment upon expiration of the rental period and failure to pay all amounts due, (including costs for damage to the property or equipment) are prima facie evidence of intent to defraud, punishable in accordance with section 812.155 Florida statutes.
- U-Haul provides the Customer with minimum limits of protection required by that state or province where arises any claim, suit or cause of action. The valid and collectible liability insurance and personal injury protection insurance of any authorized rental or leasing driver is primary of the limits of liability and personal injury protection coverage required by ss. 324.02(1)(7) and 627.736 Florida Statutes.
- I agree to indemnify, defend and hold harmless U-Haul from and against all claims, damages and expenses resulting from the use of this equipment, including any fraudulent use.
- I confirm that during the term of my rental there was not an accident involving the rented U-Haul equipment and no incidence where this equipment struck or otherwise caused damage to any person or property either while on a public road or private property. There was no injury or damage sustained by me or any other drivers or passengers of this equipment.
- Equipment in Customer's possession may be equipped with a U-Haul Location Tracking Device and/or OEM devices (such as OnStar®). Location information may be accessed for the reasons set forth in the U-Haul Privacy Policy available at [ubail.com/Legal/PrivacyNotice](https://www.ubail.com/Legal/PrivacyNotice).

Kayla R

X

GEORGE YESKE

U-Haul Signature - (Kayla R)

How are we doing? Please go to <https://www.ubail.com/review> and let us know if you received the level of quality and service you expect from this U-Haul location.

MobileContractClose

**George Edward Yeske III
14382 O'Neal Rd
Gulfport, MS 39503
702-466-3954**

**IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT IN AND FOR MANATEE
COUNTY, FLORIDA**

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff, Counter Claim Defendant

VS,

Case No.: 2025CC000715AX

GEORGE EDWARD YESKE, III
and ANY
UNKNOWN PARTY(s) IN POSSESSION,
Defendants and Counter Claim Plaintiffs

First Set of Interrogatories

C. Nate Nelson - Manager
Plaintiff's,
Counter Claim Defendant's LLC

RULE 1.340. INTERROGATORIES TO PARTIES
(a) Procedure for Use.

(1) Without leave of court, any party may serve on any other party written interrogatories to be answered:

(A) by the party to whom the interrogatories are directed; or

(B) if that party is a public corporation, private corporation, partnership, association, or governmental agency, by any officer or agent, who must furnish the information available to that party.

(2) Interrogatories may be served on the plaintiff after commencement of the action and on any other party with or after service of the process and initial pleading on that party.

(3) The interrogatories must not exceed 30, including all subparts, unless the court permits a larger number on motion and notice and for good cause.

(4) If the supreme court has approved a form of interrogatories for the type of action, the initial interrogatories on a subject included within must be from the form approved by the court.

(5) A party may serve fewer than all of the approved interrogatories within a form.

(6) Other interrogatories may be added to the approved forms without leave of court, so long as the total of approved and additional interrogatories does not exceed 30.

(7) Each interrogatory must be answered separately and fully in writing under oath unless it is objected to, in which event the grounds for objection must be stated and signed by the attorney making it.

(8) The grounds for objecting to an interrogatory must be stated with specificity, including the reasons. Any ground not stated in a timely objection is waived unless the court, for good cause, excuses the failure.

(9) The party to whom the interrogatories are directed must serve the answers and any objections within 30 days after the service of the interrogatories, except that a defendant may serve answers or objections within 45 days after service of the process and initial pleading on that defendant. The court may allow a shorter or longer time.

(10) The party submitting the interrogatories may move for an order under rule 1.380(a) on any objection to or other failure to answer an interrogatory.

(b) Scope; Use at Trial.

(1) Interrogatories may relate to any matters that can be inquired into under rule 1.280(c), and the answers may be used to the extent permitted by the rules of evidence except as otherwise provided in subdivision (b).

(2) An interrogatory otherwise proper is not objectionable merely because an answer to the interrogatory involves an opinion or contention that relates to fact or calls for a conclusion or asks for information not within the personal knowledge of the party.

(3) A party must respond to an otherwise proper interrogatory by giving the information the party has and the source on which the information is based.

(4) A qualified answer may not be used as direct evidence for or impeachment against the party giving the answer unless the court finds it otherwise admissible under the rules of evidence.

(5) If a party introduces an answer to an interrogatory, any other party may require that party to introduce any other interrogatory and answer that in fairness ought to be considered with it.

(c) Option to Produce Records.

(1) When the answer to an interrogatory may be derived or ascertained from the records (including electronically stored information) of the party to whom the interrogatory is directed or from an examination, audit, or inspection of the records or from a compilation, abstract, or summary based on the records and the burden of deriving or ascertaining the answer is substantially the same for the party serving the interrogatory as for the party to whom it is directed, then an answer to the interrogatory specifying the records from which the answer may be derived or ascertained and offering to give the party serving the interrogatory a reasonable opportunity to examine, audit, or inspect the records and to make copies, compilations, abstracts, or summaries is a sufficient answer.

(2) An answer must be in sufficient detail to permit the interrogating party to locate and to identify, as readily as can the party interrogated, the records from which the answer may be derived or ascertained, or must identify a person or persons representing the interrogated party who will be available to assist the interrogating party in locating and identifying the records at the time they are produced.

(3) If the records to be produced consist of electronically stored information, the records must be produced in a form or forms in which they are ordinarily maintained or in a reasonably usable form or forms.

(d) Effect on Co-Party. Answers made by a party are not binding on a co-party.

(e) Service and Filing.

(1) Interrogatories must be served on the party to whom the interrogatories are directed and copies must be served on all other parties.

(2) A certificate of service of the interrogatories must be filed, giving the date of service and the name of the party to whom they were directed.

(3) The answers to the interrogatories must be served on the party originally propounding the interrogatories and a copy must be served on all other parties by the answering party.

(4) The answers to interrogatories may be filed in compliance with Florida Rule of General Practice Judicial Administration 2.425 and rule 1.280(h) by any party when the court should consider the answers to interrogatories in determining any matter pending before the court.

(5) The court may order that the answers to interrogatories be filed at any time when the court determines that examination of the answers to interrogatories is necessary to determine any matter pending before the court.

TO: Cheryl Peaks

DATE: September 2, 2025

As per the above rules and all others that may apply, you are hereby directed to answer all of the following questions fully and truthfully.

The Defendant, George E. Yeske hereby asks the following questions:

1. For the record, please state your full name, date of birth, address, phone number and your place of employment, with job title, between the dates of December 31, 2024 and February 28, 2025.
2. For the record, please list your educational background including schools which you have attended, graduated from, the dates of attendance and your GPA.
3. What is the name of all employees of COLONIAL MANOR MHC HOLDINGS, LLC who are reporting to you as manager of COLONIAL MANOR MHC HOLDINGS, LLC as well as state your normal work hours and days and how to contact you?
4. What are your specific duties and responsibilities as they relate to your job and have you been trained to perform those duties?
5. State the names, addresses and phone numbers of all other entities or parties who are also listed as manager of COLONIAL MANOR MHC HOLDINGS, LLC and the average time per week they and you individually spend managing the operations of the LLC.

6. Have you, as a manager or shareholder of any company, corporation or other business type entity been involved in any legal proceedings in the past 10 years, and please state the case numbers and courts as well as any outcomes of said cases?

7. Have you ever provided, caused to be provided to any customer or resident of any company or organization that you held a management position with confidential information to a third party without authorization of the subject of that third party information?

8. During the months of January and February of 2025, what were the accepted forms of payment for lot rent at Colonial Manor and were there any additional charges above the monthly rent for using any of those methods of payment paid to COLONIAL MANOR MHC HOLDINGS, LLC and what was the notice period given to the residents of the property known as Colonial Manor Mobile Home park located at 900 9th Ave East, Palmetto, FL 34221?

9. Is it true that you told, conveyed in any form be it written or verbal, residents of Colonial Manor Mobile Home Park that COLONIAL MANOR MHC HOLDINGS, LLC or Colonial Manor Mobile Home Park operate under the laws of any other state than Florida?

10. In your position as manager for COLONIAL MANOR MHC HOLDINGS, LLC do you ever have cause to order background checks on the tenants of Colonial Manor Mobile Home park and if so what is the minimum criteria of tenancy and as a result of negative results of any background checks, have you ever rejected applicants for residency and if so, how are they informed?

11. After the above case was filed, have you or any other employees or agents acting on behalf of COLONIAL MANOR MHC HOLDINGS, LLC entered the property located at 900 9th Ave East, Lot 38, Palmetto, FL 34221 and if so, what was the reason and results?
12. Have you provided and/or instructed a subordinate to provide George E. Yeske any written instruments including notices, letters, or other written documents between October 1, 2023 and February 28, 2025?
13. Do you or others on your behalf provide training to your employees of COLONIAL MANOR MHC HOLDINGS, LLC and if so, what form does that training consist of?
14. How long have you been in the managing COLONIAL MANOR MHC HOLDINGS, LLC?
15. How long have you been in the business of operating, owning or investing in mobile home parks and what states are they located?

16. What are the names and addresses of all other mobile home parks which you have a management position?

17. As a business manager, have any of your businesses been sanctioned, ordered out of business or restricted from conducting business in any location while under your management?

18. As manager of COLONIAL MANOR MHC HOLDINGS, LLC do you approve of all lawsuits filed on behalf of the COLONIAL MANOR MHC HOLDINGS, LLC prior to their filing?

19. Please indicate the names, phone numbers and addresses of any party who assisted you in any way with the answers to these interrogatories.

Please reply to each question in the space provided. In the event you require more space to answer any questions, please reply on a separate sheet for each answer with the question number clearly PRIOR TO THE ANSWER.

Please reply to all questions no later than October 3, 2025.

A handwritten signature in black ink, appearing to read "George Yeske". The signature is fluid and cursive, with the first name "George" and last name "Yeske" clearly distinguishable.

George Yeske

14382 Oneal Rd
Gulfport, MS 39503

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2025-CC-

GEORGE EDWARD YESKE, III and ANY
UNKNOWN PARTY(s) IN POSSESSION,
Defendants.

DEFENDAT'S ANSWER AND COUNTERCLAIM TO THE ABOVE CAPTIONED ACTION
COMPLAINT (CIVIL ACTION) SEEKING POSSESSION (EVICTION) AND DAMAGES

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, sues the Defendant(s), GEORGE EDWARD YESKE, III and ANY UNKNOWN PARTY(s) IN POSSESSION, in possession of certain premises more fully described below, and alleges:

COUNT:

ACTION FOR POSSESSION

1. The Defendant has no specific knowledge of this claim and therefore denies.
2. The Defendant has no specific knowledge of this claim and therefore denies.
3. The Defendant has no specific knowledge of this claim and therefore denies.
4. Defendant Agrees.
5. Defendant, agrees he entered into a rental agreement for the address however denies specific knowledge of ownership.
6. Defendant has not lived in, nor permitted anyone to live in the said home since it's destruction as a result of hurricane damage done by Hurricane Milton on or about October 10th, 2024 and was shortly thereafter deemed unsafe for habitation by FEMA inspectors on or about October 28th 2024.
7. Defendant, admits he is the owner of record.
8. Defendant has no specific knowledge of this claim and therefor denies.
9. Defendant denies specific knowledge of other residents of the park is is aware that not all residents are required to lease lots nor do all residents own the homes located on those lots and has

evidence that this specific claim is false and Plaintiff, by and through their attorney knowingly filed this false information with the court.

10. Defendant admits.
11. Defendant is not aware of the monthly rent currently charged for said lot and therefore denies.
12. Defendant denies this claim.
13. Defendant denies this claim.
14. Defendant denies this claim and challenges Plaintiff to provide evidence of such service.
15. Defendant denies this claim.
16. Defendant denies this claim since he has no knowledge of what the Plaintiff does or does not know and sees no evidence to support this claim.
17. Defendant denies this claim since award of attorney fees is not specific.
18. Defendant denies this claim.
19. Defendant is not aware of who Plaintiff does specific legal business with.
20. Defendant denies.
21. Defendant denies.

WHEREFORE, Defendant requests this Honorable Court enter a judgment for dismissal of Plaintiffs claim as a matter of law or due to lack of actual evidence.

COUNT II

ACTION FOR DAMAGES (RENTAL)

22. Defendant is not aware of any actual damage amounts Plaintiff is claiming and therefore denies. Plaintiff re-alleges the facts contained within paragraphs 1 through 21 as though fully

- 23. Defendant denies this claim since that is not the amount stated on the lease he signed.
- 24. Defendant denies.
- 25. Defendant has no knowledge of any stipulations or agreement Plaintiff has made with purported legal counsel.

WHEREFORE, Defendant asks the Court to deny Plaintiff's Second claim of action.

Defendant's First Claim for Relief

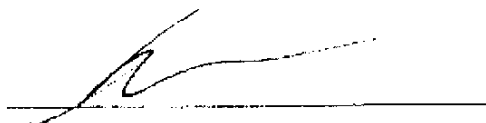
- 26. The Defendant does not owe rent past the condemnation date of said trailer and had moved all property from the trailer in late December of 2024, and he did pay it through the end of 2024 as evidenced by the Plaintiff not making claim for rent prior to January 1, 2025.
- 27. Plaintiff was provided with a written notice of the abandonment of said unlivable property dated November 21, 2024 and delivered to Rolf Hanson via mail, the district manager for the mobile home park known as Colonial Manor, located at 900 9th Ave East, Palmetto, Florida with a copy placed in the office mail slot in the park clubhouse which is attached and marked as Defendant's Exhibit 2.
- 28. According to Florida Statute, specifically **Florida 83.63:**

[83.63 Casualty damage.—If the premises are damaged or destroyed other than by the wrongful or negligent acts of the tenant so that the enjoyment of the premises is substantially impaired, the tenant may terminate the rental agreement and immediately vacate the premises. The tenant may vacate the part of the premises rendered unusable by the casualty, in which case the tenant's liability for rent shall be reduced by the fair rental value of that part of the premises damaged or destroyed. If the rental agreement is terminated, the landlord shall comply with s. 83.49(3)]
- 29. Since the home is uninhabitable, and officially declared condemned by the city of Palmetto, specifically the Building department, no rent is due and any damages the Plaintiff's claim were the result of that action by the City, not by this Defendant. The notice of condemnation is attached to this claim and marked as

Defendant's Exhibit 1.

30. As a result of the Plaintiff filing their action against the Defendant, he has sustained damages including Court costs and other such expenses related to this case.
31. The Defendant believes this late and inaccurate claim was filed due to him going forward in US District Court with a claim against several members of the management team of Colonial manor due to their constant interference in a sale of another home in the park in which Mr. Price is well aware of and has stated in writing that this Defendant has done nothing wrong and then went on to cite a non-existent court ruling made by another Judge during another attempted at eviction, that failed, of the persons who properly purchased and occupied another home in the park.
32. Plaintiffs did not send service of this case to Defendant at his last known address and employees of the Park have bragged to other residents that while the Plaintiff is aware of the Defendants address since at least December 4th 2024 when he received mail from the park regarding the condition of lot 38.

WHEREFORE the Defendant asks this court to dismiss in whole the claims made by the Plaintiff, sanction their Attorney for filing untrue information with the court, and award damages to the Defendant to cover Defendant's costs and any other such damages the Court see fit to award.



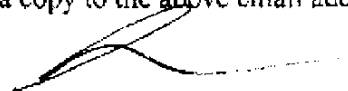
George E. Yeske
14382 O'Neal Rd
Gulfport, MS 39503
702-466-3954

CERTIFICATE OF SERVICE ✓

I HEREBY CERTIFY that a true copy of the foregoing action has been served on Plaintiff's claimed Attorney at the below postal address and email:

WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West Bradenton,
Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-3730
Primary E-Mail: pleadings@wcoricelaw.com Attorney for
Plaintiff

I certify that on March 1, 2025 I placed a copy of this document
in US mail, postage paid to the above address and further emailed
a copy to the above email address.


George Yeske



00045
Defendants
Exhibit 1

City of Palmetto
Development Services
Building Department
601 17th Street West
Palmetto, FL 34221
941-723-4580

January 17, 2025

Notice of Condemnation - Action Required

This letter serves as official notification that the mobile home located at Colonial Manor 900 Ninth Ave East, Lot 38 Palmetto FL has been deemed structurally unsafe and is hereby condemned by the City of Palmetto Building department due to severe structural damage identified during our recent inspection.

Please feel free to contact our office if you have any further questions.

A handwritten signature in black ink, appearing to read "Steve Spangler".

Steve Spangler
Building Official
City of Palmetto

Defendant Exhibit 2

George Yeske
900 9th AV E
Lot 38
Palmetto FL 34221

November 21, 2024

Rolf Hanson
Kingsley Management Corporation
4956 N 300 W
Provo UT 84604

Re: Florida Statutes

Dear Mr. Hanson:

As you are aware my home was destroyed by Hurricane Milton. The lease for Lot 38 Colonial Manor should become null and void, terminated as of December 31, 2024 as the home is not habitable due to damage from the storm. Per FEMA with Florida Statue 83.63 you are being notified of this in writing. Your park staff as well as yourself have seen the home and are aware of this. The home is slated for demolition in December of 2024.

Your office staff are also currently interfering with my income by attempting to create a hostile living environment for our tenants in 232 who are in process of purchasing that home. The buyers have been approved to live in the park and through implied consent are allowed to purchase a home there, which I have no problem litigating. Cheryl has been bragging about how she will refuse rent payments from them as advised by her lawyer. Perhaps you both should review the following:

**Title XLVI
CRIMES**

Chapter 825

**ABUSE, NEGLECT, AND EXPLOITATION OF ELDERLY PERSONS AND
DISABLED ADULTS**

825.102 Abuse, aggravated abuse, and neglect of an elderly person or disabled adult; penalties ---

(1) "Abuse of an elderly person or disabled adult" means:

(a) Intentional infliction of physical or psychological injury upon an elderly person or disabled adult;

(b) An intentional act that could reasonably be expected to result in physical or psychological injury to an elderly person or disabled adult;

(c) Active encouragement of any person to commit an act that results or could reasonably be expected to result in physical or psychological injury to an elderly person or disabled adult; or

(d) Intentionally, and without lawful authority, isolating or restricting access of an elderly person or a disabled adult to family members for any length of time which could reasonably be expected to result in physical or psychological injury to the elderly person or disabled adult, or with the intent to promote, facilitate, conceal, or disguise some form

of criminal activity involving the person or property of the elderly person or disabled adult. It is a defense to a violation of this paragraph that the defendant had reasonable cause to believe that his or her action was necessary to protect the elderly person or disabled adult from danger to his or her welfare.

A person who knowingly or willfully abuses an elderly person or disabled adult without causing great bodily harm, permanent disability, or permanent disfigurement to the elderly person or disabled adult commits a felony of the third degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084.

(2) "Aggravated abuse of an elderly person or disabled adult" occurs when a person:

- (a) Commits aggravated battery on an elderly person or disabled adult;
- (b) Willfully tortures, maliciously punishes, or willfully and unlawfully cages, an elderly person or disabled adult; or
- (c) Knowingly or willfully abuses an elderly person or disabled adult and in so doing causes great bodily harm, permanent disability, or permanent disfigurement to the elderly person or disabled adult.

A person who commits aggravated abuse of an elderly person or disabled adult commits a felony of the first degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084.

(3)(a) "Neglect of an elderly person or disabled adult" means:

1. A caregiver's failure or omission to provide an elderly person or disabled adult with the care, supervision, and services necessary to maintain the elderly person's or disabled adult's physical and mental health, including, but not limited to, food, nutrition, clothing, shelter, supervision, medicine, and medical services that a prudent person would consider essential for the well-being of the elderly person or disabled adult; or

2. A caregiver's failure to make a reasonable effort to protect an elderly person or disabled adult from abuse, neglect, or exploitation by another person.

Neglect of an elderly person or disabled adult may be based on repeated conduct or on a single incident or omission that results in, or could reasonably be expected to result in, serious physical or psychological injury, or a substantial risk of death, to an elderly person or disabled adult.

(b) A person who willfully or by culpable negligence neglects an elderly person or disabled adult and in so doing causes great bodily harm, permanent disability, or permanent disfigurement to the elderly person or disabled adult commits a felony of the second degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084.

(c) A person who willfully or by culpable negligence neglects an elderly person or disabled adult without causing great bodily harm, permanent disability, or permanent disfigurement to the elderly person or disabled adult commits a felony of the third degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084.

And let's address tortious interference, in simple terms interfering with a contractual agreement between two parties.

To understand tortious interference with contract under Florida law, consider the following key points:

Definition: Tortious interference with contract occurs when a third party intentionally disrupts a contractual relationship between two parties.

Elements: The plaintiff must prove four elements:

A valid contract exists.

The defendant had knowledge of the contract.

The defendant intentionally interfered with the contract.

The interference caused damages to the plaintiff.

Intent Requirement: The interference must be intentional and not merely negligent.

Justification Defense: Defendants may argue that their interference was justified or privileged, such as acting in their own economic interest.

Damages: Plaintiffs can seek compensatory damages for losses incurred due to the interference.

Statute of Limitations: In Florida, the statute of limitations for tortious interference claims is typically four years.

Business Relationships: Florida law also recognizes tortious interference with a business relationship, which has similar elements but does not require a formal contract.

Case Law: Florida courts have established precedents that clarify the application of tortious interference claims.

Burden of Proof: The burden of proof lies with the plaintiff to establish all elements of the claim.

As you already know, I have no problem engaging legal counsel and certainly would enjoy hearing how a judge in US District Court would react to this since Kingsley is doing business across state lines, a subject brought up by YOUR lawyer and confirmed by mine.

This letter is being sent to FEMA, Governor Ron DeSantis and Congressman Marco Rubio.

Respectfully,



George Yeske

Cc: Marco Rubio, Congressman
Governor Ron DeSantis
FEMA

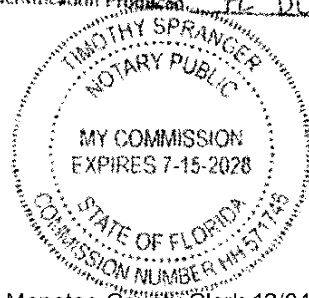
I Barry Leibowitz am making a sworn statement of fact.

I witnessed George Yoke and his wife had moved out of 900 9TH E LOT 38 on the 26TH of December ²⁰²⁴ using a U Haul trailer and van for the move of personal effects. Due to hurricane damage the trailer was unlivable. On the 27TH of December ²⁰²⁴ I was given permission to take up the new floor they had just installed and took fixtures and doors.

BARRY LEIBOWITZ

Barry Leibowitz

State of Florida
County of Manatee
The foregoing instrument was acknowledged before me by means of ☒ physical presence OR ☐ online notarization this 17 day of May, 2025 by Barry Leibowitz
Notary Signature [Signature]
Personally known ☐ OR produced identification ☒
Type of Identification Produced FL DL



[Page 1]

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

CASE NO.: 2025-CC-715

COLONIAL MANOR MHC HOLDINGS, LLC,

Plaintiff, vs.

GEORGE EDWARD YESKE, III, and ANY

UNKNOWN PARTY IN POSSESSION,

Defendants.

REMOTE HEARING BEFORE THE HONORABLE
RENEE INMAN
COUNTY COURT JUDGE

April 8, 2025

Commencing at 8:30 a.m.

Hearing

held remotely via Zoom Videoconference

REPORTED BY:

Lisa G. Moore, Stenographic Court Reporter

12th Judicial Circuit Court Approved

Notary Public, State of Florida at Large

[Page 2]

(1) APPEARANCES

(2)

(3) COUNSEL FOR PLAINTIFF:

(4) WILLIAM C. PRICE, III, ESQ. William C. Price,
III, P.A.(5) 522 12th Street West
Bradenton, Florida 34205-7411

(6) wcp3@wepri celaw.com monicam@wpclaw.com

(7)

(8) DEFENDANTS:

(9) GEORGE YESKE, Pro Se
14382 O'Neal Road

- (10) Gulfport, Mississippi 39503 george.yeske@gmail.com
- (11)
- (12)
- (13)
- (14)
- (15)
- (16)
- (17)
- (18)
- (19)
- (20)
- (21)
- (22)
- (23)
- (24)
- (25)

[Page 3]

- (1) PROCEEDINGS
- (2) THE COURT: Good morning. I'm going to turn the
- (3) volume down just a smidge.
- (4) Okay. We are here in Case Number 25-CC-715,
- (5) Colonial Manor Mobile Home Co-Op, is that what MHC
- (6) means, Holdings?

(7) MR. PRICE: MHC is the name of it. It's not a

(8) co-op, Judge, it's a Chapter 723 park.

(9) THE COURT: Okay. Colonial Manor MHC Holdings,

(10) LLC versus George Edward Yeske, III. This is a Zoom

(11) hearing. Everybody is present by Zoom. I am

(12) physically present in the courtroom.

(13) We are here today on Mr. Yeske's demand for a

(14) jury trial and determine rent, and I've got dismiss

(15) in there also. So it seems to me it would make sense

(16) to hear argument on the demand for jury trial and any

(17) request to dismiss first, and then we'll do the

(18) motion to determine rent.

(19) So, Mr. Yeske, I'm going to start with argument

(20) from you on those two matters. Go ahead, sir.

(21) MR. YESKE: Okay. In respect to the rent that

(22) is allegedly due in this case, there is none due. I

(23) terminated that -- I terminated that lease December

(24) 31st.

(25) THE COURT: Okay, hold on, hold on one second,

[Page 4]

(1) only because we're getting into something that --

(2) okay, so you're talking about the rent thing, and I'm

(3) going to swear you in for that part. So let me get

(4) you sworn in. Okay?

(5) Raise your right hand

(6) Do you swear or affirm the testimony you are

(7) about to give will be the truth, the whole truth, and

(8) nothing but the truth?

(9) MR. YESKE: I do.

(10) THE COURT: Thank you. Go ahead, sir.

(11) MR. YESKE: Okay. On November 21st, 2024, a

(12) letter was sent to Rolf Hanson, Kingsley Management

(13) Corporation.

(14) MR. PRICE: Judge, I'm going to object to any

(15) letter being sent. Objection as to the hearsay

- (16) testimony nature of it.
- (17) THE COURT: Okay. I'm going to allow it.
- (18) Mr. Yeske, go ahead.
- (19) MR. YESKE: As well as being left at the office
- (20) in the mail slot, and it was mailed in US mail to the
- (21) office at 900 9th Avenue East, Palmetto, which is the
- (22) address of the mobile home park. That terminated the
- (23) lot lease as of December 31st, which rent was paid
- (24) through December 31st.
- (25) Starting sometime in January my access to the

[Page 5]

- (1) rental portal was shut off, and it continues to be
- (2) shut off today. So even if I did owe rent in January
- (3) and February, I wouldn't have been able to pay it
- (4) anyway. So I think that point is a little bit moot
- (5) that anything is owed after the first of the year.
- (6) Further, the home is condemned due to extreme

(7) damage from the storm, and it was condemned by the
(8) city building inspector, and that's pretty well
(9) covered in State statute that if a place because
(10) untenable it's no longer rentable, the lease is
(11) terminated. And that would be Florida 83.63,
(12) Casualty Damage.

(13) Both of the exhibits, by the way of a copy of
(14) the letter as well as the condemnation notice, are
(15) attached to my answer as well as my cross-complaint.

(16) THE COURT: Okay. I want to make sure you
(17) understand, just because it is in the court file does
(18) not mean it is in evidence. So if it's something you
(19) want to offer into evidence, you are going to have to
(20) lay a foundation and you can offer it, and then if
(21) Mr. Price has any objections, I'll address those.

(22) MR. YESKE: Okay. The foundation for these,
(23) we'll start with Exhibit 1, that is the condemnation
(24) notice

(25) THE COURT: Okay --

[Page 6]

(1) MR. PRICE: Judge, it's not generated by

(2) Mr. Yeske. There's no foundation for it as being

(3) relevant to a Chapter 723 eviction.

(4) THE COURT: Okay, hold on one second. So let me

(5) just start at base here.

(6) Mr. Yeske, you are referencing a document. I

(7) don't know -- and so that we have a good record, what

(8) day are you talking about that it was filed and what

(9) is it attached to?

(10) MR. YESKE: It was filed the day that I filed

(11) the answer.

(12) THE COURT: Okay. So that would be March 3rd?

(13) MR. YESKE: That's correct, Your Honor.

(14) THE COURT: And --

(15) MR. YESKE: And it's listed as Defendants'

- (16) Exhibit 1
- (17) THE COURT: Okay. Defendants' Exhibit 1 to
- (18) Defendants' answer and counterclaim filed on March
- (19) 3rd.
- (20) So what is it that you want me to know about --
- (21) I haven't read the letter, let me know what it is you
- (22) want me to know about the letter as far as a
- (23) foundation goes.
- (24) And then, Mr. Price, if you have any objections
- (25) once he offers it, I'll hear it.

[Page 7]

- (1) Go ahead, Mr. Yeske.
- (2) MR. PRICE: Thank you.
- (3) MR. YESKE: Okay. This letter is signed by
- (4) Steve Spangler, the building official for the City of
- (5) Palmetto, and it declares the residence condemned and
- (6) uninhabitable. That was based on an inspection he

(7) did, according to this letter. And it basically says
(8) the house is structurally unsafe and condemned by the
(9) City of Palmetto Building Department due to severe
(10) structural damage.

(11) MR. PRICE: Judge, I want to retain the
(12) objection. It's a third party, it's hearsay. It
(13) goes tending towards the proof of the matter asserted
(14) if it made a difference, and I don't -- but I don't
(15) think it does because --

(16) THE COURT: Okay. So, Mr. Yeske, you are
(17) offering the letter into evidence. Mr. Price is
(18) objecting based on hearsay grounds and relevance
(19) grounds. Let me hear what your argument is to those
(20) legal objections, sir.

(21) MR. YESKE: Okay. It is not hearsay. This is a
(22) letter that was provided by the city, it is on city
(23) letterhead, and it is signed by a city official.
(24) It's not hearsay at all. It's actual evidence, Your

(25) Honor.

[Page 8]

- (1) What the relative nature of it is that it
- (2) supports my claim regarding Florida 83.63 regarding
- (3) casualty damage, and if the premises are damaged
- (4) either by wrongful or neglected acts -- the tenant --
- (5) so that the enjoyment of the premises is
- (6) substantially impaired, the tenant may terminate the
- (7) rental agreement, and that is what I did as of
- (8) December 31st.

- (9) THE COURT: Okay. Thank you.
- (10) Anything else on this letter, Mr. Price?

- (11) MR. PRICE: Judge, the statement of an official
- (12) from the City of Palmetto would be admissible if it
- (13) were actual testimony of the person. The letter in
- (14) and of itself doesn't have admissibility. It's not
- (15) identified as a business record. It's not identified

- (16) as something which is kept in the normal course of
- (17) business.
- (18) From its face it is a statement from the City of
- (19) Palmetto purportedly to the defendant which the
- (20) content is therefore hearsay. Because if you follow
- (21) what the statement is, assuming that it has
- (22) relevance, that the thing has happened, that there
- (23) was damage to the mobile home, there's no predicate
- (24) as to who the mobile belongs to, and that is
- (25) preliminary before we can get past this, even get

[Page 9]

- (1) past the admissibility of the document itself.
- (2) That's why it doesn't have enough foundation and
- (3) that's why its predicate fails.
- (4) THE COURT: Okay. Thank you.
- (5) Anything on that issue, Mr. Yeske?
- (6) MR. YESKE: Yes, Your Honor.

- (7) If Mr. Price doesn't know who this home belongs
- (8) to, the address of the home is on that letter, 900
- (9) 9th Avenue East, Lot 38, Palmetto, Florida. This is
- (10) the home in question of this hearing.
- (11) THE COURT: Okay.
- (12) MR. YESKE: If he does not know who that home
- (13) belongs to, why is he suing me?
- (14) THE COURT: Okay. Thank you.
- (15) Based on what I've heard as far as testimony and
- (16) as far as argument goes relating to this letter, I do
- (17) agree it's hearsay. So I'm going to sustain the
- (18) objection.
- (19) Mr. Yeske, you may continue your presentation.
- (20) sir.
- (21) MR. YESKE: Okay. In respect to a letter that I
- (22) sent to the park manager as well as her boss, I let
- (23) them know that the home was destroyed by the
- (24) hurricane. I sent them a copy of this letter. Later

(25) on this letter that I sent to the park was dated

[Page 10]

(1) November 21st. It was evidenced, delivered to the

(2) park which this is evidence it will come in at the

(3) jury trial I believe, and it states that the -- per

(4) FEMA and per Florida Statute the place is

(5) uninhabitable.

(6) Right now we are waiting for a demolition permit

(7) to take the place down --

(8) THE COURT: Okay.

(9) MR. YESKE: -- along with several others.

(10) THE COURT: So are you -- this letter that

(11) you're referencing, is that also attached to your

(12) answer and counterclaim filed on March 3rd?

(13) MR. YESKE: It is, it's Defendant Exhibit 2.

(14) THE COURT: Okay. And what I'm hearing you say

(15) is that you wrote this letter?

- (16) MR. YESKE: That's correct, Your Honor.
- (17) THE COURT: Okay. Mr. Price, any objection?
- (18) MR. PRICE: Yes, Judge, objection to the letter
- (19) and to the purposes contained within it. Purportedly
- (20) he sent a letter to someone by the name of Rolf
- (21) Hanson who is not a named party in this case,
- (22) advising that -- of their intention to cease residing
- (23) in the premises located as Lot Number, I think it's
- (24) 38, of Colonial Manor, 900 9th Avenue East, Palmetto.
- (25) The issue, among other things here, is that

[Page 11]

- (1) letter is inadmissible because it doesn't -- it also
- (2) contains hearsay with respect to -- to whom the
- (3) information is directed. So he might testify today
- (4) that he notified the park of the fact that he no
- (5) longer sought to reside in the mobile home, but
- (6) evidently he's indicated that there's a mobile home

- (7) still located on the site.
- (8) All of this is kind of a -- forgive me for
- (9) saying it, kind of a backwards way of looking at it.
- (10) But the claim is that -- and I'm assuming this is
- (11) pertaining to a motion to dismiss that there's no
- (12) obligation to pay rent on Lot 38 beyond, I'm
- (13) assuming, January -- or December 31st, 2024. So
- (14) that's not -- unfortunately that's not the issue in
- (15) an eviction.
- (16) I could ask a question of the defendant and that
- (17) is, if the Court allows, and of course I have
- (18) evidence to present.
- (19) THE COURT: Go ahead, Mr. Price, if you want
- (20) to --
- (21) -- EXAMINATION --
- (22) BY MR. PRICE:
- (23) Q Mr. Yeske, did you reside at Lot 38 of Colonial
- (24) Manor?

(25) A Briefly, yes.

[Page 12]

(1) Q Did you -- were you the owner of Lot 38 of

(2) Colonial Manor?

(3) A Well, according to you, I have not proven that

(4) so I don't know if that would be hearsay or not so I can't

(5) give you an answer on that.

(6) Q So, Mr. Yeske, please answer the question

(7) Were you the owner of Lot 38 of Colonial Manor?

(8) A Asked and answered in the affirmative, yes, I

(9) am.

(10) Q Yes, you did.

(11) All right. So did you give the title of the

(12) mobile home to Colonial Manor?

(13) A Yes, I did. I offered it to them and they

(14) refused it.

(15) Q So they -- so did you put the title of the

- (16) mobile home into Colonial Manor?
- (17) A How would I do that, sir? I don't understand
- (18) your question. How would I put this into Colonial Manor?
- (19) Q How did you come to purchase Lot 38, sir?
- (20) A I did not purchase it. It was left to me in a
- (21) man's will.
- (22) Q And when you became the recipient of the -- the
- (23) owner of the mobile home, did you go down to the tag
- (24) office and register it in your name?
- (25) A I did.

[Page 13]

- (1) Q And is it still registered in your name?
- (2) A It is.
- (3) MR. PRICE: So, Judge, I don't have any other
- (4) questions about this particular reference to this
- (5) letter.
- (6) MR. YESKE: I'm sorry?

(7) MR. PRICE: I don't have any other questions

(8) about the reference to the letter.

(9) THE COURT: Okay. Any other argument on the

(10) admission of the Exhibit 2 which is attached to his

(11) answer?

(12) MR. PRICE: Judge, still, the letter is not

(13) directed to Colonial Manor. It's directed to another

(14) company altogether.

(15) THE COURT: Okay.

(16) MR. PRICE: So my client is not chargeable with

(17) knowledge of it.

(18) THE COURT: Okay. Mr. Yeske, anything else on

(19) the admissibility of this letter?

(20) MR. YESKE: Yes, Your Honor.

(21) Kingsley Management Corporation owns the mobile

(22) home park, and Rolf Hanson is the district manager I

(23) believe is what his title is for Kingsley Management,

(24) and he visits the park quite frequently.

(25) MR. PRICE: Judge, none of that is evidence and

[Page 14]

(1) we represent it's not true.

(2) THE COURT: I'm going to receive Exhibit 2.

(3) Go ahead, Mr. Yeske, go ahead and finish up your

(4) presentation, sir.

(5) MR. YESKE: That pretty well sums up my

(6) presentation regarding these two items, the dismissal

(7) and the rent that's due.

(8) THE COURT: Okay.

(9) MR. YESKE: I don't believe any rent is due. I

(10) don't believe that there's anything to present with

(11) this by the plaintiff/cross-defendant.

(12) THE COURT: Okay. Thank you.

(13) Do you have any questions for him other than

(14) what you've already asked, Mr. Price?

(15) -- EXAMINATION --

(16) BY MR. PRICE:

(17) Q Mr. Yeske, is the mobile home that's still

(18) titled in your name still located on Lot 38?

(19) A What's left of it is, yes. It is not whole.

(20) Q Did you pay rent for the months of January,

(21) February, or March of 2025?

(22) A No, I did not because I terminated the lease

(23) December 31st in writing.

(24) Q So, Mr. Yeske, is it your position that you do

(25) not want the mobile home, that it's not your -- that you

[Page 15]

(1) no longer have any claim to the mobile home?

(2) A It is my position that the mobile home needs to

(3) be destroyed and demolished. I've applied for a permit to

(4) do that. The permits are delayed because there are so

(5) many in the park that are asking for them and surrounding

(6) parks.

(7) Q And so right now, though, certainly it's not the

(8) mobile home that belongs to Colonial Manor; is that

(9) correct?

(10) A It is not a mobile home that belongs to Colonial

(11) Manor.

(12) Q Is there anyone residing in Lot 38 right now?

(13) A Not to my knowledge. There's no --

(14) Q Do you have any objection to Colonial Manor

(15) owning the mobile home? Will you agree to sign the mobile

(16) home title over to Colonial Manor?

(17) A I would have to think about that.

(18) Q So it would be fair to say that you have not

(19) released your interest in the mobile home as we sit here

(20) today on April the 7th [sic], 2025?

(21) A Well, my interest in the mobile home was refused

(22) by Colonial Manor?

(23) Q That was not -- that was not an answer to the

(24) question that I asked of you. Is it true --

(25) A I'm sorry, please ask the question again.

[Page 16]

(1) Q It is true that you have not released all of
(2) your interest in the mobile home located on Lot 38 of
(3) Colonial Manor, isn't that true?

(4) A That is true that I have not legally released
(5) it. I have offered it for release. Your client has
(6) refused it.

(7) Q Thank you very much.

(8) MR. PRICE: No other questions of this witness
(9) on this purpose.

(10) THE COURT: Okay, thank you.

(11) Do you want to call your witness, Mr. Price?

(12) MR. PRICE: Yes, thank you. I'll call Cheryl
(13) Peake.

(14) Ma'am, please raise your -- Judge, can you see
(15) her?

(16) THE COURT: I can see her. She has to speak up

(17) nice and loud.

(18) Do you swear or affirm the testimony you're

(19) about to give will be the truth, the whole truth, and

(20) nothing but the truth?

(21) THE WITNESS: Yes.

(22) THE COURT: Thank you. You can put your hand

(23) down.

(24) Whenever you are ready, Mr. Price.

(25) -0-

[Page 17]

(1) -- EXAMINATION --

(2) BY MR. PRICE:

(3) Q Ma'am, please state your name for the record.

(4) A Cheryl Peake.

(5) Q And do you work for Colonial Manor MHC Holdings?

(6) A Yes, I do.

(7) Q Is that also known as Colonial Manor at Colonial

(8) Mobile Home Park?

(9) A Yes.

(10) Q Are there more than ten mobile homes located on

(11) Colonial Mobile Home Park?

(12) A Yes, sir.

(13) Q And is that located at -- are they all located

(14) essentially at 900 9th Avenue East in Palmetto, Manatee

(15) County, Florida, correct?

(16) A Correct.

(17) Q And one of those mobile homes that's located in

(18) Colonial Manor is Lot 38, is that -- identified as Lot 38;

(19) is that correct?

(20) A Correct.

(21) Q And is that the mobile home which is owned by

(22) George Edward Yeske, III?

(23) A Yes.

(24) Q What is the monthly rental for the months of --

(25) for the calendar year 2025 at Lot 38?

[Page 18]

(1) A 821 a month.

(2) Q And was -- and did Mr. Yeske pay the rent for

(3) the mobile home lot space on 38 for the months up to and

(4) including December of 2024?

(5) A Yes.

(6) Q But he has not paid the rent for the months of

(7) January through April of 2025, is that right?

(8) A Correct.

(9) Q And the sum that's owed for the months of

(10) January through April of 2025 is the sum of \$3,284?

(11) A Correct.

(12) Q Does a mobile home park also charge a late fee

(13) to people who don't pay the rent?

(14) A Yes.

(15) Q Did the mobile home park accept rent in the

- (16) month of January of 2025 from Mr. Yeske?
- (17) A No.
- (18) Q Why did you not accept rent from Mr. Yeske after
- (19) January of 2025?
- (20) A It was never offered.
- (21) Q Had it been -- had it been offered, would you
- (22) have accepted it?
- (23) A Yes.
- (24) Q Is rent available to be paid through a portal?
- (25) A Yes, it is.

[Page 19]

- (1) Q Is it also payable through -- payments through
- (2) check or another negotiable method?
- (3) A Yes, it is.
- (4) Q And did you notify Mr. Yeske of his failure to
- (5) pay rent for the months of January of 2025 in a timely
- (6) way?

(7) A Yes.

(8) Q Is there any -- does -- is Colonial Manor a

(9) mobile home park governed by Florida Statute 723?

(10) A Yes, it is.

(11) Q And have you -- and have you --

(12) MR. PRICE: Judge, have you seen the prospectus

(13) and rules and regulations --

(14) THE COURT: Yes.

(15) MR. PRICE: -- of the mobile home park in the

(16) past?

(17) THE COURT: I think they were provided to me

(18) yesterday. I have them but I have not reviewed them

(19) since they are kind of the same as Mr. Yoske, they're

(20) not in evidence at this point.

(21) MR. PRICE: I'm sorry, Judge. I saw that.

(22) BY MR. PRICE:

(23) Q So is there a prospectus consisting of six pages

(24) issued by the Department of Business and Professional

(25) Regulations with Colonial Manor?

[Page 20]

(1) A Yes.

(2) Q I want to show you the Colonial Mobile Manor

(3) prospectus, which has been provided to the Court and also

(4) to Mr. Yeske. Does this appear to be a fair and accurate

(5) copy of the prospectus in effect?

(6) A Yes, it is.

(7) Q Were there rules and regulations which Colonial

(8) Mobile Manor provides to its tenants including to

(9) Mr. Yeske?

(10) A Yes.

(11) Q Were the rules and regulations and the

(12) prospectus for the mobile home park provided to Mr. Yeske

(13) when he moved into the mobile home park?

(14) A Yes.

(15) Q Okay. Are you in possession of the mobile home

- (16) located in Lot 38 of Colonial Manor?
- (17) A No.
- (18) Q Is there anyone residing in Lot 38 right now to
- (19) the best of your knowledge?
- (20) A No.
- (21) Q Were folks residing in Colonial Manor in January
- (22) of 2025?
- (23) A Yes.
- (24) Q Is the failure to pay the rent the reason why
- (25) you are bringing this action for possession of the

[Page 21]

- (1) property?
- (2) A Yes.
- (3) MR. PRICE: No other questions, Judge.
- (4) THE COURT: Mr. Yeske, do you have any brief
- (5) questions? I want to make sure we all understand
- (6) that this was scheduled for 30 minutes.

(7) MR. YESKE: I do, Your Honor

(8) THE COURT: So, Mr. Yeske, understanding the

(9) very discreet issues we're here on today, do you have

(10) any questions for Ms. Peake?

(11) MR. YESKE: I do.

(12) -- EXAMINATION --

(13) BY MR. YESKE:

(14) Q Ms. Peake, who was living in -- you said that

(15) someone was living in the mobile home in January?

(16) A Yes.

(17) Q And who was that?

(18) A That was your wife.

(19) Q You're absolutely sure of that?

(20) A Yes.

(21) Q How are you sure of that?

(22) A Because I saw her with my own eyes.

(23) Q You saw her with your own eyes in January of

(24) 2025?

(25) A Correct

[Page 22]

(1) Q And you understand you are under oath right now?

(2) A Yes, I do.

(3) Q Do you have any evidence that you saw her or is

(4) this just your word?

(5) MR. PRICE: Objection, Judge, that's not --

(6) that's harassment, not a question seeking fact.

(7) MR. YESKE: It is in fact, Your Honor --

(8) THE COURT: Hold on. I'll allow the question.

(9) Ms. Peake, if you can answer, go ahead and

(10) answer.

(11) THE WITNESS: I have witnessed her car several

(12) times in the driveway overnight along with

(13) Mr. Yeske's vehicle as early as January 2025.

(14) BY MR. YESKE:

(15) Q You're absolutely sure?

- (16) What kind of car was my wife driving?
- (17) A I don't recall the make right offhand, but it
- (18) was a white vehicle. And you were driving a little
- (19) Maverick pickup that is kind of rust in color.
- (20) Q I see. So you are stating this under oath with
- (21) absolutely no proof?
- (22) MR. PRICE: Objection, Judge --
- (23) THE COURT: Sustained. Sustained.
- (24) Next question, Mr. Yeske.
- (25)

[Page 23]

- (1) BY MR. YESKE:
- (2) Q Ms. Peake, are you aware that there's a video of
- (3) that park -- of that home, Lot 38, from across the street
- (4) that runs 24/7, and they are --
- (5) A I'm not aware, no.
- (6) Q You're not aware of that. Okay.
- (7) MR. YESKE: No further questions, Your Honor.

- (8) THE COURT: All right. Thank you.
- (9) Mr. Price, any redirect?
- (10) MR. PRICE: No redirect, Judge.
- (11) THE COURT: Okay. Thank you.
- (12) No other witnesses from either party?
- (13) MR. PRICE: No, Your Honor.
- (14) MR. YESKE: No.
- (15) THE COURT: All right. Let's talk about briefly
- (16) the jury trial issue.
- (17) MR. PRICE: No objection.
- (18) THE COURT: No objection to setting this for
- (19) jury trial. Okay. So let me just ask then, how much
- (20) time, if we get to that point, how much time --
- (21) Mr. Price, since you're representing the plaintiff,
- (22) I'll start with you. Between jury selection and then
- (23) the trial itself, how much time do you think would be
- (24) necessary?
- (25) MR. PRICE: One day.

[Page 24]

- (1) THE COURT: With jury selection?
- (2) MR. PRICE: Yes, Your Honor.
- (3) THE COURT: So basically a half-day trial?
- (4) MR. PRICE: Yes, Your Honor.
- (5) THE COURT: Okay. So one day.
- (6) Mr. Yeske, do you agree?
- (7) MR. YESKE: No, I do not, Your Honor. I believe
- (8) it would be a full day.
- (9) THE COURT: Okay. So you're saying a day and a
- (10) half?
- (11) MR. YESKE: I am.
- (12) THE COURT: Okay. Here's what I'm going to have
- (13) to do. Because I'm going to make a determination on
- (14) the dismiss and the rent issue before, but my
- (15) assistant will reach out to you folks to get it
- (16) coordinated. If I end up agreeing -- the parties are
- (17) agreeing so -- you know, if I don't dismiss the case,
- (18) then we'll get it -- she'll reach out to you and

- (19) we'll get some dates set.
- (20) Any argument as far as what I've heard today?
- (21) MR. PRICE: Yes, Judge.
- (22) So there isn't a motion to dismiss filed by the
- (23) defendant in the case. There are -- there's a
- (24) counterclaim, but we don't get to any -- and there's
- (25) defenses. But, quite frankly, the defendant doesn't

[Page 25]

- (1) get to any of the defenses unless it pays the money
- (2) into the registry of the court that is owed. And
- (3) there's really no contest about how much money is
- (4) owed except for the contention of Mr. Yeske that he
- (5) doesn't owe rent at all.
- (6) Judge, apparently the Florida Statute 723.004
- (7) precludes any consideration of Chapter 83 or any of
- (8) its landlord-tenant statutes because this is a mobile
- (9) home park and that's what -- according to the court

- (10) and saying to you and saying to Mr. Yeske Chapter
- (11) 723.004, and it identifies it, preempts the subject
- (12) matter.
- (13) I also cited to the Court the Mansur versus
- (14) Eubanks case, Supreme Court of Florida back in 1981,
- (15) and that's the part that -- that is the statute that
- (16) changed the law which generated 83.63, the claimed
- (17) statute by Mr. Yeske.
- (18) So the reason why Chapter 83.63 is in opposites
- (19) to an eviction under a mobile home park statute is
- (20) twofold. One, in landlord-tenant under -- pursuant
- (21) to Chapter 723, the mobile home park and the tenants
- (22) are in a different situation vis-a-vis each other
- (23) In a mobile home park, as in here, Mr. Yeske owns the
- (24) mobile home. The park does not own the mobile home.
- (25) The limitations under which the mobile home park

- (1) can take possession of a mobile home are set out in
- (2) Florida Statute 723.061, a mobile home park can only
- (3) remove a tenant for failure to pay rent or for
- (4) violation of the park rules after a due procedure.
- (5) So in a Chapter 83.63, the casualty claim is
- (6) based upon the idea that a mobile -- sorry, that a
- (7) property owner has a responsibility to maintain the
- (8) premises itself. That is if it's an apartment, it's
- (9) the apartment itself. If it's a single-family
- (10) residence, it's a single-family residence.
- (11) We don't have any control over the contents of
- (12) the mobile home except as provided in the prospectus
- (13) and the rules, and there's no obligation in the
- (14) prospectus or rules for the plaintiff to be able to
- (15) manage or maintain the premises itself that is
- (16) Mr. Yeske's mobile home.
- (17) It is Chapter 723.063 says the defendant shall
- (18) not have any rights that prevents any of its defenses
- (19) unless it pays the rent into the registry of the

- (20) court. If he doesn't do it, then he don't get to
(21) present any defenses and a default should be granted
(22) against the defendant precluding its defenses itself.
(23) I'm so confident in that, that's the reason when
(24) he wouldn't object to a jury trial if Mr. Yeske were
(25) to be paying his rent into the registry court for the

[Page 27]

- (1) months of January through April and for all months
(2) thereafter until such time as the jury -- as the
(3) trial is conducted.
(4) THE COURT: Yes. Thank you.
(5) MR. PRICE: That's the law on this.
(6) THE COURT: Mr. Yeske, any closing arguments,
(7) sir?
(8) MR. YESKE: No, Your Honor.
(9) THE COURT: Okay. All right. So here's what
(10) I'll do, I'm going to put something in writing and I

- (11) will send it to everybody. I think I have good email
- (12) addresses for everybody. I do. So you will hear
- (13) further from me with a written order. Okay?
- (14) MR. PRICE: Judge, may I confirm from Mr. Yeske
- (15) his email address?
- (16) THE COURT: Mr. Yeske, what is your email, sir?
- (17) MR. YESKE: The same one he sent this stuff to
- (18) yesterday. George.Yeske@gmail.com.
- (19) THE COURT: Okay. If I determine that there is
- (20) rent that needs to be deposited into the registry or
- (21) zero rent that has to be deposited into the registry
- (22) and the case can move forward, I don't know if you
- (23) folks would at all be interested in mediation?
- (24) MR. PRICE: Sure.
- (25) THE COURT: Mr. Yeske, would you be interested

[Page 28]

- (1) in mediation? Do you understand what that is?

(2) MR. YESKE: Yes, I do understand, Your Honor.

(3) Frankly, in about ten minutes after this hearing is

(4) over, I'm heading down to the federal courthouse to

(5) file a federal complaint against the park in

(6) Mississippi here, so I don't think mediation would go

(7) anywhere.

(8) THE COURT: Okay. All right, so mediation is

(9) out.

(10) All right. Thank you so much everybody. Have a

(11) great day.

(12) MR. YESKE: Thank you, Your Honor, have a good

(13) day.

(14) MR. PRICE: Thank you, Your Honor.

(15) THE COURT: Thank you. Bye, bye.

00091

Vincent M. Lucette & Assoc., Inc.
A Court Reporting Firm

Phone 941.748.5285

Fax 941.748.5800

(16) (Proceeding concluded.)

(17)

(18)

(19)

(20)

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(23)

(24)

(25)

00092

Vincent M. Laurent & Assoc., Inc.
A Court Reporting Firm

Phone 941.748.3289

Fax 941.748.5800

04-08-25 Colonial Manor v Yeske
5/20/2025

Protected Work Product of:

Lisa Moor

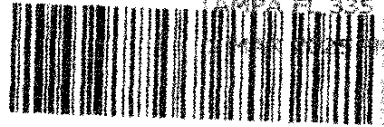
[Page 29]

(1)

REPORTER'S CERTIFICATE

"2025CC000715AX" 236990099 Filed at Manatee County Clerk 12/04/2025 08:36:44 AM EST

William C. Price, III, P.A.
Attorney and Counselor at Law
522 Twelfth Street West
Bradenton, Florida 34205



9589 0710 5270 0136 5666 20

US POSTAGE

\$ 009.64

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3-10-25
1st Attempt
LOB

Xihua Wei Yeske
900 9th Avenue East, Lot #233
Palmetto, Flor

34221-770224

Colonial Manor MHC
900 9th Ave East
Palmetto, FL 34221

TAMPA FL 338
SAINT PETERSBURG FL
27 FEB 2025 PM 7 L



NOTICE OF ORDER OF NEW ADDRESS
YESKE XIA
SAINT PETERSBURG, FL
34221-770224

34221-770224
157832147 00093

00094



Housing Discrimination Complaint

Case Number: 202235162

1. Complainants:

Jinrong Hendrick
900 9th Ave. East Lot 232
Palmetto, FL 34221

2. Complainant Representatives: None

3. Other Aggrieved Parties:

None

4. The following is alleged to have occurred or is about to occur:

- Discriminatory refusal to sell
- Discriminatory advertising, statements and notices
- Discriminatory terms, conditions, privileges, or services and facilities
- Otherwise deny or make housing unavailable

5. The alleged violation occurred because of:

- Sex
- Race

6. Address and location of the property in question (or if no property is involved, the city and state where the discrimination occurred):

900 9th Ave. East
Palmetto, FL 34221

7. Respondents:

Cheryl Peake, Property Manager
Kingsley Management Corp.
900 9th Ave East
Palmetto, FL 34221

Kingsley Management Corp.
 c/o Registered Agent Solutions, Inc., Registered Agent
 155 Office Plaza Dr., Ste A
 Tallahassee, FL 32301

Colonial Manor MHC Holdings, LLC
 c/o Registered Agent Solutions, Inc., Registered Agent
 155 Office Plaza Dr., Ste A
 Tallahassee, FL 32301

8. The following is a brief and concise statement of the facts regarding the alleged violation:

Complainant Jinrong Hendrick identified herself as a female of the Asian race. Therefore, the Complainant belongs to a class of persons whom the Fair Housing Act ("the Act") protects from unlawful discrimination by virtue of race and sex. The Complainant attempted to purchase a mobile home at "Colonial Mobile Manor" located at 900 9th Ave E, Palmetto FL 34221, which is owned by Respondent Colonial Manor MHC Holdings, LLC and managed by Respondent Kingsley Management Corp. The Complainant identified Respondent Cheryl Peake as the Property Manager.

The Complainant alleged that on May 6, 2022, the Respondents denied the Complainant's purchase application for sale, stating that it was because her employment, income, and six-month rental history were not verified. The Complainant alleged the Respondents never verified her employment status, and she provided bank statements to verify her income and that she was qualified. The Complainant alleged the Respondents denied her the opportunity to purchase a mobile home and otherwise denied or made housing unavailable. The Complainant alleged the Respondents would not question male tenants and allowed other male tenants who have criminal backgrounds to live and work on the property. The Complainant alleged Respondent Peake made a discriminatory statement regarding her race by stating, "It's bad enough that they have 2 of them (Asians) already." Based on the Respondent's comments, the Complainant believes she was denied the opportunity to purchase a mobile home based on her race and sex. As such, the Complainant believes the Respondents have subjected her to discriminatory statements, discriminatory terms, and conditions, discrimination refusal to sell, and otherwise denied or made housing unavailable based on her race and sex.

9. The most recent date on which the alleged discrimination occurred:

May 06, 2022, and is continuing.

10. Types of Federal Funding Identified: None

11. The acts alleged in this complaint, if proven, may constitute a violation of the following sections:

804(a), 804(c) , and 804(b) of Title VIII of the Civil Rights Act of 1968 as amended by the Fair Housing Act of 1988.

Please sign and date this form:

I declare under penalty of perjury that I have read this complaint (including any attachments) and that it is true and correct.

Jinrong Hendrick

Jinrong Hendrick

10/31/2022

Date

N O T E: HUD WILL FURNISH A COPY OF THIS COMPLAINT TO THE PERSON OR ORGANIZATION AGAINST WHOM IT IS FILED.

Colonial Mobile Manor
 900 9th Ave. East (U.S. 301 North)
 Palmetto, Florida 34221 Phone: (941) 722-3191

Lease Agreement

This lease is made this 1 day of JUNE, 2021, between Colonial Mobile Manor, Limited, hereinafter called "Landlord," and Vibha Yeske and George Yeske, hereinafter called "Resident." The Landlord leases to the Resident and the Resident leases from the Landlord LOT# 232 in Colonial Mobile Manor in Palmetto, Florida for a term to commence June 1, 2021 and terminate December 31st annually, and thereafter on a month-to-month basis, commencing on the first day of each month. Regardless of the length of residency, resident understands that rent increases may be put into effect with proper notice as is required by the Mobile Home Tenant Act ("the Act"). Notice of the increase shall be given in accordance with the Act prior to the effective date of the said increase.

The tenant agrees to pay a deposit of \$ 0

The amount of monthly rent initially charged for the manufactured home space is the sum of \$ 624.50 due on the first day of each month. Occupancy is based on one or two residents per lot. Each additional resident is charged \$ 900 per year, payable \$ 750 per month. Rent received after the date due is subject to an additional late rent fee of \$ 45.00. In addition, Resident agrees to pay all applicable State and Local taxes.

It is mutually agreed by the parties hereto, their heirs, executors, administrators, and successors that this rental is made and tenancy accepted upon the Rules and Regulations of Colonial Mobile Manor, Limited dated 01/01/2011, a copy of which the Resident acknowledges having received and read, and Resident agrees to abide by. Violation of any of the Rules or conditions of this lease by the Resident shall constitute a breach of the agreement.

In the case of non-renewal of this lease, the terms of this lease shall continue unless a new lease is entered into between the Landlord and the Resident or the tenancy is terminated.

This mobile home park is zoned "mobile home" under the zoning authority of Manatee County and the City of Palmetto, with no plans for changing the use of the land.

The Landlord and the Resident have respectfully signed this lease as of the day and year first written above.

Colonial Mobile Manor Limited

By: Lori Skipper

X [Signature]
 Resident

X VIBHA WBL YESKE
 Resident



DEMAND FOR PAYMENT OF LOT RENTAL AMOUNT

Pursuant to Section 723.061, Florida Statutes

Date: February 07, 2025

TO: George Yeske FROM: Colonial Manor MHC Holdings, LLC
and All Unknown/Unauthorized 900 9th Avenue East
Occupants Palmetto, Florida 34221
900 9th Ave E Lot 38, Lot # 38 Telephone: (941) 722-3191
Palmetto, Florida 34221 Cheryl Peake, Manager
Certified Mail: # 9589 0710 5270 2091 7619 28

and All Unknown/Unauthorized Occupants
, Lot #
, Florida
Certified Mail: #

VIA POSTING/HAND DELIVERY, REGULAR AND CERTIFIED MAIL - Return Receipt Requested

You are notified that you are in default in the payment of the lot rental amount for your manufactured home lot. Base lot rental amount is payable to the Landlord at the rate of \$ 621.00 per month.

You have failed to pay all the past due lot rental amounts for the months of Jan 2025 thru February, 2025, in the amount of \$ 1732.00, consisting of the items shown below. As shown in the table below, the total lot rental amount due as of the date of this demand is \$ 1732.00, payable to the address above.

- Rent on Feb 1, 2025 to Feb 28, 2025 in the amount of \$621.00
- Late Fee on Feb 1, 2025 to Feb 28, 2025 in the amount of \$45.00
- Last month balance in the amount of \$666

DEMAND IS HEREBY MADE that you pay the total lot rental amount now due, or deliver possession of the premises to the undersigned within five (5) days from the date of delivery of this notice (allowing five (5) days from the postmark date excluding Saturdays, Sundays and legal holidays.) If the total lot rental amount now due is not paid on or before Feb 14, 2025, your rental agreement will be terminated, and you must immediately vacate the premises.

If you do not pay the total lot rental amount now due within five (5) days from the delivery of this notice (excluding Saturdays, Sundays, and legal holidays), an action for eviction pursuant to Chapter 723.061, Florida Statutes, will be commenced against you. If such action is commenced for eviction, you may also be held liable for court costs and reasonable attorney's fees incurred by the community in order to prosecute such an eviction action. If you have any questions concerning this notice, please contact the community office at the telephone number listed above.

PLEASE GOVERN YOURSELF ACCORDINGLY.

COMMUNITY USE ONLY:

CERTIFIED MAIL: # _____

CERTIFIED MAIL: # _____

CERTIFIED MAIL: # _____

MAILED ON: February 07, 2025

BY: Ching Doolie
(Employee signature)

COPY POSTED ON PREMISES (900 9th Ave E Lot 38, Lot #38)

POSTED ON: Feb 7 2025 @ 9 AM
(date/time)POSTED BY: Ching Doolie
(Employee Signature)

Colonial Manor MHC Holdings, LLC

vs.

George Yoske

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

EVICTIION SUMMONS/RESIDENTIAL

CASE NUMBER: 2025-CC- 2025CC000715AX

PLAINTIFF/PETITIONER	vs. DEFENDANTS/RESPONDENTS
COLONIAL MANOR MHC HOLDINGS, LLC d/b/a COLONIAL MANOR MOBILE HOME PARK	GEORGE EDWARD YESKE, III and ANY UNKNOWN PARTY(s) IN POSSESSION

TO: **GEORGE EDWARD YESKE, III**
900 9th Avenue East; Lot #38
Palmetto, Florida 34221

PLEASE READ CAREFULLY

You are being sued by COLONIAL MANOR MIIC HOLDINGS, LLC d/b/a COLONIAL MANOR MOBILE HOME PARK to require you to move out of the place where you are living for the reasons given in the attached **Complaint (Civil Action) Seeking Possession (Eviction) and Damages**.

You are entitled to a trial to determine whether you can be required to move, but you **MUST** do ALL of the things listed below. **You must do them within (5) days (not including Saturday, Sunday, or any legal holiday) after the date these papers were given to you or to a person who lives with you or were posted at your home.**

THE THINGS YOU MUST DO ARE AS FOLLOWS:

- (1) Write down the reason(s) why you think you should not be forced to move. The written reasons(s) must be given to the clerk of the Court at the Manatee County Courthouse, Post Office Box 25400, Bradenton, Florida, 34206.
- (2) Mail or give a copy of your written reason(s) to:

William C. Price, III, Esquire
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Attorney for the Plaintiff

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

EVICTIION SUMMONS/RESIDENTIAL

CASE NUMBER: 2025-CC-

PLAINTIFF/PETITIONER	vs. DEFENDANTS/RESPONDENTS
COLONIAL MANOR MHC HOLDINGS, LLC d/b/a COLONIAL MANOR MOBILE HOME PARK	GEORGE EDWARD YESKE, III and ANY UNKNOWN PARTY(s) IN POSSESSION

- (3) Pay to the clerk of court the amount of rent that the attached complaint claims to be due and any rent that becomes due until the lawsuit is over. If you believe that the amount claimed in the complaint is incorrect, you should file with the clerk of the court a motion to have the court determine the amount to be paid. If you file a motion, you must attached to the motion any documents supporting your position and mail or give a copy of the motion to the Plaintiff/Plaintiff's Attorney.
- (4) If you file a motion to have the court determine the amount of rent to be paid to the clerk of the court, you must immediately contact the office of the judge to whom the case is assigned to schedule a hearing to decide what amount should be paid to the clerk of the court while the lawsuit is pending.

IF YOU DO NOT DO ALL OF THE THINGS SPECIFIED ABOVE WITHIN FIVE (5) WORKING DAYS AFTER THE DATE THAT THESE PAPERS WERE GIVEN TO YOU OR TO A PERSON WHO LIVES WITH YOU OR WERE POSTED AT YOUR HOME, YOU MAY BE EVICTED WITHOUT A HEARING OR FURTHER NOTICE.

- (5) If the attached Complaint also contains a claim for money damages (such as unpaid rent), you must respond to that claim separately. You must write down the reasons why you believe that you do not owe the money claimed. The written reasons must be given to the clerk of the court at the address specified in paragraph (1) above, and you must mail or give a copy of your written reasons to the Plaintiff/Plaintiff's Attorney at the address specified in paragraph (2) above. This must be done within 20 days after the date these papers were given to you or to a person who lives with you or were posted at your home. This obligation is separate from the requirement of answering the claim for eviction within 5 working days after these papers were given to you or to a person who lives with you or were posted at your home.

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

EVICTIION SUMMONS/RESIDENTIAL

CASE NUMBER: 2025-CC-

PLAINTIFF/PETITIONER	vs. DEFENDANTS/RESPONDENTS
COLONIAL MANOR MHC HOLDINGS, LLC d/b/a COLONIAL MANOR MOBILE HOME PARK	GEORGE EDWARD YESKE, III and ANY UNKNOWN PARTY(S) IN POSSESSION

THE STATE OF FLORIDA:

To Each Sheriff of the State: You are commanded to serve this summons and a copy of the complaint in this lawsuit on the above named defendant.

DATED on FEBRUARY 24, 2025.

ANGELINA "ANGEL" COLONNESO



Manatee County Clerk of Courts and Comptroller

[Signature]
Signed: 02/24/2025 12:03:44 PM

Deputy Clerk

NOTICE: If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact the Manatee County Jury Office, Post Office Box 25400, Bradenton, Florida, 34206, (941) 741-4062, at least seven (7) days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than seven (7) days; if you are hearing or voice impaired, call 711.

Si usted es una persona con una incapacidad que necesita cualquier acomodacion en orden de participar en el procedimiento, Usted esta intitulado, a no costo suyo, la provision de cierta ayuda. Favor de contactar al Manatee County Jury Office, Post Office Box 25400, Bradenton, Florida, 34206 ((41) 741-4062, dentro de siete dias laborables antes de su audiencia tribunal or imediante mente al recibir esta notificacion sisu audiencia tribunal es menos de siete dias: si usted tiene una incapacidad de oir o hablar llame al 711.

In and for Manatee County:

If you cannot afford an attorney, you may contact Legal Aid of Manasota at (941) 747-1628 or www.legalaidofmanasota.org or Gulfcoast Legal Services at (941) 746-6151 or www.gulfcoastlegal.org. If you do not qualify for free legal assistance or do not know an attorney, you may email an attorney referral service (listed in the phone book) or contact the Florida Bar Lawyer Referral Service at (800)342-8011 or www.floridabar.org/public/lrs/.

"2025CC000715AX" 217337098 Filed at Manatee County Clerk 02/21/2025 03:45:03 PM EST
"2025CC000715AX" 236990099 Filed at Manatee County Clerk 12/04/2025 08:36:44 AM EST

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2025-CC-

GEORGE EDWARD YESKE, III and ANY
UNKNOWN PARTY(s) IN POSSESSION,
Defendants.

COMPLAINT (CIVIL ACTION) SEEKING POSSESSION (EVICTION) AND DAMAGES

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, sues the Defendant(s), GEORGE EDWARD YESKE, III and ANY UNKNOWN PARTY(s) IN POSSESSION, in possession of certain premises more fully described below, and alleges:

COUNT I

ACTION FOR POSSESSION

1. This is an action for removal of mobile home park lot tenants and possession of real property in Manatee County, Florida, as authorized by Section 723.061(1)(a) of Florida Statutes.
2. Plaintiff is a Foreign Limited Liability Company owning and operating a mobile home park located in Manatee County, Florida, doing business as COLONIAL MOBILE MANOR.
3. Plaintiff owns the real property located at 900 9th Avenue East, Lot #38, Palmetto, Manatee County, Florida 34221.
4. Pursuant to Florida Statutes §723.031 residential rental agreements in mobile home parks, including that between the Defendant, GEORGE EDWARD YESKE, III, and the Plaintiff, are annual.
5. Defendant, GEORGE EDWARD YESKE, III, natural person, entered into a rental agreement to reside at 900 9th Ave East, Lot #38, Palmetto, Manatee County, Florida, 34221, owned by COLONIAL MANOR MHC HOLDINGS, LLC, known as COLONIAL MOBILE MANOR. A copy of the Lease Agreement is attached to this Complaint as Plaintiff's "Exhibit A".

6. Defendant(s), ANY UNKNOWN PARTY(s) IN POSSESSION, may reside on the real property at 900 9th Avenue East, Lot #38, Palmetto, Manatee County, FL 34221, Manatee County, but if so, do so without the consent of the Plaintiff.

7. Defendant, GEORGE EDWARD YESKE, III, is the record owner of the mobile home located on the real property on 900 9th Ave East, Lot #38, Palmetto, Florida, 34221.

8. Plaintiff owns, in fee simple, the real property located at 900 - 9th Avenue East, Palmetto, Florida, 34221, including Lot #38, which has historically been known as COLONIAL MOBILE MANOR.

9. The residents of the community, including Defendants, own their mobile homes and lease their respective lots from Plaintiff; therefore, the landlord/tenant relationship between Plaintiff and the Defendant in this cause is governed by Florida Statutes Chapter 723.

10. Plaintiff, as landlord, leased to Defendant, GEORGE EDWARD YESKE, III, LOT #38, of the above stated mobile home park at a monthly rental fee.

11. For the year 2025, the monthly rent is the sum of \$821.00.

12. Defendant, GEORGE EDWARD YESKE, III, is in default of the Rental Agreement with Plaintiff by failure to pay the total sum of \$1,732.00 which represents the months of January 2025 through February 2025 including late fees.

13. On February 7, 2025, Plaintiff served on Defendant, GEORGE EDWARD YESKE, III and ANY UNKNOWN PARTY(s) IN POSSESSION, pursuant to Fla. Stat. §723.061(4) by posting on the premises of 900 9th Avenue East, Lot #38, Palmetto, FL 34221, a Demand for Payment of Lot Rental Amount demanding rent payment, and notified the Defendants that if they failed to timely pay the rent due, that the Plaintiff would evict the Defendant, pursuant to Fla. Stat. §723.061. A copy of this Notice is attached and marked Plaintiff's Exhibit "B".

14. On February 7, 2025, Plaintiff also served on Defendants, GEORGE EDWARD YESKE, III and ANY UNKNOWN PARTY(s) IN POSSESSION, the Demand for Payment of Lot

Rental Amount, by certified mail return receipt requested, pursuant to Fla. Stat. § 723.061(4).

15. The nonpayment default has continued for more than five days after delivery of the written and posted demand to Defendants, as a result of which the Plaintiff is entitled to a judgment for possession of the premises.

16. ANY UNKNOWN PARTY(s) IN POSSESSION may reside or have an interest in LOT #38 of COLONIAL MANOR MHC HOLDINGS, LLC but said residence is without the knowledge or approval of the Plaintiff and said person(s) have no right to reside at said location.

17. Pursuant to the lease and Section 723.068 of Florida Statutes, Plaintiff is entitled to an award of attorney fees.

18. Plaintiff is entitled to the summary procedure of Section 51.011 of the Florida Statutes.

19. Plaintiff has retained the law firm of William C. Price, III, P.A. to represent it in this action and is obligated to pay its attorneys a reasonable fee for their services.

20. Pursuant to Fla. Stat. §723.084 the prevailing party in this action to evict the Defendant is entitled to recover its costs and attorney fees.

21. The total lot rental amounts due as of February 7, 2025, which must be paid into the registry of the Court, is \$1,732.00 plus \$821.00 due each month this action is pending.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment for possession of the premises together with costs and reasonable attorney's fees against Defendants, GEORGE EDWARD YESKE, III and ANY UNKNOWN PARTY(s) IN POSSESSION, and such other and further relief as the Court may deem proper.

COUNT II

ACTION FOR DAMAGES (RENTAL)

22. This is an action seeking less than \$15,000.00 excluding costs, interest and attorney fees.

23. Plaintiff re-alleges the facts contained within paragraphs 1 through 21 as though fully

set forth herein.

24. Plaintiff, as landlord, leased to Defendant, GEORGE EDWARD YESKE, III, Lot #38, 900 9th Avenue East, Palmetto, FL 34221 of the above stated mobile home park at a monthly rental fee of \$821.00.

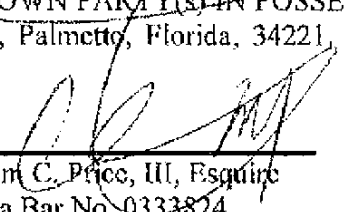
25. Plaintiff has suffered damages for unpaid rent, court costs and a reasonable attorney fee arising out of the prosecution of this action.

26. Plaintiff has retained the undersigned counsel to represent it in this action and has agreed to pay it a reasonable fee for its services.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment against Defendant, GEORGE EDWARD YESKE, III, for damages, costs, attorney fees and a reservation of remedies.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Complaint Seeking Possession (Eviction) and Damages has been furnished to a private process server for service upon the Defendants, GEORGE EDWARD YESKE, III and ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9th Avenue East, Lot #38, Palmetto, Florida, 34221, on this 21st day of February, 2025.


 William C. Price, III, Esquire
 Florida Bar No. 0333824
 WILLIAM C. PRICE, III, P.A.
 522 Twelfth Street West
 Bradenton, Florida 34205
 Telephone: (941) 747-8001
 Facsimile: (941) 747-3730
 Primary E-Mail: pleadings@wcpricelaw.com
 Attorney for Plaintiff

George Edward Yeske III
 14382 O'Neal Rd
 Gulfport, MS 39503
 702-466-3954

FILED

MAR 03 2025

MANATEE COUNTY
 CLERK OF COUNTY COURT
 DEBRY C. C. C.

**IN THE COUNTY COURT OF THE TWELFTH JUDICIAL
 CIRCUIT IN AND FOR MANATEE COUNTY, FLORIDA**

COLONIAL MANOR MHC HOLDINGS, LLC
Plaintiff, Counter Claim Defendant

VS,

Case No.: 2025-CC- 000715AX

GEORGE EDWARD YESKE, III

and ANY

**UNKNOWN PARTY(s) IN POSSESSION,
 Defendants and Counter Claim Plaintiffs**

DEFENDAT'S ANSWER AND COUNTERCLAIM TO THE ABOVE CAPTIONED ACTION

COMPLAINT (CIVIL ACTION) SEEKING POSSESSION (EVICTION) AND DAMAGES

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, sues the Defendant(s), GEORGE EDWARD YESKE, III and ANY UNKNOWN PARTY(s) IN POSSESSION, in possession of certain premises more fully described below, and alleges:

COUNT 1

ACTION FOR POSSESSION

1. The Defendant has no specific knowledge of this claim and therefore denies.
2. The Defendant has no specific knowledge of this claim and therefore denies.
3. The Defendant has no specific knowledge of this claim and therefore denies.
4. Defendant Agrees.
5. Defendant, agrees he entered into a rental agreement for the address however denies specific knowledge of lot ownership.
6. Defendants have not lived in, nor permitted anyone to live in the said home since it's destruction as a result of hurricane damage done by Hurricane Milton on or about October 10th, 2024 and was shortly thereafter deemed unsafe for habitation by FEMA inspectors on or about October 28th 2024.

7. Defendant, admits he is the home owner of record.

8. Defendant has no specific knowledge of this claim and therefore denies.

9. Defendant denies specific knowledge of other residents of the park is is aware that not all residents are required to lease lots nor do all residents own the homes located on those lots and has evidence that this specific claim is false and Plaintiff, by and through their attorney knowingly filed this false information with the court.

10. Defendant admits.

11. Defendant is not aware of the monthly rent currently charged for said lot and therefore denies.

12. Defendant denies this claim.

13. Defendant denies this claim.

14. Defendant denies this claim and challenges Plaintiff to provide evidence of such service.

15. Defendant denies this claim.

16. Defendant denies this claim since he has no knowledge of what the Plaintiff does or does not know and sees no evidence to support this claim.

17. Defendant denies this claim since award of attorney fees is not specific.

18. Defendant denies this claim.

19. Defendant is not aware of who Plaintiff does specific legal business with.

20. Defendant denies.

21. Defendant denies.

WHEREFORE, Defendant requests this Honorable Court enter a judgment for dismissal of Plaintiff's claim as a matter of law or due to lack of actual evidence.

COUNT II

ACTION FOR DAMAGES (RENTAL)

22. Defendant is not aware of any actual damage amounts Plaintiff is claiming and therefore denies. Plaintiff re-alleges the facts contained within paragraphs I through 21 as though fully

- 23. Defendant denies this claim since that is not the amount stated on the lease he signed.
- 24. Defendant denies.
- 25. Defendant has no knowledge of any stipulations or agreement Plaintiff has made with purported legal counsel.

WHEREFORE, Defendant asks the Court to deny Plaintiff's Second claim of action.

Defendant's First Claim for Relief

- 26. The Defendant does not owe rent past the condemnation date of said trailer and had moved all property from the trailer in late December of 2024, and he did pay it through the end of 2024 as evidenced by the Plaintiff not making claim for rent prior to January 1, 2025.
- 27. Plaintiff was provided with a written notice of the abandonment of said unlivable property dated November 21, 2024 and delivered to Rolf Hanson via mail, the district manager for the mobile home park known as Colonial Manor, located at 900 9th Ave East, Palmetto, Florida with a copy placed in the office mail slot in the park clubhouse which is attached and marked as Defendant's Exhibit 2.
- 28. According to Florida Statute, specifically **Florida 83.63**:

[83.63 Casualty damage.—If the premises are damaged or destroyed other than by the wrongful or negligent acts of the tenant so that the enjoyment of the premises is substantially impaired, the tenant may terminate the rental agreement and immediately vacate the premises. The tenant may vacate the part of the premises rendered unusable by the casualty, in which case the tenant's liability for rent shall be reduced by the fair rental value of that part of the premises damaged or destroyed. If the rental agreement is terminated, the landlord shall comply with s. 83.49(3)]
- 29. Since the home is uninhabitable, and officially declared condemned by the city of Palmetto, specifically the Building department, no rent is due and any damages the Plaintiff's claim were the result of that action by the City, not by this Defendant. The notice of condemnation is attached to this claim and marked as

Defendant's Exhibit 1.

30. As a result of the Plaintiff filing their action against the Defendant, he has sustained damages including Court costs and other such expenses related to this case.
31. The Defendant believes this late and inaccurate claim was filed due to him going forward in US District Court with a claim against several members of the management team of Colonial manor due to their constant interference in a sale of another home in the park in which Mr. Price is well aware of and has stated in writing that this Defendant has done nothing wrong and then went on to cite a non-existent court ruling made by another Judge during another attempted at eviction, that failed, of the persons who properly purchased and occupied another home in the park.
32. Plaintiffs did not send service of this case to Defendant at his last known address and employees of the Park have bragged to other residents that while the Plaintiff is aware of the Defendants address since at least December 4th 2024 when he received mail from the park regarding the condition of lot 38.

WHEREFORE the Defendant asks this court to dismiss in whole the claims made by the Plaintiff, sanction their Attorney for filing untrue information with the court, and award damages to the Defendant to cover Defendant's costs and any other such damages the Court see fit to award.



Date: March 3, 2025

George E. Yeske
14382 O'Neal Rd
Gulfport, MS 39503
702-466-3954

CERTIFICATE OF SERVICE /

I HEREBY CERTIFY that a true copy of the foregoing action has been served on Plaintiff's claimed Attorney at the below postal address and email:

WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West Bradenton,
Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-3730
Primary E-Mail: pleadings@wcpricelaw.com Attorney for
Plaintiff

I certify that on March 3, 2025 I placed a copy of this document
un US mail, postage paid to the above address and further emailed
a copy to the above email address.

George Edward Yeske III
14382 O'Neal Rd
Gulfport, MS 39503
702-466-3954



00113
Defendants
Exhibit 1

City of Palmetto
Development Services
Building Department
601 17th Street West
Palmetto, FL 34221
941-723-4580

January 17, 2025

Notice of Condemnation – Action Required

This letter serves as official notification that the mobile home located at Colonial Manor 900 Ninth Ave East, Lot 38 Palmetto FL has been deemed structurally unsafe and is hereby condemned by the City of Palmetto Building department due to severe structural damage identified during our recent inspection.

Please feel free to contact our office if you have any further questions.

Steve Spangler
Building Official
City of Palmetto

Defendant Exhibit 2

George Yeske
900 9th AVE
Lot 38
Palmetto FL 34221

November 21, 2024

Rolf Hanson
Kingsley Management Corporation
4956 N 300 W
Provo UT 84604

Re: Florida Statutes

Dear Mr. Hanson:

As you are aware my home was destroyed by Hurricane Milton. The lease for Lot 38 Colonial Manor should become null and void, terminated as of December 31, 2024 as the home is not habitable due to damage from the storm. Per FEMA with Florida Statue 83.63 you are being notified of this in writing. Your park staff as well as yourself have seen the home and are aware of this. The home is slated for demolition in December of 2024.

Your office staff are also currently interfering with my income by attempting to create a hostile living environment for our tenants in 232 who are in process of purchasing that home. The buyers have been approved to live in the park and through implied consent are allowed to purchase a home there, which I have no problem litigating. Cheryl has been bragging about how she will refuse rent payments from them as advised by her lawyer. Perhaps you both should review the following:

**Title XLVI
CRIMES**

Chapter 825

**ABUSE, NEGLECT, AND EXPLOITATION OF ELDERLY PERSONS AND
DISABLED ADULTS**

825.102 Abuse, aggravated abuse, and neglect of an elderly person or disabled adult; penalties.—

(1) "Abuse of an elderly person or disabled adult" means:

(a) Intentional infliction of physical or psychological injury upon an elderly person or disabled adult;

(b) An intentional act that could reasonably be expected to result in physical or psychological injury to an elderly person or disabled adult;

(c) Active encouragement of any person to commit an act that results or could reasonably be expected to result in physical or psychological injury to an elderly person or disabled adult; or

(d) Intentionally, and without lawful authority, isolating or restricting access of an elderly person or a disabled adult to family members for any length of time which could reasonably be expected to result in physical or psychological injury to the elderly person or disabled adult, or with the intent to promote, facilitate, conceal, or disguise some form

of criminal activity involving the person or property of the elderly person or disabled adult. It is a defense to a violation of this paragraph that the defendant had reasonable cause to believe that his or her action was necessary to protect the elderly person or disabled adult from danger to his or her welfare.

A person who knowingly or willfully abuses an elderly person or disabled adult without causing great bodily harm, permanent disability, or permanent disfigurement to the elderly person or disabled adult commits a felony of the third degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084.

(2) "Aggravated abuse of an elderly person or disabled adult" occurs when a person:

(a) Commits aggravated battery on an elderly person or disabled adult;

(b) Willfully tortures, maliciously punishes, or willfully and unlawfully cages, an elderly person or disabled adult; or

(c) Knowingly or willfully abuses an elderly person or disabled adult and in so doing causes great bodily harm, permanent disability, or permanent disfigurement to the elderly person or disabled adult.

A person who commits aggravated abuse of an elderly person or disabled adult commits a felony of the first degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084.

(3)(a) "Neglect of an elderly person or disabled adult" means:

1. A caregiver's failure or omission to provide an elderly person or disabled adult with the care, supervision, and services necessary to maintain the elderly person's or disabled adult's physical and mental health, including, but not limited to, food, nutrition, clothing, shelter, supervision, medicine, and medical services that a prudent person would consider essential for the well-being of the elderly person or disabled adult; or

2. A caregiver's failure to make a reasonable effort to protect an elderly person or disabled adult from abuse, neglect, or exploitation by another person.

Neglect of an elderly person or disabled adult may be based on repeated conduct or on a single incident or omission that results in, or could reasonably be expected to result in, serious physical or psychological injury, or a substantial risk of death, to an elderly person or disabled adult.

(b) A person who willfully or by culpable negligence neglects an elderly person or disabled adult and in so doing causes great bodily harm, permanent disability, or permanent disfigurement to the elderly person or disabled adult commits a felony of the second degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084.

(c) A person who willfully or by culpable negligence neglects an elderly person or disabled adult without causing great bodily harm, permanent disability, or permanent disfigurement to the elderly person or disabled adult commits a felony of the third degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084.

And let's address tortious interference, in simple terms interfering with a contractual agreement between two parties.

To understand tortious interference with contract under Florida law, consider the following key points:

Definition: Tortious interference with contract occurs when a third party intentionally disrupts a contractual relationship between two parties.

Elements: The plaintiff must prove four elements:

A valid contract exists.

The defendant had knowledge of the contract.

The defendant intentionally interfered with the contract.

The interference caused damages to the plaintiff.

Intent Requirement: The interference must be intentional and not merely negligent.

Justification Defense: Defendants may argue that their interference was justified or privileged, such as acting in their own economic interest.

Damages: Plaintiffs can seek compensatory damages for losses incurred due to the interference.

Statute of Limitations: In Florida, the statute of limitations for tortious interference claims is typically four years.

Business Relationships: Florida law also recognizes tortious interference with a business relationship, which has similar elements but does not require a formal contract.

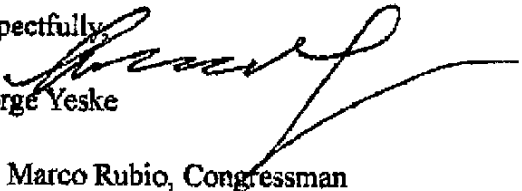
Case Law: Florida courts have established precedents that clarify the application of tortious interference claims.

Burden of Proof: The burden of proof lies with the plaintiff to establish all elements of the claim.

As you already know, I have no problem engaging legal counsel and certainly would enjoy hearing how a judge in US District Court would react to this since Kingsley is doing business across state lines, a subject brought up by YOUR lawyer and confirmed by mine.

This letter is being sent to FEMA, Governor Ron DeSantis and Congressman Marco Rubio.

Respectfully,


George Yeske

Cc: Marco Rubio, Congressman
Governor Ron DeSantis
FEMA

George Edward Yeske III
14382 O'Neal Rd
Gulfport, MS 39503
702-466-3954

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff, Counter Claim Defendant

VS,

Case No.: 2025-CC-000715AX

GEORGE EDWARD YESKE, III
and ANY
UNKNOWN PARTY(s) IN POSSESSION,
Defendants and Counter Claim Plaintiffs

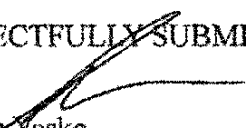
DEFENDANT'S, CROSS COMPLAINT PLAINTIFF DEMAND FOR JURY TRIAL

COMES NOW the Defendant, Cross complaint Plaintiff, George Yeske who respectfully requests the above action be heard by a jury.

1. This request is being made in compliance with all applicable rules of procedure under Florida statute.
2. This Demand has been filed less than 10 days since last document filing in this matter.
3. This Demand is for the entirety of the trial and excludes no part of evidence admitted by the Court.

WHEREFORE: the Defendant, Cross complaint Plaintiff, George Yeske request the court be advised this demand is with local rules as well as state statutes for trial procedures.

RESPECTFULLY SUBMITTED this 4th day of March, 2025.

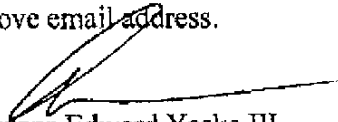

George Yeske
14382 O'Neal Rd
Gulfport, MS 39503
702-466-3954

CERTIFICATE OF SERVICE ✓

I HEREBY CERTIFY that a true copy of the foregoing action has been served on Plaintiff's claimed Attorney at the below postal address and email:

WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-3730
Primary E-Mail: pleadings@wcpricelaw.com
Attorney for Plaintiff

I certify that on March 4, 2025 I placed a copy of this document un US mail, postage paid to the above address and further emailed a copy to the above email address.


George Edward Yeske III
14382 O'Neal Rd
Gulfport, MS 39503
702-466-3954

**IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT IN AND FOR MANATEE
COUNTY, FLORIDA**

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff

v.

Case Number 25 CC 715

**GEORGE EDWARD YESKE, III and ANY
UNKNOWN PARTY IN POSSESSION,**
Defendants

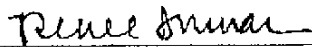
**ORDER ON DEFENDANT'S MOTION TO DETERMINE RENT AND DEMAND FOR JURY
TRIAL**

This matter came before the Court for hearing on April 8, 2025, on the Defendant's Motion to Determine Rent (filed March 3, 2025) and demand for jury trial (filed March 7, 2025). Present at the zoom hearing was both parties. Having heard the parties' presentations, reviewed the court file, and being otherwise duly advised in the premises, the Court finds and rules as follows.

1. This is an action related to property located at 900 9th Ave. East, Lot #38, Palmetto, FL 34221. The Plaintiff is the mobile home park owner, and the Defendant is the mobile home owner leasing Lot 38.
2. The Plaintiff filed its Complaint on February 21, 2025, asserting two counts – possession due to failure to pay lot rent (Count I), and damages for rent arrears (Count II). This action is one governed by Chapter 723, Florida Statutes. *See* § 723.061(1)(a), Fla. Stat.
3. The Defendant asks this Court to determine how much money must be deposited into the registry. *See* § 723.063(2), Fla. Stat. (“[i]n any action by the park owner . . . [based upon nonpayment of rent], the mobile home owner shall pay into the registry of the court that portion of the accrued rent . . . as determined by the court”). He argues that his mobile home was destroyed by Hurricane Milton, and as a result he is no longer obligated to pay lot rent. He relies on section 83.63, Florida Statutes (permitting residential tenants subject to Chapter 83 to terminate a rental agreement and vacate premises damaged by a casualty).
4. There was some evidence suggesting that the parties have discussed the possibility of the Defendant signing title to the mobile home over to the Plaintiff. That outcome has not been affirmatively agreed, however.
5. As a threshold matter, the Court does not find that Chapter 83 applies to this case, as the subject property is a mobile home owned by the Defendant. *See* § 723.004, Fla. Stat.
6. The parties agree that the Defendant leased Lot 38 of the park from the Plaintiff. “Mobile home lot” means a “lot intended for the placement of a mobile home,” § 723.003(9), Fla. Stat., and the parties agreed that the Defendant could place his mobile home on one of the Plaintiff's lots – specifically Lot 38. The Defendant is thus renting the land upon which his mobile home sits.
7. The undisputed evidence is that lot rent is \$821 per month, the Defendant is the owner of record, and no lot rent has been paid for January to April 2025.

8. Based on the evidence presented at this preliminary hearing, the Court finds that the Defendant shall deposit into the court registry the amount of \$3,284 (lot rent for January through April 2025). The Defendant shall do so no later than April 16, 2025. Additionally, the Defendant shall continue paying lot rent into the court registry as it becomes due until this matter is fully resolved. Pursuant to section 723.063(2), Florida Statutes, failure to deposit in accordance with this Order shall constitute an absolute waiver of the Defendant's defenses other than payment, and the Plaintiff will be entitled to an immediate default.
9. The Court reserves jurisdiction to address how monies deposited into the registry will be disbursed.
10. There is no objection by the Plaintiff to the Defendant's demand for a jury trial. Once the Defendant deposits the monies into the registry as provided in this Order, the parties shall contact the judicial assistant to schedule the 1.5-day jury trial, and pretrial conference.

DONE AND ORDERED in Chambers, Bradenton, Manatee County, Florida on this 9th day of April 2025.


 Renee Inman, County Judge

Copies to:

Bill Price, Esq. (pleadings@wcpricelaw.com) AND (monican@wcpricelaw.com)

George Yeske, (George.yeske@gmail.com) AND 1438 O'Neal Road, Gulfport, MS 39503

Fla. Stat. § 723.004

Current through the 2025 Third Extraordinary Session.

**LexisNexis® Florida Annotated Statutes > Title XL. Real and Personal Property. (Chs. 689 — 723)
> Chapter 723. Mobile Home Park Lot Tenancies. (§§ 723.001 — 723.1255)**

§ 723.004. Legislative intent; preemption of subject matter.

(1) The Legislature finds that there are factors unique to the relationship between a mobile home owner and a mobile home park owner. Once occupancy has commenced, unique factors can affect the bargaining position of the parties and can affect the operation of market forces. Because of those unique factors, there exist inherently real and substantial differences in the relationship which distinguish it from other landlord-tenant relationships. The Legislature recognizes that mobile home owners have basic property and other rights which must be protected. The Legislature further recognizes that the mobile home park owner has a legitimate business interest in the operation of the mobile home park as part of the housing market and has basic property and other rights which must be protected. This chapter is created for the purpose of regulating the factors unique to the relationship between mobile home owners and mobile home park owners in the circumstances described herein. It recognizes that when such inequalities exist between mobile home owners and mobile home park owners as a result of such unique factors, regulation to protect those parties to the extent that they are affected by the inequalities, while preserving and protecting the rights of both parties, is required.

(2) There is hereby expressly preempted to the state all regulation and control of mobile home lot rents in mobile home parks and all those other matters and things relating to the landlord-tenant relationship treated by or falling within the purview of this chapter. Every unit of local government is prohibited from taking any action, including the enacting of any law, rule, regulation, or ordinance, with respect to the matters and things hereby preempted to the state.

(3) It is expressly declared by the Legislature that the relationship between landlord and tenant as treated by or falling within the purview of this chapter is a matter reserved to the state and that units of local government are lacking in jurisdiction and authority in regard thereto. All local statutes and ordinances in conflict herewith are expressly repealed.

(4) If any provision of this chapter is held invalid, it is the legislative intent that the preemption by this section shall no longer be applicable to the provision of the chapter held invalid.

(5) Nothing in this chapter shall be construed to prevent the enforcement of a right or duty under this section, s. 723.022, s. 723.023, s. 723.031, s. 723.032, s. 723.033, s. 723.035, s. 723.037, s. 723.038, s. 723.061, s. 723.0615, s. 723.062, s. 723.063, or s. 723.081 by civil action after the party has exhausted its administrative remedies, if any.

History

S. 1, ch. 84-80; s. 2, ch. 86-162; s. 4, *ch. 92-148*.

Mansur v. Eubanks

Supreme Court of Florida

July 30, 1981

No. 56597

Reporter

401 So. 2d 1328 *; 1981 Fla. LEXIS 2818 **

MICHAEL MANSUR and MARIE GRIGSBY, Petitioners, v. MARY G. EUBANKS, JEAN M. BARNETT, and AUTO OWNERS INSURANCE CO., Respondents

Prior History: [****1**] Certiorari to the District Court of Appeal, First District - Case Nos. HH-404 & HH-405.

Counsel: Ronald W. Ritchie of Reeves, Barfield & King, Pensacola, for petitioners.

Donald H. Partington of Clark, Partington, Hart & Hart, Pensacola, for respondents.

Judges: Before BOYD, J., SUNDBERG, C.J., ADKINS, OVERTON and ENGLAND, JJ., Concur, ALDERMAN and McDONALD, JJ., Concur in result only.

Opinion by: BOYD

Opinion

[***1329**] BOYD, Justice.

This cause is before the Court on petition for certiorari to review the decision of the district court of appeal in *Mansur v. Eubanks*, 368 So.2d 645 (Fla. 1st DCA 1979). Jurisdiction is predicated on conflict of decisions. *Art. V, § 3(b)(3), Fla. Const.* (1972).

The decision of the district court was to affirm the summary judgments entered in favor of the respondents in this personal injury action brought on the ground of negligence.

Sometime in mid-July, 1976, Marie Grigsby paid a deposit of \$ 25 to Jean M. Barnett in order to reserve an apartment owned by Mrs. Barnett and Mary G. Eubanks. By their informal oral agreement, the apartment was to be available for occupancy, and the term of lease would commence, on August 1, 1976. On July 31, Grigsby began moving [****2**] her possessions into the apartment. Michael Mansur, who lived in an adjacent apartment also owned by Barnett and Eubanks, helped Grigsby move in. In an effort to get the gas-fueled appliances (stove and water heater) operational, Grigsby and Mansur opened the gas line from outside the apartment. Then they attempted to light the stove and smelled gas in the process. Then they proceeded to try to light the water heater. Mansur struck a match and an explosion occurred. According to his complaint, he was seriously injured.

The district court affirmed the summary judgment by reference to the rule of caveat lessee, under which doctrine it is held that once possession and control of leased premises passes to the tenant, the landlord is not liable for injuries caused by the condition of the leased premises. The court quoted from *Brooks v. Peters*, 157 Fla. 141, 145, 25 So.2d 205, 206-7 (1946), where this Court said:

It is established law that when a landlord delivers to the tenant possession and control of the demised premises, including the plumbing, drains, and appliances for heating, lighting, and power, the landlord is not liable for an injury to the property or person of the [**3] tenant or those on the premises in the right of the tenant, although such injuries are attributable to defects in such apparatus, appliances or fixtures. Thus a tenant may not hold a landlord liable for injuries caused by explosion of plumbing, or heating apparatus on premises, the possession and control of which have been surrendered to him in the absence of fraud or concealment. 32 Am.Jur. 624, 625, § 746.

The landlord's liability is based on his right of control over the appliances and he is not liable for injuries for defects in appliances located on the leased premises if he does not reserve control thereof, and accordingly it has been held that he is not liable for defects in water pipes in an apartment when the only purpose of such pipes is to supply and distribute water for the apartment. On the other hand, he is liable for defects in pipes on the leased premises if he retains control thereof. *Tiffany on Landlord and Tenant*, Vol. 1, pages 644, 645, par. 92.

Where the landlord surrenders possession and control of the leased premises to the tenant, in the absence of fraud or concealment, the tenant assumes the risk as to the condition of the premises, including the heating, [**4] lighting apparatus, plumbing, water pipes, sewers, etc. In other words, the rule of caveat emptor applies, hence the landlord is not liable for any personal injuries or sickness of tenants, although attributable to the defects in the fixtures. See Mansell v. Hunds, 235 Mass. 253, 126 N.E. 391, 13 A.L.R. 835, and annotations; Gobrecht v. Beckwith, 82 N.H. 415, 135 A. 20, 52 A.L.R. 858, and annotations.

The district court of appeal noted that its decision was in conflict with Alexander v. Fiftieth Street Heights Co., 334 So.2d 161 (Fla. 3d DCA 1976). There it was held that a lessor has a duty "to properly inspect the premises prior to the occupancy" and "to furnish reasonably safe premises to the lessee." *Id.* at 163.

We resolve the conflict by overruling *Brooks v. Peters* and adopting the *Alexander* rule. We hold that the owner of a residential dwelling unit, who leases it to a [**1330] tenant for residential purposes, has a duty to reasonably inspect the premises before allowing the tenant to take possession, and to make the repairs necessary to transfer a reasonably safe dwelling unit to the tenant unless defects are waived by the tenant. This duty may be modified [**5] by agreement of the parties.

After the tenant takes possession, the landlord has a continuing duty to exercise reasonable care to repair dangerous defective conditions upon notice of their existence by the tenant, unless waived by the tenant. This latter duty corresponds to the statutory warranty of habitability noted by Judge Ervin in his concurring opinion below. § 83.51(1), Fla.Stat. (1977); Mansur v. Eubanks, 368 So.2d at 650, n. 11 (Fla. App.) (Ervin, J., concurring).

We do not believe there are sufficient reasons to continue to completely insulate the landlord from liability. We live in an age when the complexities of housing construction place the landlord in much better position than the tenant to guard against dangerous conditions. See Old Town Development Co. v. Langford, 349 N.E.2d 144 (Ind. App. 1976), *superseded*, 267 Ind. 176, 369 N.E.2d 404 (1977); Sargent v. Rice, 112 N.H. 248, 208 A.2d 528 (1973); Pageisdorf v. Safeco Insurance Co., 91 Wis.2d 734, 284 N.W.2d 55 (1979).

In rendering summary judgment the trial court recited that there were no genuine issues of material fact but did not indicate what principle of law entitled the defendants to judgment in their favor.

[**6] The district court concluded that the pleadings and depositions showed that Grigsby had taken possession of the apartment by leave of the owners and that therefore the lease and the relationship of landlord and tenant had

commenced by the time of the accident. The record shows, however, that there was a factual dispute as to this matter.

The district court also concluded that the explosion was caused by gas that escaped through a gap where the stove had been disconnected from the gas line. The actual cause of the explosion, however, and the questions of knowledge of and responsibility for the disconnected line were disputed matters which were never litigated due to the summary judgment.

The decision of the district court of appeal, affirming summary judgment, is quashed. We direct that the cause be remanded to the trial court for further proceedings consistent with this opinion.

It is so ordered.

SUNDBERG, C. J., and ADKINS, OVERTON and ENGLAND, JJ., concur.

ALDERMAN and McDONALD, JJ., concur in result only.

End of Document

Online Reference: FLWSUPP 1710BRAD

Mobile home parks -- Eviction -- Nonpayment of lot rent -- Five-day notice was not invalid because of landlord's failure to deduct from amount demanded the amounts tenants had paid into court registry in connection with a prior, voluntarily dismissed, eviction action -- No merit to tenants' argument that landlord improperly required them to deposit rent into court registry in first action and then made a demand for same payments in second action, which was filed immediately after voluntary dismissal of first action -- Deposit of rent was a not required by landlord or court, but instead was a statutorily-imposed prerequisite to defending prior rent/possession action; and tenants had opportunity to seek release of court funds, apply those released funds to amount owed to landlord, and pay remainder owed to landlord to avoid eviction

ELIZABETH ANN BRADSHAW AND CARLOS LORENZO MEDINA, Appellants, v. PREMIER MANAGEMENT GROUP, LLC d/b/a HOLLYWOOD TRAILER PARK, Appellee. Circuit Court, 6th Judicial Circuit (Appellate) in and for Pinellas County. Case No. 09-000008AP-88B. UCN 522009AP000008XXXXCV. April 22, 2010. Counsel: Donald A. Harrison, Riverview, for Appellants. Mary R. Hawk, Porges, Hamlin, Knowles & Prouty, P.A., Bradenton, for Appellee.

ORDER AND OPINION

THIS CAUSE is before the Court on appeal by Appellants Elizabeth Bradshaw and Carlos Medina from the Order of the County Court entered on January 16, 2009. Upon consideration of the briefs and the record and being otherwise fully advised, the Court affirms the trial court's Order.

In August or September 2007, Appellants Elizabeth Bradshaw and Carlos Medina (collectively, "Appellants" or "Tenants") purchased from a third party a mobile home located on the subject property¹ owned by Appellee Premier Management Group, LLC d/b/a Hollywood Trailer Park ("Appellee" or "Park"), which required each tenant of the Park to receive approval of residency. After moving into the mobile home, Bradshaw submitted an application for residency; Medina did not fill out an application. After conducting a background and credit check on Bradshaw, the Park denied Bradshaw's application and sent to the Appellants a 7-Day Notice of Non-Compliance advising that Bradshaw's application for residency was denied, denying Medina residency because of his failure to apply, and demanding Tenants to vacate and remove their mobile home from the premises.

Tenants refused to vacate and thereafter tendered five checks for rent for the months of September 2007 through January 2008. The Park did not cash or deposit the checks, nor did the Park return the checks to the Tenants. At some point, Bradshaw closed the bank account from which the checks were written.

In October 2007, the Park filed an eviction action in County Court, Case No. 2007-CO 10982 ("2007 Case"), based on the 7-Day Notice of Noncompliance for non-approval as tenants. The Tenants continued to occupy the property. As required by Florida law, the Tenants deposited the monthly rental payments into the court registry; however, they did not deposit into the registry those payments secured by the initial five checks, nor did they continue to make any more rental payments to the Park. In or about May 2008, the Respondent took over management of the case and to waive the residency non-approval and any late fees; however, it demanded payment of all lot rental, water, and sewer payments due and owing. Apparently the Tenants did not accept the offer, and the Park voluntarily dismissed the case without prejudice on July 15, 2008.

On the following day, the Park issued to the Tenants a Five Day Demand Notice for payment of all rents due from September 2007 through July 2008, for a total of \$3,809.69 plus late fees, payable by July 31, 2008.

On August 21, 2008, the Park filed the instant action below, Case No. 08-008464-CO040, an eviction action based on non-payment of rent and the Five Day Demand Notice. On January 12, 2009, the trial court conducted a Nonjury Trial and entered a Final Order in the Park's favor on January 16, 2009. The court found that the Five

Day Demand Notice was valid and found that the Park could not have accepted the initial checks because cashing them would have operated as a waiver of the issues in the 2007 lawsuit. See *Greco v. Corn*, 724 So. 2d 612, 613 (Fla. 2d DCA 1998); *Gonzalez v. Archer*, 718 So. 2d 889, 889-90 (Fla. 3d DCA 1998).² The court further found that the Park had no legal rights to claim the monies on deposit, particularly after the dismissal of the case, or apply that amount to the overdue rents. The court ordered the disbursement of the funds held in the registry to the Tenants. However, the court deferred judgment for a period of twenty days to allow the Tenants to avoid eviction by paying all lot rental amounts due, plus any late charges, court costs, and attorney's fees.

The Tenants submitted no payments. Subsequently, on February 24, 2009, the court entered a Default Judgment of Possession in the Park's favor and issued a Writ of Possession. The Tenants were removed from the property.

The Tenants appeal the January 16, 2009, Order. Appellants argue that their payments into the court registry constituted "rent" that should have been deducted from the amount of rent demanded in the Five Day Notice. They argue that the failure to deduct the amount of the earlier payments rendered the Five Day Notice invalid under the Florida Mobile Home Act, section 723.003 of the Florida Statutes. In support, they quote the statutory requirement that, in order to defend an action for rent or possession, the mobile home owner must

pay into the registry of the court that portion of the *accrued rent*, if any, relating to the claim of material noncompliance as alleged in the complaint, or as determined by the court. . . . The failure of the mobile home owner to pay the *rent, or portion thereof*, into the registry of the court as required herein constitutes an absolute waiver of the mobile home owner's defenses other than payment, and the park owner is entitled to an immediate default.

§ 723.063(2), Fla. Stat. (emphasis added). Such matters of statutory construction or interpretation are a question of law subject to *de novo* review.³ *Borden v. East-European Ins. Co.*, 921 So. 2d 587 (Fla. 2006); *Gomez v. Village of Pinecrest*, 17 So. 3d 322, 325 (Fla. 3d DCA 2009).

Appellants assert that the Park improperly required them to deposit these rents payments in the first action and then made a demand for the same payments in the second action filed immediately after their voluntary dismissal of the first action. Appellants also contend that the court's ruling was "absurd" because it required the Tenants to "pay the rent a second time" after depositing the rental fees into the court registry. However, neither the Park nor the court required the deposit of these funds; rather, the deposit requirement is a statutorily imposed prerequisite to defending a rent/possession action, and the Appellants tendered the payments to the court registry in the 2007 case, where it remained until they sought and received disbursement of the funds on August 18, 2008.

In the interim between the dismissal of the first case in July 15, 2008, and the filing of the second case on August 21, 2008, the Appellants had the opportunity to seek release of the court funds, apply those released funds to the amount owed to the Landlord, and pay the remainder in order to avoid eviction. Appellants had another opportunity following the entry of the January 16, 2008, order in which the trial court deferred judgment for twenty days to allow Appellants avoid eviction by paying lot rental amounts due, plus late charges, court costs, and attorney's fees. Rather than availing themselves of this procedure offered by the trial court, they subjected themselves to eviction during the pendency of this appeal.

Accordingly, it is

ORDERED AND ADJUDGED that the trial court's Order of January 16, 2009, is AFFIRMED. (WILLIAMS, RAMSBERGER, and CAMPBELL, JJ.)

¹The property is Lot #2004 in Hollywood Trailer Park, 7230 4th Street North, St. Petersburg, Pinellas County, Florida 33702.

² Although Appellants refer to these payments in its ⁰⁰¹²⁷ briefs, they do not raise this finding of the trial court as an issue on appeal.

³ Appellees urge that the court should apply a clearly erroneous standard to the trial court's findings of fact that the Park's demand for rent was proper and that the Tenants tendered no rent. Taylor v. Richards, 971 So. 2d 127 (Fla. 4th DCA 2007). However, the validity of Five Day Notice is a legal issue raised by this appeal.

* * *

COLONIAL MOBILE MANOR PROSPECTUS

1. THIS PROSPECTUS CONTAINS VERY IMPORTANT INFORMATION REGARDING YOUR LEGAL RIGHTS AND YOUR FINANCIAL OBLIGATIONS IN LEASING A MOBILE HOME LOT. MAKE SURE THAT YOU READ THE ENTIRE DOCUMENT AND SEEK LEGAL ADVICE IF YOU HAVE ANY QUESTIONS REGARDING THE INFORMATION SET FORTH IN THIS DOCUMENT.
2. THE STATEMENT CONTAINED HEREIN ARE ONLY SUMMARY IN NATURE. A PROSPECTIVE LESSEE SHOULD REFER TO ALL REFERENCES, ALL EXHIBITS HERETO, THE CONTRACT DOCUMENTS, AND SALES MATERIALS.
3. ORAL REPRESENTATIONS SHOULD NOT BE RELIED UPON AS CORRECTLY STATING THE REPRESENTATIONS OF THE PARK OWNER OR OPERATOR. REFER TO THIS PROSPECTUS (OFFERING CIRCULAR) AND ITS EXHIBITS FOR CORRECT REPRESENTATIONS.
4. UPON DELIVERY OF THE PROSPECTUS TO A PROSPECTIVE LESSEE, THE RENTAL AGREEMENT IS VOIDABLE BY THE LESSEE FOR A PERIOD OF FIFTEEN (15) DAYS.

TABLE OF CONTENTS

	<u>PAGE NUMBER</u>
SUMMARY	1
NAME AND ADDRESS OF PARK	3
RECEIPT OF NOTICES AND DEMANDS	3
PARK PROPERTY DESCRIPTION	3
RECREATIONAL AND COMMON FACILITIES	3- 4
PARK MANAGEMENT AND MAINTENANCE	4
MOBILE HOME OWNER REQUIRED IMPROVEMENTS	4
UTILITIES AND OTHER SERVICES	4- 5
INCREASES IN RENT AND OTHER CHARGES	5- 6
PARK RULES AND REGULATIONS	6
ZONING CLASSIFICATION	6
ZONING	6
EXHIBITS	6

PROSPECTUS FOR

1. NAME AND ADDRESS OF PARK

Colonial Mobile Manor
900 - 9th Avenue East
Palmetto, Florida 34221

2. RECEIPT OF NOTICES AND DEMANDS

The person authorized to receive notices and demands on the Park owner's behalf is:

The Park Manager
Colonial Mobile Manor
900 - 9th Avenue East
Palmetto, Florida 34221

3. PARK PROPERTY DESCRIPTION

A. Lots, Set-Backs, and Minimum Separation between Mobile Homes

235 Lots in the Park
Approximate size: 50' x 75'

The Set-Back requirement is 10 foot, with 10 foot separation distance between mobile homes.

B. Shared Facilities

The maximum number of lots using shared facilities is five hundred (500).

4. RECREATION AND COMMON FACILITIES

The Mobile Home Park has a clubhouse, which is located at the front of the Park, and which has a single room of approximately 4,300 square feet, with a capacity of four hundred (400) persons. The clubhouse is used for social activities.

DAYS AND HOURS OF OPERATION

The clubhouse is open seven (7) days a week, from 9:00 a.m. to 10:00 p.m., and its use must be approved by Park management.

PERSONAL PROPERTY

There is no personal property available for the mobile home owners.

FUTURE IMPROVEMENTS

All improvements to the Mobile Home Park are now complete.

5. PARK MANAGEMENT AND MAINTENANCE

The manager of the Mobile Home Park is responsible for the maintenance and operation of the Park. The manager's office is in the clubhouse, and will have posted hours and days of operation. Any questions concerning Park operations should be directed to the Park manager.

6. MOBILE HOME OWNER REQUIRED IMPROVEMENTS

As a condition of their occupancy in the Mobile Home Park, new residents, after June 4, 1984, must install the following within forty (40) days after the home is placed on the lot:

Remove hitch, skirt home with aluminum or brick, concrete driveway to the street (12' width), aluminum carport (minimum 12' x 32'), utility shed build to the roof of the carport (minimum 6' x 8'), concrete/brick patio with aluminum cover and screened (minimum 100 square feet), concrete or brick steps at each entrance to the home, fully sodded lawn, and a brick flower planter in front of the home (minimum size 2' x 8' x 2').

7. UTILITIES AND OTHER SERVICES

Water is provided by the City of Palmetto and is billed directly to the mobile home owner. The home owner is responsible for any repairs to the home's water spigots and/or water line from the home to the main line. Park owner is responsible for the maintenance of the main line. The utility charge is not included in the lot rental amount.

SEWAGE

Sewage disposal is provided by the City of Palmetto, and is billed to the mobile home owner. Sewer disposal fees are not included in the monthly lot rental amount. The in-ground connection and the sewer line from the home to the main line are the mobile home owner's responsibility. The Park owner is responsible for the maintenance of the

main line.

WASTE DISPOSAL

Garbage and trash collection are provided curbside by the City of Palmetto and is billed to the mobile home owner, and are not included in the lot rental amount.

STORM DRAINAGE

Any storm drains are provided by and maintained by the Mobile Home Park by natural run-off.

ELECTRICITY

Electricity is provided by Florida Power & Light Company, which bills each home owner directly. Florida Power & Light is responsible for any main electrical lines. The home owner is responsible for the electric bill and for the electrical lines to the home or any connection outside the home, including the utility shed connections, breaker and outside receptacles. The cost of electricity is not included in the lot rental amount.

CABLE TELEVISION

Cable TV is not available.

8. INCREASES IN LOT RENTAL AMOUNT

The current lot rental amount of \$_____ is in effect until _____. At the end of the period, the lot rental amount and other charges may be increased with ninety (90) days notice to the home owner. Factors which affect lot rental amount are charges for water, sewer, garbage, trash removal, maintenance, repairs, gas, electricity, insurance, office, telephone, management, television service, taxes, licenses, government fees, accounting fees, legal fees, and the value of the Park. An increase in one or more of the factors may result in an increase in the home owner's lot rental amount. The lot rental amount may be raised a minimum of \$25.00 per month and up to a maximum of \$25.00 per month plus eighteen (18) times the Consumer Price Index (CPI) per month, whichever is greater. The CPI is the U.S. Department of Labor, U.S. City Average, All Urban Consumers, 1976 = 100, or in the event of the discontinuation of publication of the CPI, then an alternative index generally accepted as the replacement index for the CPI.

The lot rental amount is based on occupancy of 1 or 2 adults. Each additional person will be charged \$_____ per year, payable at \$_____ per month. The charge for an non-sufficient funds (NSF) check is \$_____. Rent received late and by the fifth of the month, or the following business day if the fifth falls on a Sunday, is subject to additional rent of \$35. Rent received late and after the tenth of the month is subject to additional rent of \$75. Failure by home owner to properly maintain the home's

lawn will cost the home owner \$50.00 per mowing, trimming and edging...

9. PARK RULES AND REGULATIONS

A. Current Park Rules and Regulations - see Exhibits.

B. Changes In Rules and Regulations

The Mobile Home Park owner shall give ninety (90) days written notice of any change in Park rules and regulations. Rules adopted as a result of restrictions imposed by government entities may be enforced prior to the expiration of the ninety (90) day period. A committee, not to exceed five (5) in number, designated by a majority of the mobile home owners shall meet with the Park owner to discuss such changes within thirty (30) days of the notice from the Park owner.

10. ZONING CLASSIFICATION

Present zoning of the Mobile Home Park is RMH. The permitted use under the zoning classification is mobile home park. No commercial or industrial use is presently allowed.

11. ZONING

The present zoning of the Mobile Home Park is RMH. The name of the zoning authority, which has jurisdiction over the land comprising of Mobile Home Park is the City of Palmetto.

The Mobile Home Park owner has no plans to seek a change in the use of the land.

12. EXHIBITS

A. Rules and Regulations of the Mobile Home Park.

B. Lease Agreement between Park owner and mobile home owner.

C. Copy of the Mobile Home Park layout.

13. Approved by the Florida Division of Condominiums, Time Shares and Mobile Homes on _____.

Colonial Mobile Manor

900 9th Avenue East (US 301 North), Palmetto, Florida 34221

Telephone: (941) 722-3191

RULES & REGULATIONS - EFFECTIVE JANUARY 1, 2011

1. **LOT RENTAL** - Rent is due on the first day of each month. Rent received late and by the fifth of the month, or the following business day if the fifth falls on a Sunday, is subject to additional rent of \$35.00. Rent received late and after the tenth of the month is subject to additional rent of \$75.00. The charge for a returned check is \$40.00. Bounced rent checks will incur a late fee in addition to the bounced check fee of \$40.00 if not repaid within twenty-four (24) hours of notification.

Water, sewer and storm water charges are billed directly to the Home Owner. If payment of the water/sewer bill is not received by the date due, there will be a \$35.00 late charge per month.

2. **QUIET ENJOYMENT** - Any act of any resident or permitted guest of any resident which disturbs or endangers the life, health, safety, property, or peaceful enjoyment of the park or its residents is not permitted, and is grounds for eviction.

3. **OCCUPANCY** - Colonial Mobile Manor is an age 55+ park. All persons must be approved to reside in the Park. All residents and overnight invitees must be registered prior to occupancy. At least one resident must be 55 years of age or older. An approved person may have a member of his immediate family (spouse, parent, adult sibling, or child) approved to reside with him as long as the family member is over the age of 40 and is approved for residency. The family member, under the age of 55, may reside only for such period as the person over the age of 55 actually lives in his home. No one under the age of 40 may reside in any unit of the park under any circumstances. Maximum approved residency in a home is limited to three (3) persons.

4. **INVITEES** - Approved Residents must register (30) days per calendar year. After 30 days, an invitee must pay \$75.00 per invitee per month or part thereof and may not stay beyond an additional thirty (30) days. Children (under 18) must be accompanied by a resident when using park facilities, and may not use the pool table. Residents are responsible for the actions of their invitees. Nothing contained in these Rules and Regulations shall be construed as to authorize children to reside in the park.

5. **COMMERCIAL ACTIVITIES** - No commercial activities, including babysitting or child day care, are permitted at the park or on or in any lot or home.

6. **PETS** - Pets, except for small birds in a cage or fish in a tank, are not permitted in

the park at any time. Violation of this Rule may result in legal action including eviction. Feeding wild or stray animals is prohibited.

7. **LOT & HOME MAINTENANCE** - The Home Owner shall maintain the lot and the exterior of the home in a neat and clean manner and shall have the home pressure cleaned or painted as required by Management. Storage is not permitted on the patio, in the driveway, or on the lot. Home Owners shall maintain the trees, plants, shrubs, and lawn (mow, trim, edge, fertilize, etc.) on their lots. Summer lawn maintenance requires mowing once a week. Watering the lawn is allowed before 9:00 A.M. or after 5:00 P.M., or in accordance with any government watering regulation. Excessive watering causing water run-off into the street is prohibited. Planting or removal of trees and plants on the lot requires the Park Owner's approval. Should it become necessary, because of neglect, for the management to maintain the lawn, the cost to the Home Owner will be \$50.00 per mowing, trimming, and edging.

8. **CLUBHOUSE** - Smoking is not permitted in the clubhouse. The clubhouse is for the use of park residents and their guests who are accompanied by the resident. The clubhouse may not be used for commercial activities. All activities must be approved by the Park Management. Hours are from 8:00 A.M. - 9:00 P.M. daily and may be temporarily extended or shortened upon request and with approval by Park Management. All personal property in the clubhouse is owned by the park. Any alterations or changes to the personal property or to the clubhouse must be approved by the Park Owner. Residents using the clubhouse or personal property therein shall clean up immediately after their activities.

9. **SALE OR RENTAL OF HOME** - Notice of a pending home sale or rental must be provided to Management not less than fifteen (15) days prior to the date of sale or the effective date of commencement of the rental. Prospective residents must complete an application for residency and be approved by the Park Manager prior to residency. It is also the obligation of the Home Owner to provide prospective buyers/renters with a complete copy of these Rules and Regulations. All prospective residents take residency subject to any existing liens of the Park Owner including unpaid utility expenses.

Only one "For Sale" sign is permitted, not to exceed 12" x 18" to be displayed from a window. "For Rent" signs are not permitted. Renters shall have the same residency limitations as the Home Owner. If the Renter is seasonal (i.e. less than one year), a maximum of two (2) seasonal Renters may occupy the home.

10. **MAXIMUM HOME OWNERSHIP** - No person may own more than two (2) mobile homes in the park at the same time.

11. **VEHICLES & BOATS** - For your safety, the park's speed limit is 15 MPH. Overnight parking and storing boats or vehicles are not permitted on the street. Parking on the grass is not allowed. Vehicles illegally parked or without current license tags may be towed by

Management at vehicle owner's expense. No repair or maintenance work is permitted on cars, SUVs, boats, RV's, trucks, etc. in the park. Parking on another's lot is prohibited unless written permission is given by the Home Owner to Management.

12. **WATER** - During periods of extended vacation, the Home Owner must turn off the water supply valve to the home. Should it become necessary, because of willful or negligent acts of the Resident, for the Management to repair the water meter or the piping from the main water line to the meter module or from the main water line to the home, the costs of repair shall be charged to the Home Owner. Unpaid charges shall constitute a lien against the Home Owner's property on the lot. Homes with electric hot water heaters must have a check valve installed.

13. **SEWER** - The Home Owner must keep the sewer line flushed with water and is responsible for maintaining the sewer line from the home to the main sewer line. Any repairs, replacements, or cleaning of the sewer line between the home and the main sewer line are the liability of the Home Owner. This includes any foreign matter, roots, etc. that clog the sewer line. Unpaid charges shall constitute a lien against the Home Owner's property on the lot.

14. **GARBAGE** - Garbage collection is twice per week. The Home Owner must use a wrapper or a liner in the trash can and should dispose of grease with the garbage. Throwing or placing grass cuttings, refuse, trash, or anything into the canals is prohibited. The City of Palmetto no longer charges Home Owners for extra refuse. If a Home Owner has an appliance to be picked-up, the Home Owner must notify the City of Palmetto. Grass cuttings, tree clippings, etc. not properly cut and tied as determined by the City of Palmetto shall not be picked up by the City of Palmetto.

15. **ADDITIONS** - A written plan must be submitted in advance and approved by the Park Owner before work begins for any additions, alterations, or construction to a home or to the lot.

16. **LAUNDRY** - A laundromat is available. Laundry may be hung to dry only in the drying area behind the clubhouse. No clotheslines and no airing or drying of clothes on the lot or outside the home are permitted.

17. **ELECTRICITY** - The Home Owner is responsible for his electric bill, the electric line from the home to the FPL meter, the breaker, and any connection outside the home, including the utility shed and receptacles.

18. **AIR CONDITIONING** - Central air conditioners may be installed at the rear or at the side of the home.

19. **UTILITY SHEDS** - Utility sheds must be constructed to the roof of the carport.

PAGE 4 OF 4

20. **SATELLITE TV** - One satellite television dish, not larger than 20" in diameter, without extensions, may be installed directly on the home; on the side of the home, or installed on the rear of the home. Outdoor antennas and aereals are not permitted.
21. **POLICY** - The Park Owner is not liable for accident or personal injury to any person or property through the use of any park facility. Home Owners and their invitees use park facilities at their own risk.
22. **MISCELLANEOUS** - Fences and gates are not permitted on any lot or around any home. No soliciting or peddling is allowed. Mobile home residents and their invitees may not use the swimming pool in Palm Bay Mobile Home Park.
23. **MAILING ADDRESS** - Mail should be addressed as follows: Your Name, 900 - 9th Avenue East, Lot #___, Palmetto, Florida, 34221. Always use your lot number, and remember to renew your forwarding address each year.
24. **PARK RULE CHANGES** - Park Rules may be changed or new ones added with 90 days written notice to each homeowner, and the board of directors of the homeowners association, if one has been formed.
25. **NOTICES** - The persons authorized to receive notices are:
- As to Management: - The Park Manager
 900 - 9th Avenue East
 Palmetto, Florida 34221.
 - As to Owner: Colonial Mobile Manor Limited LLLP
 900 - 9th Avenue East
 Palmetto, Florida 34221.

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2025-CC-

GEORGE EDWARD YESKE, III and ANY
UNKNOWN PARTY(s) IN POSSESSION,
Defendants.

COMPLAINT (CIVIL ACTION) SEEKING POSSESSION (EVICTION) AND DAMAGES

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, sues the Defendant(s), GEORGE EDWARD YESKE, III and ANY UNKNOWN PARTY(s) IN POSSESSION, in possession of certain premises more fully described below, and alleges:

COUNT I

ACTION FOR POSSESSION

1. This is an action for removal of mobile home park lot tenants and possession of real property in Manatee County, Florida, as authorized by Section 723.061(1)(a) of Florida Statutes.
2. Plaintiff is a Foreign Limited Liability Company owning and operating a mobile home park located in Manatee County, Florida, doing business as COLONIAL MOBILE MANOR.
3. Plaintiff owns the real property located at 900 9th Avenue East, Lot #38, Palmetto, Manatee County, Florida 34221.
4. Pursuant to Florida Statutes §723.031 residential rental agreements in mobile home parks, including that between the Defendant, GEORGE EDWARD YESKE, III, and the Plaintiff, are annual.
5. Defendant, GEORGE EDWARD YESKE, III, natural person, entered into a rental agreement to reside at 900 9th Ave East, Lot #38, Palmetto, Manatee County, Florida, 34221, owned by COLONIAL MANOR MHC HOLDINGS, LLC, known as COLONIAL MOBILE MANOR. A copy of the Lease Agreement is attached to this Complaint as Plaintiff's "Exhibit A".

Colonial Mobile Manor
900 9th Ave. East (U.S. 301 North)
Palmetto, Florida 34221 Phone: (941) 722-3191

Lease Agreement

This lease is made this 1 day of JUNE, 2021, between Colonial Mobile Manor, Limited, hereinafter called "Landlord," and YIPHA YESKE and George YESKE hereinafter called "Resident." The Landlord leases to the Resident and the Resident leases from the Landlord LOT# 232 in Colonial Mobile Manor in Palmetto, Florida for a term to commence JUNE 1, 2021 and terminate December 31st annually, and thereafter on a month-to-month basis, commencing on the first day of each month. Regardless of the length of residency, resident understands that rent increases may be put into effect with proper notice as is required by the Mobile Home Tenant Act ("the Act"). Notice of the increase shall be given in accordance with the Act prior to the effective date of the said increase.

The tenant agrees to pay a deposit of \$ 0

The amount of monthly rent initially charged for the manufactured home space is the sum of \$ 674.50 due on the first day of each month. Occupancy is based on one or two residents per lot. Each additional resident is charged \$ 900 per year, payable \$ 75.00 per month. Rent received after the date due is subject to an additional late rent fee of \$ 45.00. In addition, Resident agrees to pay all applicable State and Local taxes.

It is mutually agreed by the parties hereto, their heirs, executors, administrators, and successors that this rental is made and tenancy accepted upon the Rules and Regulations of Colonial Mobile Manor, Limited dated 01/01/2011, a copy of which the Resident acknowledges having received and read, and Resident agrees to abide by. Violation of any of the Rules or conditions of this lease by the Resident shall constitute a breach of the agreement.

In the case of non-renewal of this lease, the terms of this lease shall continue unless a new lease is entered into between the Landlord and the Resident or the tenancy is terminated.

This mobile home park is zoned "mobile home" under the zoning authority of Manatee County and the City of Palmetto, with no plans for changing the use of the land.

The Landlord and the Resident have respectfully signed this lease as of the day and year first written above.

Colonial Mobile Manor Limited

By: Lois Skipper

X
Resident

X YIPHA WBI YESKE
Resident

6. Defendant(s), ANY UNKNOWN PARTY(s) IN POSSESSION, may reside on the real property at 900 9th Avenue East, Lot #38, Palmetto, Manatee County, FL 34221, Manatee County, but if so, do so without the consent of the Plaintiff.

7. Defendant, GEORGE EDWARD YESKE, III, is the record owner of the mobile home located on the real property on 900 9th Ave East, Lot #38, Palmetto, Florida, 34221.

8. Plaintiff owns, in fee simple, the real property located at 900 - 9th Avenue East, Palmetto, Florida, 34221, including Lot #38, which has historically been known as COLONIAL MOBILE MANOR.

9. The residents of the community, including Defendants, own their mobile homes and lease their respective lots from Plaintiff; therefore, the landlord/tenant relationship between Plaintiff and the Defendant in this cause is governed by Florida Statutes Chapter 723.

10. Plaintiff, as landlord, leased to Defendant, GEORGE EDWARD YESKE, III, LOT #38, of the above stated mobile home park at a monthly rental fee.

11. For the year 2025, the monthly rent is the sum of \$821.00.

12. Defendant, GEORGE EDWARD YESKE, III, is in default of the Rental Agreement with Plaintiff by failure to pay the total sum of \$1,732.00 which represents the months of January 2025 through February 2025 including late fees.

13. On February 7, 2025, Plaintiff served on Defendant, GEORGE EDWARD YESKE, III and ANY UNKNOWN PARTY(s) IN POSSESSION, pursuant to Fla. Stat. §723.061(4) by posting on the premises of 900 9th Avenue East, Lot #38, Palmetto, FL 34221, a Demand for Payment of Lot Rental Amount demanding rent payment, and notified the Defendants that if they failed to timely pay the rent due, that the Plaintiff would evict the Defendant, pursuant to Fla. Stat. §723.061. A copy of this Notice is attached and marked Plaintiff's Exhibit "B".

14. On February 7, 2025, Plaintiff also served on Defendants, GEORGE EDWARD YESKE, III and ANY UNKNOWN PARTY(s) IN POSSESSION, the Demand for Payment of Lot

Rental Amount, by certified mail return receipt requested, pursuant to Fla. Stat. § 723.061(4).

15. The nonpayment default has continued for more than five days after delivery of the written and posted demand to Defendants, as a result of which the Plaintiff is entitled to a judgment for possession of the premises.

16. ANY UNKNOWN PARTY(s) IN POSSESSION may reside or have an interest in LOT #38 of COLONIAL MANOR MHC HOLDINGS, LLC but said residence is without the knowledge or approval of the Plaintiff and said person(s) have no right to reside at said location.

17. Pursuant to the lease and Section 723.068 of Florida Statutes, Plaintiff is entitled to an award of attorney fees.

18. Plaintiff is entitled to the summary procedure of Section 51.011 of the Florida Statutes.

19. Plaintiff has retained the law firm of William C. Price, III, P.A. to represent it in this action and is obligated to pay its attorneys a reasonable fee for their services.

20. Pursuant to Fla. Stat. §723.084 the prevailing party in this action to evict the Defendant is entitled to recover its costs and attorney fees.

21. The total lot rental amounts due as of February 7, 2025, which must be paid into the registry of the Court, is \$1,732.00 plus \$821.00 due each month this action is pending.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment for possession of the premises together with costs and reasonable attorney's fees against Defendants, GEORGE EDWARD YESKE, III and ANY UNKNOWN PARTY(s) IN POSSESSION, and such other and further relief as the Court may deem proper.

COUNT II

ACTION FOR DAMAGES (RENTAL)

22. This is an action seeking less than \$15,000.00 excluding costs, interest and attorney fees.

23. Plaintiff re-alleges the facts contained within paragraphs 1 through 21 as though fully

set forth herein.

24. Plaintiff, as landlord, leased to Defendant, GEORGE EDWARD YESKE, III, Lot #38, 900 9th Avenue East, Palmetto, FL 34221 of the above stated mobile home park at a monthly rental fee of \$821.00.

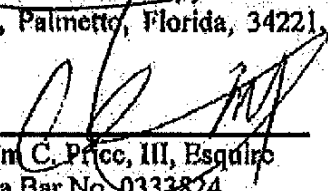
25. Plaintiff has suffered damages for unpaid rent, court costs and a reasonable attorney fee arising out of the prosecution of this action.

26. Plaintiff has retained the undersigned counsel to represent it in this action and has agreed to pay it a reasonable fee for its services.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment against Defendant, GEORGE EDWARD YESKE, III, for damages, costs, attorney fees and a reservation of remedies.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Complaint Seeking Possession (Eviction) and Damages has been furnished to a private process server for service upon the Defendants, GEORGE EDWARD YESKE, III and ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9th Avenue East, Lot #38, Palmetto, Florida, 34221, on this 21st day of February, 2025.



William C. Price, III, Esquire
Florida Bar No. 0333824
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-3730
Primary E-Mail: pleadings@wcpricelaw.com
Attorney for Plaintiff

Colonial Mobile Manor
900 9th Ave East (U.S. 301 North)
Palmetto, Florida 34221 Phone: (941) 722-5191

Lease Agreement

This lease is made this 1 day of June, 2021, between Colonial Mobile Manor, Limited, hereinafter called "Landlord," and YIKWA WEL YESKE and George YESKE, hereinafter called "Resident." The Landlord leases to the Resident and the Resident leases from the Landlord LOT# 232 in Colonial Mobile Manor in Palmetto, Florida for a term to commence June 1, 2021 and terminate December 31st annually, and thereafter on a month-to-month basis, commencing on the first day of each month. Regardless of the length of residency, resident understands that rent increases may be put into effect with proper notice as is required by the Mobile Home Tenant Act ("the Act"). Notice of the increase shall be given in accordance with the Act prior to the effective date of the said increase.

The tenant agrees to pay a deposit of \$ 0

The amount of monthly rent initially charged for the manufactured house space is the sum of \$ 626.50 due on the first day of each month. Occupancy is based on one or two residents per lot. Each additional resident is charged \$ 900 per year, payable \$ 750 per month. Rent received after the date due is subject to an additional late rent fee of \$ 45.00. In addition, Resident agrees to pay all applicable State and Local taxes.

It is mutually agreed by the parties hereto, their heirs, executors, administrators, and successors that this rental is made and tenancy accepted upon the Rules and Regulations of Colonial Mobile Manor, Limited dated 01/01/2011, a copy of which the Resident acknowledges having received and read, and Resident agrees to abide by. Violation of any of the Rules or conditions of this lease by the Resident shall constitute a breach of the agreement.

In the case of non-renewal of this lease, the terms of this lease shall continue unless a new lease is entered into between the Landlord and the Resident or the tenancy is terminated.

This mobile home park is zoned "mobile home" under the zoning authority of Manatee County and the City of Palmetto, with no plans for changing the use of the land.

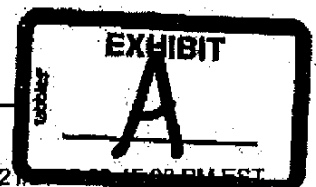
The Landlord and the Resident have respectfully signed this lease as of the day and year first written above.

Colonial Mobile Manor Limited

By: Lori Skipper

X [Signature]
Resident

X YIKWA WEL YESKE
Resident



DEMAND FOR PAYMENT OF LOT RENTAL AMOUNT

Pursuant to Section 723.061, Florida Statutes

Date: February 07, 2025

TO: George Yeske
and All Unknown/Unauthorized
Occupants
900 9th Ave E Lot 38, Lot # 38
Palmatto, Florida 34221
Certified Mail: # 9589 0710 5270 2091 7619 28

FROM: Colonial Manor MHO Holdings, LLC
900 9th Avenue East
Palmatto, Florida 34221
Telephone: (041) 722-3191
Cheryl Poake, Manager

and All Unknown/Unauthorized Occupants
_____, Lot # _____
_____, Florida _____
Certified Mail: # _____

VIA POSTING/HAND DELIVERY, REGULAR AND CERTIFIED MAIL - Return Receipt Requested

You are notified that you are in default in the payment of the lot rental amount for your manufactured home lot. Base lot rental amount is payable to the Landlord at the rate of \$ 021.00 per month.

You have failed to pay all the past due lot rental amounts for the months of Jan 2025 thru February, 2025, in the amount of \$ 1732.00, consisting of the items shown below. As shown in the table below, the total lot rental amount due as of the date of this demand is \$ 1732.00, payable to the address above.

- Rent on Feb 1, 2025 to Feb 28, 2025 in the amount of \$821.00
- Late Fee on Feb 1, 2025 to Feb 28, 2025 in the amount of \$45.00
- Last month balance in the amount of \$866

DEMAND IS HEREBY MADE that you pay the total lot rental amount now due, or deliver possession of the premises to the undersigned within five (5) days from the date of delivery of this notice (allowing five (5) days from the postmark date excluding Saturdays, Sundays and legal holidays.) If the total lot rental amount now due is not paid on or before Feb 14, 2025, your rental agreement will be terminated, and you must immediately vacate the premises.

If you do not pay the total lot rental amount now due within five (5) days from the delivery of this notice (excluding Saturdays, Sundays, and legal holidays), an action for eviction pursuant to Chapter 723.061, Florida Statutes, will be commenced against you. If such action is commenced for eviction, you may also be held liable for court costs and reasonable attorney's fees incurred by the community in order to prosecute such an eviction action. If you have any questions concerning this notice, please contact the community office at the telephone number listed above.

PLEASE GOVERN YOURSELF ACCORDINGLY.



"2025CC000715AX" 217337098 Filed at Manatee County Clerk 02/27/2025

"2025CC000715AX" 236990099 Filed at Manatee County Clerk 12/04/2025 08:36:44 AM EST

COMMUNITY USE ONLY:

CERTIFIED MAIL: #

CERTIFIED MAIL: #

CERTIFIED MAIL: #

MAILED ON: February 07, 2025

BY:

Oliver D. Drake
(Employee signature)

COPY POSTED ON PREMISES (900 9th Ave E Lot 38, Lot # 38)

POSTED ON:

Feb 7 2025 @ 9 AM
(date/time)

POSTED BY:

Oliver D. Drake
(Employee signature)

Colonial Manor MHC Holdings, LLC

vs.

George Yoske


[HOME](#) | [CHANGE PROPERTY](#) | [UNW](#) | [COMMUNITY](#) | [REPORTS](#) | [MAPS](#) | [TOOLS](#) | [MEMOS/GOALS](#) | [PD](#) | [CUS. SERVICE](#) | [HELP](#) | [LOG OUT](#) SEARCH: 210

Go

Colonial Manor 900 9th Avenue East Palmetto FL 34221 - Phone: (941) 722-3191 | Current Ledger: (12/2025)

Ledger
[Resident Admin](#) | [Settings](#) | [Monthly Charges/Credits](#) | [Notices](#) | [Forms](#) | [Returned Checks](#) | [Modify Meter Reads](#) | [Preview Bill for Next Month](#) | [Notes](#)

The ledger contains a list of the transactions. It is shown in increments of 6 months at a time so that the page does not get too unwieldy. At the bottom of the page are links for taking payments, adding credits and charges, and using security deposits or prepaid rent funds. If this is a former resident who has just been moved out recently, there will be an option for re-instating the resident.

Quick Search

Jump to Unit

GO

Search for Resident

GO

Ledger

General Information		Accounting Information	
Property	Colonial Manor	Amount Due	\$ 10,347.00
Unit	30	Prepaid Rent	\$ 0.00
Resident	George Yeske	Refundable Security Deposits	Increase Deposit
Move In/Out Date	10/18/2023 - Present	Outstanding NSF	\$ 0.00
Unit Type	MH	Next Month Rent Increase	\$ 54.00
Unit Status	Occupied-Land Lease—Cash Sale History	Resident has left home? ☐	
		Rent Deferred AM Approval?	
Contract Dates	11/01/2023 - 09/29/2024 Edit		
Contract Forms	Approval Letter , Signed Lease , Signed Rules , Edit History		Recalculate Balance
Take Payment Add Charge Deposit Refunds			

<< Previous 6 Months

Starting Balance	Balance
	\$ 5,196.00

July 2025[Generate Bill](#)

Transaction Date	Due Date	Transaction	Amount	Balance
06/30/2025	07/31/2025	Rent	\$ 821.00	\$ 6,017.00
07/06/2025	07/06/2025	Late Fee	\$ 45.00	\$ 6,062.00
				\$ 6,062.00

August 2025[Generate Bill](#)

Transaction Date	Due Date	Transaction	Amount	Balance
07/31/2025	08/31/2025	Rent	\$ 821.00	\$ 6,883.00
08/06/2025	08/06/2025	Late Fee	\$ 45.00	\$ 6,928.00
				\$ 6,928.00

September 2025[Generate Bill](#)

Transaction Date	Due Date	Transaction	Amount	Balance
08/29/2025	09/01/2025	Rent	\$ 821.00	\$ 7,749.00
09/06/2025	09/06/2025	Late Fee	\$ 45.00	\$ 7,794.00
				\$ 7,794.00

October 2025[Generate Bill](#)

Transaction Date	Due Date	Transaction	Amount	Balance
09/30/2025	10/01/2025	Rent	\$ 821.00	\$ 8,615.00
10/06/2025	10/06/2025	Late Fee	\$ 45.00	\$ 8,660.00
				\$ 8,660.00

November 2025[Generate Bill](#)

Transaction Date	Due Date	Transaction	Amount	Balance
10/31/2025	11/01/2025	Rent	\$ 821.00	\$ 9,481.00
11/06/2025	11/06/2025	Late Fee	\$ 45.00	\$ 9,526.00
				\$ 9,526.00

Ledger for December 2025[Generate Bill](#)

Transaction Date	Due Date	Transaction	Amount	Balance
11/28/2025	12/01/2025	Rent	\$ 821.00	\$ 10,347.00
				\$ 10,347.00

Ending Balance	Balance
	\$ 10,347.00

Take Payment Add Charge Deposit Refunds

Due by Charge Type

[Printable Version](#) [Previous Space](#) [Next Space](#)

Title	Due
Rent	\$ 9,852.00
Late Fee	\$ 495.00
	\$ 10,347.00

[<< Previous 6 Months](#)

[Home](#) | [Map Reports](#) | [Resident Admin](#) | [Logout](#)

DEMAND FOR PAYMENT OF LOT RENTAL AMOUNT

Pursuant to Section 723.061, Florida Statutes

Date: November 06, 2025

TO: George Yaske
and All Unknown/Unauthorized
Occupants
900 9th Ave E Lot 38, Lot # 38
Palmetto, Florida 34221
Certified Mail: # _____

FROM: Colonial Manor MHC Holdings, LLC
900 9th Avenue East
Palmetto, Florida 34221
Telephone: (941) 722-3191
Cheryl Peak, Manager

and All Unknown/Unauthorized Occupants
_____, Lot # _____
_____, Florida _____
Certified Mail: # _____

VIA POSTING/HAND DELIVERY, REGULAR AND CERTIFIED MAIL.- Return Receipt Requested

You are notified that you are in default in the payment of the lot rental amount for your manufactured home lot. Base lot rental amount is payable to the Landlord at the rate of \$ 821.00 per month.

You have failed to pay all the past due lot rental amounts for the months of Jan 2025 thru November 2025, in the amount of \$ 9526.00, consisting of the items shown below. As shown in the table below, the total lot rental amount due as of the date of this demand is \$ 9526.00, payable to the address above.

Notice by the undersigned to the tenant on November 13, 2025, in the amount of \$9526.00, consisting of the following items:
1. Base lot rental amount for the month of January 2025 in the amount of \$821.00.
2. Base lot rental amount for the month of February 2025 in the amount of \$821.00.
3. Base lot rental amount for the month of March 2025 in the amount of \$821.00.
4. Base lot rental amount for the month of April 2025 in the amount of \$821.00.
5. Base lot rental amount for the month of May 2025 in the amount of \$821.00.
6. Base lot rental amount for the month of June 2025 in the amount of \$821.00.
7. Base lot rental amount for the month of July 2025 in the amount of \$821.00.
8. Base lot rental amount for the month of August 2025 in the amount of \$821.00.
9. Base lot rental amount for the month of September 2025 in the amount of \$821.00.
10. Base lot rental amount for the month of October 2025 in the amount of \$821.00.
11. Base lot rental amount for the month of November 2025 in the amount of \$821.00.
Total: \$9526.00

DEMAND IS HEREBY MADE that you pay the total lot rental amount now due, or deliver possession of the premises to the undersigned within five (5) days from the date of delivery of this notice (allowing five (5) days from the postmark date excluding Saturdays, Sundays and legal holidays.) If the total lot rental amount now due is not paid on or before Nov 13, 2025, your rental agreement will be terminated, and you must immediately vacate the premises.

If you do not pay the total lot rental amount now due within five (5) days from the delivery of this notice (excluding Saturdays, Sundays, and legal holidays), an action for eviction pursuant to Chapter 723.061, Florida Statutes, will be commenced against you. If such action is commenced for eviction, you may also be held liable for court costs and reasonable attorney's fees incurred by the community in order to prosecute such an eviction action. If you have any questions concerning this notice, please contact the community office at the telephone number listed above.

PLEASE GOVERN YOURSELF ACCORDINGLY.

COMMUNITY USE ONLY:

CERTIFIED MAIL: # _____
CERTIFIED MAIL: # _____
CERTIFIED MAIL: # _____

MAILED ON: November 06, 2025

BY: _____
(Employee signature)

COPY POSTED ON PREMISES (900 9th Ave E Lot 38 , Lot # 38)

POSTED ON: _____
(date/time)

POSTED BY: _____
(Employee Signature)

Colonial Manor MHC Holdings, LLC

vs.

George Yeske



Resident Information

1076 COLONIAL MOBILE MANOR

900 9th Ave E Palmetto FL 34221

Premise #: 38

Floor Plan: default

Display Name

George Yeske III

Resident ID

3498934

Legacy Account #

Billing Name

George Yeske III

Alt. Resident ID

Billing
Address

900 9Th Ave E Lot 38

Email

george.yeske@gmail.com

Phone

702-466-3954

Security Code

1-3498934-BGHP

Move In Date

10/18/2023

Move Out Date

Move Out Resident

Online Account

Lease Dates

Meter Reading Input

line 2

line 3

City

Palmetto

State/Province

Florida

Current Adult Occupants: 1

Current Child Occupants: 0

Fixed Occupancy

0

Zip/Postal

Code 34221

Country

USA

Occupants

Add New Occupant

Occupant	Move In Date	Move Out Date	Is Adult
First(Name) astName	10/18/2023		Adult

Update

Cancel

Utilities Billed

ID	Utility	Billable Date	End Bill Date
44172	SERVICE FEES	10/18/2023	N/A
44173	SEWER	10/18/2023	N/A
44174	ADMIN FEE	10/18/2023	N/A
44175	WATER	10/18/2023	N/A
44176	NEW ACCOUNT FEE	10/18/2023	N/A
44177	STORMWATER	10/18/2023	N/A

Resident Charge

ID	Resident Charges	Charge Description	Charge Value
----	------------------	--------------------	--------------

Notes

Add Note

Date	Text	User
08/08/2025	RTN MAIL 7/28/25 ATTEMPTED- NOT DELIVERABLE AS ADDRESSED	Cabral, Laura
04/29/2025	? Robin Perry ? george.yeske@gmail.com ? ? CustomerService ? Good morning George, Per your request I have attached the Resident Statement. Enjoy your Day	Perry, Robin
09/23/2024	George Yeske called to make a payment	Algarin, Adryan
07/22/2024	George Yeske called to make a payment he asked why was this amount I explained it was for 3 months he then proceeded to yell and talk over me because he said it was our fault that he had a squatter since April and that we changed the bill back in April to the squatters name advise there is no notes about that change and that the last note is back from November when he called then proceeded to yell more and said that we should be prepare because he is taking us to court	Estefania, Blanca
11/13/2023	Account holder has approved the request to change the eBill status to Paperless (eBill Only) from Paper Bill Only.	Lot-38
11/13/2023	Account holder has approved the request to set the eBill Email Address to george.yeske@gmail.com.	Lot-38
11/13/2023	From: Sherry DiTomaso (mailto:SDiTomaso@OatesEnergy.com) Sent: Monday, November 13, 2023 12:22 PM To: 'george.yeske@gmail.com' george.yeske@gmail.com Subject: COLONIAL MOBILE MANOR Acct # 3498934, Invoice Good Afternoon, Please find the Invoice you requested, Best Regards, Sherry DiTomaso Customer Service 904.242.0075 ext. 219 904.223.9497 fax • www.oatesenergy.com Water you waiting for? Please review us on Google	DiTomaso, Sherry
11/13/2023	George Yeske III called to get ebill and have the last invoice emailed to him.	DiTomaso, Sherry
11/13/2023	A request to change the eBill status to Paperless (eBill Only) from Paper Bill Only was sent.	DiTomaso, Sherry
11/13/2023	A request to set the eBill Email Address to george.yeske@gmail.com was sent.	DiTomaso, Sherry

Transactions

Billed Consumption Report Resident Statement Online Payments Add New Transaction

Transaction Date	Description	Amount	Balance	
12/01/2025	10/29/25 - 11/26/25 Due Date - 12/20/25 - eBill & PaperLess	\$44.65	\$983.52	Invoice
11/18/2025	LATE FEE	\$15.00	\$938.87	
10/30/2025	09/30/25 - 10/28/25 Due Date - 11/17/25 - eBill & PaperLess	\$44.65	\$923.87	Invoice
10/23/2025	LATE FEE	\$15.00	\$879.22	

10/02/2025	08/29/25 - 09/29/25 Due Date - 10/22/25 - eBill & PaperLess	\$44.65	\$864.22	Invoice
08/18/2025	LATE FEE	\$15.00	\$819.57	
08/29/2025	07/29/25 - 08/28/25 Due Date - 08/17/25 - eBill & PaperLess	\$44.65	\$804.57	Invoice
08/19/2025	LATE FEE	\$15.00	\$759.92	
07/30/2025	06/28/25 - 07/28/25 Due Date - 08/18/25 - eBill & PaperLess	\$44.65	\$744.92	Invoice
07/20/2025	LATE FEE	\$15.00	\$700.27	
06/30/2025	05/29/25 - 06/27/25 Due Date - 07/19/25 - eBill & PaperLess	\$44.65	\$685.27	Invoice
06/19/2025	LATE FEE	\$15.00	\$640.82	
05/29/2025	04/29/25 - 05/28/25 Due Date - 06/18/25 - eBill & PaperLess	\$44.65	\$625.62	Invoice
05/18/2025	LATE FEE	\$15.00	\$580.97	
04/29/2025	03/28/25 - 04/28/25 Due Date - 05/17/25 - eBill & PaperLess	\$44.65	\$565.97	Invoice
04/17/2025	LATE FEE	\$15.00	\$521.32	
03/28/2025	03/01/25 - 03/27/25 Due Date - 04/18/25 - eBill & PaperLess	\$44.65	\$506.32	Invoice
03/23/2025	LATE FEE	\$15.00	\$461.67	
03/03/2025	01/31/25 - 02/28/25 Due Date - 03/22/25 - eBill & PaperLess	\$44.65	\$446.67	Invoice
02/20/2025	LATE FEE	\$15.00	\$402.02	
01/30/2025	12/27/24 - 01/30/25 Due Date - 02/19/25 - eBill & PaperLess	\$44.65	\$387.02	Invoice
01/18/2025	LATE FEE	\$15.00	\$342.37	
12/27/2024	11/28/24 - 12/26/24 Due Date - 01/17/25 - eBill & PaperLess	\$52.77	\$327.37	Invoice
12/23/2024	LATE FEE	\$15.00	\$274.60	
12/03/2024	10/26/24 - 11/27/24 Due Date - 12/22/24 - eBill & PaperLess	\$55.98	\$269.60	Invoice
11/17/2024	LATE FEE	\$15.00	\$203.62	
10/28/2024	09/27/24 - 10/25/24 Due Date - 11/16/24 - eBill & PaperLess	\$127.10	\$188.62	Invoice
10/20/2024	LATE FEE	\$15.00	\$61.52	
09/30/2024	08/28/24 - 09/26/24 Due Date - 10/19/24 - eBill & PaperLess	\$48.52	\$46.52	Invoice
09/23/2024	Transaction Fee Charge	\$3.00	\$0.00	
09/23/2024	Transaction Fee Payment	(\$3.00)	(\$3.00)	
09/23/2024	Resident Payment	(\$123.03)	\$0.00	
09/17/2024	LATE FEE	\$15.00	\$123.03	
08/28/2024	07/26/24 - 08/27/24 Due Date - 09/16/24 - eBill & PaperLess	\$43.65	\$108.03	Invoice
08/17/2024	LATE FEE	\$15.00	\$64.38	
07/29/2024	06/28/24 - 07/25/24 Due Date - 08/18/24 - eBill & PaperLess	\$49.38	\$49.38	Invoice
07/22/2024	Transaction Fee Charge	\$3.00	\$0.00	
07/22/2024	Transaction Fee Payment	(\$3.00)	(\$3.00)	
07/22/2024	Resident Payment	(\$208.12)	\$0.00	
07/18/2024	LATE FEE	\$15.00	\$208.12	
06/28/2024	05/27/24 - 06/27/24 Due Date - 07/17/24 - eBill & PaperLess	\$60.58	\$193.12	Invoice
06/17/2024	LATE FEE	\$15.00	\$132.54	
05/29/2024	05/02/24 - 05/26/24 Due Date - 06/16/24 - eBill & PaperLess	\$51.06	\$117.54	Invoice
05/21/2024	LATE FEE	\$15.00	\$66.48	
05/02/2024	03/29/24 - 05/01/24 Due Date - 05/20/24 - eBill & PaperLess	\$51.48	\$51.48	Invoice
04/09/2024	Transaction Fee Charge	\$3.00	\$0.00	
04/09/2024	Transaction Fee Payment	(\$3.00)	(\$3.00)	
04/09/2024	Resident Payment	(\$149.71)	\$0.00	
03/28/2024	03/02/24 - 03/28/24 Due Date - 04/17/24 - eBill & PaperLess	\$68.42	\$149.71	Invoice
03/24/2024	LATE FEE	\$15.00	\$83.29	
03/04/2024	02/01/24 - 03/01/24 Due Date - 03/23/24 - eBill & PaperLess	\$68.29	\$88.29	Invoice
02/13/2024	Transaction Fee Charge	\$3.00	\$0.00	
02/13/2024	Transaction Fee Payment	(\$3.00)	(\$3.00)	
02/13/2024	Resident Payment	(\$49.77)	\$0.00	
01/31/2024	01/03/24 - 01/31/24 Due Date - 02/19/24 - eBill & PaperLess	\$49.77	\$49.77	Invoice
01/27/2024	Transaction Fee Charge	\$3.00	\$0.00	
01/27/2024	Transaction Fee Payment	(\$3.00)	(\$3.00)	
01/27/2024	Resident Payment	(\$67.80)	\$0.00	

01/22/2024	LATE FEE	\$15.00	\$67.89	
01/02/2024	12/01/23 - 01/02/24 Due Date - 01/21/24 - eBill & PaperLess	\$52.89	\$52.89	Invoice
12/26/2023	Transaction Fee Charge	\$3.00	\$0.00	
12/26/2023	Transaction Fee Payment	(\$3.00)	(\$3.00)	
12/26/2023	Resident Payment	(\$100.83)	\$0.00	
12/01/2023	11/01/23 - 11/30/23 Due Date - 12/24/23 - eBill & PaperLess	\$49.16	\$100.83	Invoice
11/21/2023	LATE FEE	\$15.00	\$51.87	
11/01/2023	10/01/23 - 10/31/23 Due Date - 11/20/23	\$36.67	\$36.67	Invoice

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COLONIAL MOBILE MANOR PROSPECTUS

1. THIS PROSPECTUS CONTAINS VERY IMPORTANT INFORMATION REGARDING YOUR LEGAL RIGHTS AND YOUR FINANCIAL OBLIGATIONS IN LEASING A MOBILE HOME LOT. MAKE SURE THAT YOU READ THE ENTIRE DOCUMENT AND SEEK LEGAL ADVICE IF YOU HAVE ANY QUESTIONS REGARDING THE INFORMATION SET FORTH IN THIS DOCUMENT.
2. THE STATEMENT CONTAINED HEREIN ARE ONLY SUMMARY IN NATURE. A PROSPECTIVE LESSEE SHOULD REFER TO ALL REFERENCES, ALL EXHIBITS HERETO, THE CONTRACT DOCUMENTS, AND SALES MATERIALS.
3. ORAL REPRESENTATIONS SHOULD NOT BE RELIED UPON AS CORRECTLY STATING THE REPRESENTATIONS OF THE PARK OWNER OR OPERATOR. REFER TO THIS PROSPECTUS (OFFERING CIRCULAR) AND ITS EXHIBITS FOR CORRECT REPRESENTATIONS.
4. UPON DELIVERY OF THE PROSPECTUS TO A PROSPECTIVE LESSEE, THE RENTAL AGREEMENT IS VOIDABLE BY THE LESSEE FOR A PERIOD OF FIFTEEN (15) DAYS.

TABLE OF CONTENTS

	<u>PAGE NUMBER</u>
SUMMARY	1
NAME AND ADDRESS OF PARK	3
RECEIPT OF NOTICES AND DEMANDS	3
PARK PROPERTY DESCRIPTION	3
RECREATIONAL AND COMMON FACILITIES	3 - 4
PARK MANAGEMENT AND MAINTENANCE	4
MOBILE HOME OWNER REQUIRED IMPROVEMENTS	4
UTILITIES AND OTHER SERVICES	4 - 5
INCREASES IN RENT AND OTHER CHARGES	5 - 6
PARK RULES AND REGULATIONS	6
ZONING CLASSIFICATION	6
ZONING	6
EXHIBITS	6

PROSPECTUS FOR

1. NAME AND ADDRESS OF PARK

Colonial Mobile Manor
900 - 9th Avenue East
Palmetto, Florida 34221

2. RECEIPT OF NOTICES AND DEMANDS

The person authorized to receive notices and demands on the Park owner's behalf is:

The Park Manager
Colonial Mobile Manor
900 - 9th Avenue East
Palmetto, Florida 34221

3. PARK PROPERTY DESCRIPTION

A. Lots, Set-Backs, and Minimum Separation between Mobile Homes

235 Lots in the Park
Approximate size: 50' x 75'

The Set-Back requirement is 10 foot, with 10 foot separation distance between mobile homes.

B. Shared Facilities

The maximum number of lots using shared facilities is five hundred (500).

4. RECREATION AND COMMON FACILITIES

The Mobile Home Park has a clubhouse, which is located at the front of the Park, and which has a single room of approximately 4,300 square feet, with a capacity of four hundred (400) persons. The clubhouse is used for social activities.

DAYS AND HOURS OF OPERATION

The clubhouse is open seven (7) days a week, from 9:00 a.m. to 10:00 p.m., and its use must be approved by Park management.

PERSONAL PROPERTY

There is no personal property available for the mobile home owners.

FUTURE IMPROVEMENTS

All improvements to the Mobile Home Park are now complete.

5. PARK MANAGEMENT AND MAINTENANCE

The manager of the Mobile Home Park is responsible for the maintenance and operation of the Park. The manager's office is in the clubhouse, and will have posted hours and days of operation. Any questions concerning Park operations should be directed to the Park manager.

6. MOBILE HOME OWNER REQUIRED IMPROVEMENTS

As a condition of their occupancy in the Mobile Home Park, new residents, after June 4, 1984, must install the following within forty (40) days after the home is placed on the lot:

Remove hitch, skirt home with aluminum or brick, concrete driveway to the street (12' width), aluminum carport (minimum 12' x 32'), utility shed build to the roof of the carport (minimum 6' x 8'), concrete/brick patio with aluminum cover and screened (minimum 100 square feet), concrete or brick steps at each entrance to the home, fully sodded lawn, and a brick flower planter in front of the home (minimum size 2' x 8' x 2').

7. UTILITIES AND OTHER SERVICES

Water is provided by the City of Palmetto and is billed directly to the mobile home owner. The home owner is responsible for any repairs to the home's water spigots and/or water line from the home to the main line. Park owner is responsible for the maintenance of the main line. The utility charge is not included in the lot rental amount.

SEWAGE

Sewage disposal is provided by the City of Palmetto, and is billed to the mobile home owner. Sewer disposal fees are not included in the monthly lot rental amount. The in-ground connection and the sewer line from the home to the main line are the mobile home owner's responsibility. The Park owner is responsible for the maintenance of the

main line.

WASTE DISPOSAL

Garbage and trash collection are provided curbside by the City of Palmetto and is billed to the mobile home owner, and are not included in the lot rental amount.

STORM DRAINAGE

Any storm drains are provided by and maintained by the Mobile Home Park by natural run-off.

ELECTRICITY

Electricity is provided by Florida Power & Light Company, which bills each home owner directly. Florida Power & Light is responsible for any main electrical lines. The home owner is responsible for the electric bill and for the electrical lines to the home or any connection outside the home, including the utility shed connections, breaker and outside receptacles. The cost of electricity is not included in the lot rental amount.

CABLE TELEVISION

Cable TV is not available.

8. INCREASES IN LOT RENTAL AMOUNT

The current lot rental amount of \$_____ is in effect until _____. At the end of the period, the lot rental amount and other charges may be increased with ninety (90) days notice to the home owner. Factors which affect lot rental amount are charges for water, sewer, garbage, trash removal, maintenance, repairs, gas, electricity, insurance, office, telephone, management, television service, taxes, licenses, government fees, accounting fees, legal fees, and the value of the Park. An increase in one or more of the factors may result in an increase in the home owner's lot rental amount. The lot rental amount may be raised a minimum of \$25.00 per month and up to a maximum of \$25.00 per month plus eighteen (18) times the Consumer Price Index (CPI) per month, whichever is greater. The CPI is the U.S. Department of Labor, U.S. City Average, All Urban Consumers, 1976 = 100, or in the event of the discontinuation of publication of the CPI, then an alternative index generally accepted as the replacement index for the CPI.

The lot rental amount is based on occupancy of 1 or 2 adults. Each additional person will be charged \$_____ per year, payable at \$_____ per month. The charge for an non-sufficient funds (NSF) check is \$_____. Rent received late and by the fifth of the month, or the following business day if the fifth falls on a Sunday, is subject to additional rent of \$35. Rent received late and after the tenth of the month is subject to additional rent of \$75. Failure by home owner to properly maintain the home's

lawn will cost the home owner \$50.00 per mowing, trimming and edging...

9. PARK RULES AND REGULATIONS

- A. Current Park Rules and Regulations - see Exhibits.
- B. Changes In Rules and Regulations

The Mobile Home Park owner shall give ninety (90) days written notice of any change in Park rules and regulations. Rules adopted as a result of restrictions imposed by government entities may be enforced prior to the expiration of the ninety (90) day period. A committee, not to exceed five (5) in number, designated by a majority of the mobile home owners shall meet with the Park owner to discuss such changes within thirty (30) days of the notice from the Park owner.

10. ZONING CLASSIFICATION

Present zoning of the Mobile Home Park is RMH. The permitted use under the zoning classification is mobile home park. No commercial or industrial use is presently allowed.

11. ZONING

The present zoning of the Mobile Home Park is RMH. The name of the zoning authority, which has jurisdiction over the land comprising of Mobile Home Park is the City of Palmetto.

The Mobile Home Park owner has no plans to seek a change in the use of the land.

12. EXHIBITS

- A. Rules and Regulations of the Mobile Home Park.
- B. Lease Agreement between Park owner and mobile home owner.
- C. Copy of the Mobile Home Park layout.

13. Approved by the Florida Division of Condominiums, Time Shares and Mobile Homes on _____.

LOT NUMBER 232

COLONIAL MANOR MOBILE HOME PARK
900 9TH AVE E PALMETTO, FL 34221
941-722-3191

Tenant Emergency Contact Form

Tenant Name: X. huan YESKE

Tenant Name: GEORGE YESKE

Address: 900 9th Ave East #232 Palmetto FL 34221

Telephone Number: 702-466-3957 Telephone Number: _____

Email: GEORGE.YESKE@gmail.com

Northern Address: _____

Emergency Contact #1:

Name: Each Other Telephone: _____

Email: _____

Relationship: _____

Emergency Contact #2:

Name: _____ Telephone: _____

Email: _____

Relationship: _____

Animals: none Approved NO

Current Shots provided to Park Management: _____

I agree I have received one (1) mail box key today. Additional keys will be \$25.00 each.

Resident: [Signature] Date: _____

Kingsley Management Corporation

4956 N 300 W Provo, UT 84604

Phone: (801) 228-9702

Fax: (801) 434-3180

Lot
232
38

Dear XIHUA YESKE, GEORGE EDWARD YESKE, :

We have reviewed your rental application for the Colonial Manor Manufactured Home Community on May 14, 2021. I am pleased to inform you that your application has been accepted. This acceptance is given subject to the Resident Manager approving the home you are purchasing in the community or the home you are moving into the community. Whichever may be the case, your home may require upgrading to meet community rules. This acceptance is also subject to you executing the rental agreement, rules, and other required documents. This acceptance is contingent on final verification of the loan conditions. If you have any questions regarding the processing of your rental application, please call the Community Resident Manager at (941) 722-3191, during a week day. If you receive an answering service, please leave a message and the Resident Manager will respond to your call as soon as possible.

Sincerely,
Kingsley Management

Other Comments: Approval contingent on proof of lender approval. Void if not received. Approved with \$0 deposit.

☒ Application was not complete☐ Applicant was unable or unwilling to keep all park Rules.☐ Applicant's employment status was not verified.☐ Applicant's income was not verified.☐ Applicant was unable or unwilling to comply with the 2 + 1 Rule. (Occupancy restrictions = two persons per room plus one extra person.)☐ Applicant or other persons inhabiting the mobile home do not fall within age restrictions.☐ Applicant's six month rental payment history was not verified or was unacceptable.☐ Applicant did not pass a criminal background check.☐ A combinations of the Applicant's credit history, combined gross income and total liabilities or obligations was unacceptable.

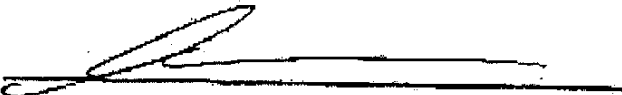
COLONIAL MOBILE MANOR 55+ COMMUNITY

**900 9TH AVE E
PALMETTO, FLORIDA 34221
PHONE: (941) 722-3191**

LOT# 232

**I (WE) HEREBY ACKNOWLEDGE RECEIVING THE RULES AND REGULATIONS OF
COLONIAL MOBILE MANOR 55+ COMMUNITY, WHICH I (WE) AGREE TO ABIDE
BY.**

DATE: 05-12-2021

SIGNATURE: 

SIGNATURE: XI HUA WEI YESKE

Resident Application

Date 5/12/2021

Colonial Manor Manufactured Home Community, Space # 232

THIS COMMUNITY DOES NOT DISCRIMINATE ON THE BASIS OF RACE, NATIONAL ORIGIN, RELIGION, SEX, FAMILIAL STATUS OR HANDICAP
(Please write clearly using black pen)

Please check one.

- ☒ We will be paying cash for the total sales price of the manufactured home and there will be no monthly house payment.
- ☒ We will be financing the purchase of the manufactured home through Credit Sale
- ☒ We will be leasing-to-own the Kingsley-owned manufactured home.
- ☒ We will be renting the Kingsley-owned manufactured home.
- ☒ We will be subleasing the manufactured home from _____

<u>Y. Lina Yeske</u>	<u>09/31/1964</u>	<u>923 72 3984</u>	<u>6101021964083115</u>
Name (Applicant # 1)	Date of Birth	Social Security # or TIN #	Driver License Number
<u>GEORGE Yeske</u>	<u>12/28/1954</u>	<u>538-58-7706</u>	<u>1403 956019</u>
Name (Applicant # 2)	Date of Birth	Social Security # or TIN #	Driver License Number

Present Address 3700 115 Hwy 17-92 City Davenport State FL Zip 33837

Home Phone 702-466-3694 Cell Phone See Work Phone See

Email GEORGEYESKE@gmail.com

List all additional occupants who will be living in the home:

NAME

RELATIONSHIP

Age

900 9th Ave E

Palmetto, FL 34221

Phone: (941) 722-3191 Email: colonialmanor@kmcmmh.com

Have you, or any of the above persons, ever been convicted of a felony or misdemeanor? No
If "Yes", Explain details of conviction: _____

Have you ever been asked to terminate your lease elsewhere? No

Current landlord Kissinger South RV Phone # 863-424-1286

Reason for moving Want Larger Home

Previous landlord Self City _____ Phone # _____

Employer (Applicant #1) Desert Oasis Phone # 702-466-3954 Fax # _____

Address 6613 Bluebird St City North Las Vegas State NV

Employer (Applicant #2) None Phone # _____ Fax # _____

Address _____ City _____ State _____

In case of emergency, Notify Virginia Rickett Relationship Friend

Address _____ City Los Angeles State CA Zip _____

Home Phone 213 909 2677 Work Phone _____

Number of Vehicles: 1 (list additional on back)

Make Volkswagen Model Tiguan Year 2017 License # QEP L65 ST FL

Make _____ Model _____ Year _____ License # _____ ST _____

List all pets: Type & Breed	Age	Color	Height (At Shoulder)	Weight
1. <u>Cat</u>	<u>< 1yr</u>	<u>Siamese</u>	<u>3"</u>	<u>6 LBS</u>
2. <u>Cat</u>	<u>< 1yr</u>	<u>Black</u>	<u>3"</u>	<u>6 LBS</u>

Mobile Home: Make/Model: Home VIN: 0365389A1/31 Year: 1975

Condition of Home: Good Size: 40' AMP _____

Registered Owner of Home Helen Tipton Phone # 847-894-0254

Home Will Be Financed Through or Legally Owned By: Kiana YESKE

Which dealer are you buying home through? _____ Purchase Date _____

How did you hear about the home and our community? Facebook marketplace

Applicants hereby represent that all information in this application is true and correct. Applicants hereby authorize verification of all information. Your signature also indicates that you and all occupants have reviewed all the community rules and are willing and able to comply with them. Your signature will also give Kingsley Management and its representatives the rights to verify your credit history, rental or mortgage payment history, criminal background history and any other information applicable to this application process. Any false or incorrect statements made above shall be sufficient cause for Community to cancel and terminate any agreement made with applicants. Applicants agree to sign a "Lease," "Rules and Regulations" and any other form Community may require prior to moving into the Community if this application is approved. Applicant understands that by listing pets, vehicles, persons desiring residency, etc., herewith does not grant approval of the same even if applicant(s) is/are subsequently approved for residency. All applicants must agree to obey all the rules in order to be approved and remain in the Community.

Note: There will be a \$35 fee to process this application if there is one applicant. The fee is \$30 more for each additional person/alias 18 years old or over. This fee is to be paid when application is processed. Fees are non-refundable. No fees are collected in California.

Witness Lou Skipper
Signature (Resident Manager)

JHMA WEI YESKE 5/12/2021
*Signature & Date (Applicant # 1)

[Signature] 5/13/2021
*Signature & Date (Applicant # 2)

Office Use Only:

Positive Reference from current/prior landlord?	☒ Yes / ☐ No	Landlord approval or cash verification (purchase)?	☒ Yes / ☐ No
Manufactured Home Acknowledgement Form	☒ Yes / ☐ No	Applicant has the ability to comply with Rules?	☒ Yes / ☐ No
Verification of Employment (For Kingsley Rental)?	☒ Yes / ☐ No	Applicant complies with 2 persons per bedroom + 1?	☒ Yes / ☐ No
Photo ID of Applicant (i.e. drivers license)?	☒ Yes / ☐ No	Application is complete?	☒ Yes / ☐ No

Rental Amount: \$ _____ Space Rent: \$ 626.50 Total Rent: \$ 626.50
Application fees collected: \$ 65.00

Resident Manager's signature indicates that all documents attached to this application are accurate and legitimate as far you know.

Lou Skipper 5/12/21
Signature & Date (Resident Manager)

**CRIMINAL AND / OR CREDIT BACKGROUND
INFORMATION RELEASE FORM**
(To be completed by every resident over 18 years old.)

Applicant: Please fill out the following information accurately. Please write clearly using black pen.

FULL LEGAL NAME:

LAST: Yeske FIRST: George MIDDLE: E

PREVIOUS NAME(S)/ALIAS(S): NA

SOCIAL SECURITY #: 638 68 7106 DATE OF BIRTH (MM/DD/YYYY): 12-22-1954

STREET ADDRESS (Not PO Box): 3700 US Hwy 17-92

CITY: Davenport STATE: FL ZIP: 33837 HOW LONG: 1+ yrs

PREVIOUS ADDRESS:

CITY: STATE: ZIP: HOW LONG:

TELEPHONE #: 702-466-3954

I understand that as part of my application for the rental of a space / mobile home at the Community (Or because I will occupy space in the Community based on the application of another), the Landlord will require, among other things, the conduct of a criminal background check; therefore, I hereby authorize the Landlord, and any employee, agent or research company to investigate my criminal history. I understand that the Landlord may rely on the information obtained when evaluating the rental application. I also understand that the Landlord may deny the rental application based on any information reflected in the criminal history. Furthermore, if the Landlord receives negative information about my criminal history (or the criminal history of anyone who occupies the space / mobile home), after a lease is signed for my occupancy of a space / mobile home, I agree that the Landlord will use its sole and absolute discretion when evaluating and determining whether any matter contained within my criminal history (Or the criminal history of anyone who will occupy the space / mobile home), should be a basis for denial of the denial of the rental application, or be a basis for terminating my lease. If I am approved for residency and sign a lease agreement with the Landlord, then the promises and covenants made herein shall become part of that lease agreement.

I agree not to hold the landlord responsible for denying my rental application based on information obtained concerning my criminal record, even in such information is faulty or erroneous. I agree that the Landlord may consult with as few or as many sources as it may elect, in its sole discretion, the conduct of the investigation of my criminal history. I understand that the Landlord is relying on third parties for such information, and the Landlord will not accept responsibility for the accuracy of the information provided. Further, I agree not to hold the Landlord responsible for any damage, costs, liability or expense that I may incur as a result of my rental application being denied due to information contained within or omitted from the history provided to the Landlord.

Signature: [Signature] Date: 05/12/2021

**CRIMINAL AND / OR CREDIT BACKGROUND
INFORMATION RELEASE FORM**
(To be completed by every resident over 18 years old.)

Applicant: Please fill out the following information accurately. Please write clearly using black pen.

FULL LEGAL NAME:

LAST: YESKE FIRST: XIHUA MIDDLE: WEI
PREVIOUS NAME(S)/ALIAS(S): XIHUA WEI
SOCIAL SECURITY #: 823-72-3984 DATE OF BIRTH (MM/DD/YYYY): 08/31/1964
STREET ADDRESS (Not PO Box): 3700 US Hwy 17-92
CITY: Davenport STATE: FL ZIP: 33857 HOW LONG: 2+ yrs
PREVIOUS ADDRESS: 435 River Glides Ave
CITY: Las Vegas STATE: NV ZIP: 89084 HOW LONG: 3 yrs
TELEPHONE #: 702-466-3954

I understand that as part of my application for the rental of a space / mobile home at the Community (Or because I will occupy space in the Community based on the application of another), the Landlord will require, among other things, the conduct of a criminal background check; therefore, I hereby authorize the Landlord, and any employee, agent or research company to investigate my criminal history. I understand that the Landlord may rely on the information obtained when evaluating the rental application. I also understand that the Landlord may deny the rental application based on any information reflected in the criminal history. Furthermore, if the Landlord receives negative information about my criminal history (or the criminal history of anyone who occupies the space / mobile home), after a lease is signed for my occupancy of a space / mobile home, I agree that the Landlord will use its sole and absolute discretion when evaluating and determining whether any matter contained within my criminal history (Or the criminal history of anyone who will occupy the space / mobile home), should be a basis for denial of the denial of the rental application, or be a basis for terminating my lease. If I am approved for residency and sign a lease agreement with the Landlord, then the promises and covenants made herein shall become part of that lease agreement.

I agree not to hold the landlord responsible for denying my rental application based on information obtained concerning my criminal record, even in such information is faulty or erroneous. I agree that the Landlord may consult with as few or as many sources as it may elect, in its sole discretion, the conduct of the investigation of my criminal history. I understand that the Landlord is relying on third parties for such information, and the Landlord will not accept responsibility for the accuracy of the information provided. Further, I agree not to hold the Landlord responsible for any damage, costs, liability or expense that I may incur as a result of my rental application being denied due to information contained within or omitted from the history provided to the Landlord.

Signature: XIHUA WEI YESKE Date: 05/15/2021

VERIFICATION OF RESIDENCY
(Please write clearly using black pen)

Date: 05-12-2021

To: Joni Gibbs (Name of Landlord)
3700 NE Hwy 11-92 (Address)
DADE CO FL 33007 (City, State, & Zip)
843-824-1281 (Phone Number)
jgibbs@swccommunity.com (Email/Fax)

Regarding: Applicant's Name: GEORGE YOSKE
Social Security #: 538-58-7706
Date of Birth: 12-28-1954

Dear Landlord:

The above referenced person, who has identified you as either his/her current or prior landlord, has applied for residency at our manufactured home community. Verification of current and prior residency is a necessary part of our application approval process and, as such, it would be much appreciated if you could complete and return this request as quickly as possible.

Thank you for your cooperation.

Lou Skipper
Resident Manager

**THE BELOW PORTION TO BE COMPLETED ONLY BY
CURRENT/PRIOR LANDLORD OR RESIDENT MANAGER**

Rental Term: From _____ to 1.5 yrs
Monthly Rental Rate: \$1000 Is their rent current? yes
Was the rent paid timely? yes Would you rent to applicant again? yes
Number of times delinquent during the last twelve months: 0
Did the above named applicant and his/her guests, etc. comply with your rules? yes
Additional Comments: _____

Completed by: L Skipper Date 5/13/21
Landlord's Signature Rm

(RELEASE AUTHORIZATION BY APPLICANT)

I hereby authorize you to release the above requested information to Colonial Manor Manufactured Home Community.

Applicant's Signature _____

05-12-2021
Date

VERIFICATION OF RESIDENCY
(Please write clearly using black pen)

Date: 05-12-2021

To: Joni Gibbs (Name of Landlord)
3700 4th Hwy 17/92 (Address)
Dunedin, FL 339 (City, State, & Zip)
813-1424-1286 (Phone Number)
Jgibbs@swcommunities.com (Email/Fax)

Regarding: Applicant's Name: Viktor Veske
Social Security #: 823-72-3984
Date of Birth: 08-31-1964

Dear Landlord:

The above referenced person, who has identified you as either his/her current or prior landlord, has applied for residency at our manufactured home community. Verification of current and prior residency is a necessary part of our application approval process and, as such, it would be much appreciated if you could complete and return this request as quickly as possible.

Thank you for your cooperation.

Lou Skipper
Resident Manager

**THE BELOW PORTION TO BE COMPLETED ONLY BY
CURRENT/PRIOR LANDLORD OR RESIDENT MANAGER**

Rental Term: From _____ to 1.5 yrs
Monthly Rental Rate: \$1000 Is their rent current? yes
Was the rent paid timely? yes Would you rent to applicant again? _____
Number of times delinquent during the last twelve months: 0
Did the above named applicant and his/her guests, etc. comply with your rules? yes
Additional Comments: _____
Completed by: L Skipper Date 5/12/21
Landlord's Signature Rm

(RELEASE AUTHORIZATION BY APPLICANT)

I hereby authorize you to release the above requested information to Colonial Manor Manufactured Home Community.

Viktor Veske
Applicant's Signature

05-12-2021
Date

VERIFICATION OF EMPLOYMENT

(Please write clearly using black pen)

Date: 05-12-2021

To: DAF (Name of Employer)
1314 Lee Plaza Blvd (Address)
702-466-3954 (Phone Number)
DLW@DAF.com (Email/Fax)

Regarding: Applicant's Name: George Yeske
Social Security #: 538-682-7006
Date of Birth: 12-28-1957

Dear Employer:

The above referenced person, who has identified you as either his/her current or prior employer, has applied for residency at our manufactured home community. Verification of employment is a necessary part of our application approval process and, as such, it would be much appreciated if you could complete and return this request as quickly as possible.

Thank you for your cooperation.

Lori Skipper
Resident Manager

THE BELOW PORTION TO BE COMPLETED ONLY BY CURRENT EMPLOYER OR RESIDENT MANAGER

Employment Status: Temporary ☐ Permanent ☒ per Bryan Sawyer
Position consultant
Starting Date Apr 2020
Present Salary \$ 8.5 Per ☐ Month ☐ Week ☒ Hour + bonus
Number of hours working per week: 50-60
Completed by: Lori Position Resident Manager Date 5/13/21
Employer's Signature Rm

(RELEASE AUTHORIZATION BY APPLICANT)

I hereby authorize you to release the above requested information to Colonial Manor Manufactured Home Community.

Applicant's Signature

05-12-2021
Date

VERIFICATION OF EMPLOYMENT
(Please write clearly using black pen)

Date: 2/12/21

To: _____

(Name of Employer)

(Address)

(City, State, & Zip)

(Phone Number)

(Email/Fax)

Hauswifl

Regarding:

Applicant's Name: VI HUA WET

Social Security #: _____

Date of Birth: _____

Dear Employer:

The above referenced person, who has identified you as either his/her current or prior employer, has applied for residency at our manufactured home community. Verification of employment is a necessary part of our application approval process and, as such, it would be much appreciated if you could complete and return this request as quickly as possible.

Thank you for your cooperation.

Lou Skipper
Resident Manager

**THE BELOW PORTION TO BE COMPLETED ONLY BY
CURRENT EMPLOYER OR RESIDENT MANAGER**

Employment Status: Temporary ☐

Permanent ☐

Position _____

Starting Date _____

Present Salary \$ _____

Per ☐ Month ☐ Week ☐ Hour

Number of hours working per week: _____

Completed by: _____

Employer's Signature

Position _____

Date _____

(RELEASE AUTHORIZATION BY APPLICANT)

I hereby authorize you to release the above requested information to Colonial Manor Manufactured Home Community.

VI HUA WET YESKE

Applicant's Signature

6-12-2021

Date

SUMMARY OF INCOME

(Please write clearly using black pen)

Use this form to summarize income and benefits from pay stubs, bank statements, and other proof of income.

Proof of Income

Applicant may prove income with the following:

- Two consecutive, recent pay stubs
- Letter from employer, signed and dated
- Bank statements showing regular deposits (preferred if self employed)
- Tax statements showing yearly income

Employer: DRF

Employment Status: Temporary ☒ Permanent ☐

Position Owner

Starting Date 02/2005

Present Salary \$ 3500.00 Per ☐ Month ☒ Week ☐ Hour

Number of hours working per week: 40

Proof of Benefits

Applicant may prove benefits with the following:

- Official letter explaining benefits
- Two months of bank statements showing regular deposits

☒ Social Security

☐ Pension from: _____

☐ Other: _____

Amount \$ 1760.00 Per ☐ Year ☒ Month ☐ Week

The Ministry of Foreign Affairs of the People's Republic of China requests all civil and military authorities of foreign countries to allow the bearer of this passport to pass freely and afford assistance in case of need.

[illegible]

POCHNWEI<<XIHUA<<<<<<<<<<<<<<<<<<<<<<<<<<<<<<<<<<
E05U133815CHN64D8310F2211156MOLKNOPHLLKKA980

Schedule A - Work Order

1. **Project Name / Title:** World Wide Technology Inc / EyeCare Partners
2. **Location:** Davenport, FL; Remote and Onsite Ballwin, MO
3. **Scope of Services:** Senior Project Manager
4. **Personnel:**

The Contractor shall supply the following named Personnel to the End User to perform the Services:

Name	Title	Basic Rate	WO Start Date	WO End Date	Work Location
George Yeske	Senior Project Manager	\$85.00/hr.	January 11, 2021	July 9, 2021	Davenport, FL; Remote and Onsite Ballwin, MO

1. **Additional duties to be provided by OSCAR ASSOCIATES:**

2. **Representatives:**

Contact persons for this Agreement are:

OSCAR ASSOCIATES	
Name:	Kevin Holt
Title:	Director
Tel:	713-568-1968
E-mail:	Kevin.Holt@oscar-recruit.com

Contractor	
Name:	George Yeske
Title:	Manager
Tel:	702-466-3954
E-mail:	george.yeske@gmail.com

OSCAR ASSOCIATES (Americas), LLC

Signed: Kevin Holt

Job Title: Director

Date: 11 January 2021

DESERT OASIS FOODS, LLC

Signed: George Yeske

Job Title: Manager

Date: 11 January 2021

Colonial Mobile Manor

900 9th Avenue East (US 301 North), Palmetto, Florida 34221

Telephone: (941) 722-3191

RULES & REGULATIONS - EFFECTIVE JANUARY 1, 2011

1. **LOT RENTAL** - Rent is due on the first day of each month. Rent received late and by the fifth of the month, or the following business day if the fifth falls on a Sunday, is subject to additional rent of \$35.00. Rent received late and after the tenth of the month is subject to additional rent of \$75.00. The charge for a returned check is \$40.00. Bounced rent checks will incur a late fee in addition to the bounced check fee of \$40.00 if not repaid within twenty-four (24) hours of notification.

Water, sewer and storm water charges are billed directly to the Home Owner. If payment of the water/sewer bill is not received by the date due, there will be a \$35.00 late charge per month.

2. **QUIET ENJOYMENT** - Any act of any resident or permitted guest of any resident which disturbs or endangers the life, health, safety, property, or peaceful enjoyment of the park or its residents is not permitted, and is grounds for eviction.

3. **OCCUPANCY** - Colonial Mobile Manor is an age 55+ park. All persons must be approved to reside in the Park. All residents and overnight invitees must be registered prior to occupancy. At least one resident must be 55 years of age or older. An approved person may have a member of his immediate family (spouse, parent, adult sibling, or child) approved to reside with him as long as the family member is over the age of 40 and is approved for residency. The family member, under the age of 55, may reside only for such period as the person over the age of 55 actually lives in his home. No one under the age of 40 may reside in any unit of the park under any circumstances. Maximum approved residency in a home is limited to three (3) persons.

4. **INVITEES** - Approved Residents must register (30) days per calendar year. After 30 days, an invitee must pay \$75.00 per invitee per month or part thereof and may not stay beyond an additional thirty (30) days. Children (under 18) must be accompanied by a resident when using park facilities, and may not use the pool table. Residents are responsible for the actions of their invitees. Nothing contained in these Rules and Regulations shall be construed as to authorize children to reside in the park.

5. **COMMERCIAL ACTIVITIES** - No commercial activities, including babysitting or child day care, are permitted at the park or on or in any lot or home.

6. **PETS** - Pets, except for small birds in a cage or fish in a tank, are not permitted in

the park at any time. Violation of this Rule may result in legal action including eviction. Feeding wild or stray animals is prohibited.

7. **LOT & HOME MAINTENANCE** - The Home Owner shall maintain the lot and the exterior of the home in a neat and clean manner and shall have the home pressure cleaned or painted as required by Management. Storage is not permitted on the patio, in the driveway, or on the lot. Home Owners shall maintain the trees, plants, shrubs, and lawn (mow, trim, edge, fertilize, etc.) on their lots. Summer lawn maintenance requires mowing once a week. Watering the lawn is allowed before 9:00 A.M. or after 5:00 P.M., or in accordance with any government watering regulation. Excessive watering causing water run-off into the street is prohibited. Planting or removal of trees and plants on the lot requires the Park Owner's approval. Should it become necessary, because of neglect, for the management to maintain the lawn, the cost to the Home Owner will be \$50.00 per mowing, trimming, and edging.

8. **CLUBHOUSE** - Smoking is not permitted in the clubhouse. The clubhouse is for the use of park residents and their guests who are accompanied by the resident. The clubhouse may not be used for commercial activities. All activities must be approved by the Park Management. Hours are from 8:00 A.M. - 9:00 P.M. daily and may be temporarily extended or shortened upon request and with approval by Park Management. All personal property in the clubhouse is owned by the park. Any alterations or changes to the personal property or to the clubhouse must be approved by the Park Owner. Residents using the clubhouse or personal property therein shall clean up immediately after their activities.

9. **SALE OR RENTAL OF HOME** - Notice of a pending home sale or rental must be provided to Management not less than fifteen (15) days prior to the date of sale or the effective date of commencement of the rental. Prospective residents must complete an application for residency and be approved by the Park Manager prior to residency. It is also the obligation of the Home Owner to provide prospective buyers/renters with a complete copy of these Rules and Regulations. All prospective residents take residency subject to any existing liens of the Park Owner including unpaid utility expenses.

Only one "For Sale" sign is permitted, not to exceed 12" x 18" to be displayed from a window. "For Rent" signs are not permitted. Renters shall have the same residency limitations as the Home Owner. If the Renter is seasonal (i.e. less than one year), a maximum of two (2) seasonal Renters may occupy the home.

10. **MAXIMUM HOME OWNERSHIP** - No person may own more than two (2) mobile homes in the park at the same time.

11. **VEHICLES & BOATS** - For your safety, the park's speed limit is 15 MPH. Overnight parking and storing boats or vehicles are not permitted on the street. Parking on the grass is not allowed. Vehicles illegally parked or without current license tags may be towed by

Management at vehicle owner's expense. No repair or maintenance work is permitted on cars, SUVs, boats, RV's, trucks, etc. in the park. Parking on another's lot is prohibited unless written permission is given by the Home Owner to Management.

12. **WATER** - During periods of extended vacation, the Home Owner must turn off the water supply valve to the home. Should it become necessary, because of willful or negligent acts of the Resident, for the Management to repair the water meter or the piping from the main water line to the meter module or from the main water line to the home, the costs of repair shall be charged to the Home Owner. Unpaid charges shall constitute a lien against the Home Owner's property on the lot. Homes with electric hot water heaters must have a check valve installed.

13. **SEWER** - The Home Owner must keep the sewer line flushed with water and is responsible for maintaining the sewer line from the home to the main sewer line. Any repairs, replacements, or cleaning of the sewer line between the home and the main sewer line are the liability of the Home Owner. This includes any foreign matter, roots, etc. that clog the sewer line. Unpaid charges shall constitute a lien against the Home Owner's property on the lot.

14. **GARBAGE** - Garbage collection is twice per week. The Home Owner must use a wrapper or a liner in the trash can and should dispose of grease with the garbage. Throwing or placing grass cuttings, refuse, trash, or anything into the canals is prohibited. The City of Palmetto no longer charges Home Owners for extra refuse. If a Home Owner has an appliance to be picked-up, the Home Owner must notify the City of Palmetto. Grass cuttings, tree clippings, etc. not properly cut and tied as determined by the City of Palmetto shall not be picked up by the City of Palmetto.

15. **ADDITIONS** - A written plan must be submitted in advance and approved by the Park Owner before work begins for any additions, alterations, or construction to a home or to the lot.

16. **LAUNDRY** - A laundromat is available. Laundry may be hung to dry only in the drying area behind the clubhouse. No clotheslines and no airing or drying of clothes on the lot or outside the home are permitted.

17. **ELECTRICITY** - The Home Owner is responsible for his electric bill, the electric line from the home to the FPL meter, the breaker, and any connection outside the home, including the utility shed and receptacles.

18. **AIR CONDITIONING** - Central air conditioners may be installed at the rear or at the side of the home.

19. **UTILITY SHEDS** - Utility sheds must be constructed to the roof of the carport.

PAGE 4 OF 4

20. **SATELLITE TV** - One satellite television dish, not larger than 20" in diameter, without extensions, may be installed directly on the home; on the side of the home, or installed on the rear of the home. Outdoor antennas and aerials are not permitted.

21. **POLICY** - The Park Owner is not liable for accident or personal injury to any person or property through the use of any park facility. Home Owners and their invitees use park facilities at their own risk.

22. **MISCELLANEOUS** - Fences and gates are not permitted on any lot or around any home. No soliciting or peddling is allowed. Mobile home residents and their invitees may not use the swimming pool in Palm Bay Mobile Home Park.

23. **MAILING ADDRESS** - Mail should be addressed as follows: Your Name, 900 - 9th Avenue East, Lot #__, Palmetto, Florida, 34221. Always use your lot number, and remember to renew your forwarding address each year.

24. **PARK RULE CHANGES** - Park Rules may be changed or new ones added with 90 days written notice to each homeowner, and the board of directors of the homeowners association, if one has been formed.

25. **NOTICES** - The persons authorized to receive notices are:

As to Management:

The Park Manager
900 - 9th Avenue East
Palmetto, Florida 34221.

As to Owner:

Colonial Mobile Manor Limited LLLP
900 - 9th Avenue East
Palmetto, Florida 34221.

COLONIAL MOBILE MANOR 55+ COMMUNITY

900 9TH AVE E
PALMETTO, FLORIDA 34221
PHONE: (941) 722-3191

LOT # 232

I (WE) HEREBY ACKNOWLEDGE RECEIVING THE RULES AND REGULATIONS OF
COLONIAL MOBILE MANOR 55+ COMMUNITY, WHICH I (WE) AGREE TO ABIDE
BY.

DATE: 05-12-2021

SIGNATURE: 

SIGNATURE: XI HUA WEI YESKE

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2025-CC-000715

GEORGE EDWARD YESKE, III and ANY
UNKNOWN PARTY(s) IN POSSESSION,
Defendants.

PLAINTIFF'S FIRST LIST OF WITNESSES AND EXHIBITS

1. COLONIAL MANOR MHC HOLDINGS, LLC lists the following list of witnesses anticipated to be called in the trial of the above styled cause:

Cheryl Peake
Park Manager
Colonial Manor MHC Holdings, LLC
900 9th Avenue East
Palmetto, FL 34221

Monica Mehanny
522 12th Street West
Bradenton, FL 34205
(941) 747-8001
pleadings@wcpricelaw.com

Brian Nays
Lot 134
Colonial Manor MHC Holdings, LLC
900 9th Avenue East
Palmetto, FL 34221

2. Plaintiff lists the following list of exhibits anticipated to be used in the trial of this cause:

Prospectus
Rules and Regulations
Lease if available
Ledger of payment for rent and other expenses
Affidavit of Time and Expense for Determination of costs and attorney fees
Notice of Failure to pay rent (723.061)
Certified Mail Return Receipt
Complaint

Proof of Service of Process

Any documents in rebuttal of the claimed defenses of the Defendant.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Plaintiff's List of Witnesses and Exhibits has been has been furnished in accordance with Florida Rules of Judicial Administration 2.516 through Florida Courts E-Filing Portal upon the Defendant, GEORGE EDWARD YESKE, III, at 14382 O'Neal Road, Gulfport, MS 39503 and at george.yeske@gmail.com and to GEORGE EDWARD YESKE, III and ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9th Avenue East, Lot #38, Palmetto, Florida, 34221, on this 3rd day of November, 2025.

William C. Price, III, Esquire
Florida Bar No. 0333824
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
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Attorney for Plaintiff